

OVERLAND PARK RENTAL & PROPERTY CODE

Licensing • property maintenance • nuisances • animals • civil rights • towing

PROPERTY	9401 Nieman Road, Overland Park, Kansas 66214
CURRENT THROUGH	July 12, 2026
ACTIVE-SET STATUS	Current-law set; enacted addenda included; withdrawn sources excluded
SCOPE	Official municipal-code chapters most directly affecting ongoing rental operations at the GH fourplex

Use rule: Retrieve the controlling text, confirm the trigger and currentness, then obtain Kansas counsel review before enforcement, filing, denial, accommodation decisions, or material lease changes.

This compilation is a research and retrieval aid, not legal advice, a title opinion, or a substitute for official current law. Summaries and applicability labels are navigation aids; the appended official text controls.

How this bundle should be used

TYPE	HOW TO USE IT
BINDING	Statute, regulation, ordinance, or controlling court decision. Confirm effective date and later history.
CONDITIONAL	Binding only when a stated trigger exists—such as HUD assistance, a federally backed mortgage, or third-party management.
GUIDANCE	Agency or court-administration material. Useful operationally but not itself controlling law unless incorporated.
PROPOSED	Monitoring only. Do not apply as current law.
WITHDRAWN	Excluded from this active set. Keep only in a separately labeled historical archive.

- Overland Park requires a rental license; confirm current license, renewal and inspection status.
- OPMC 8.10 supplies local civil-rights protections in addition to federal and Kansas law.
- State 2026 SB 391 preempts specified local housing policies but does not erase otherwise valid city health, safety, licensing or civil-rights rules.

Text-integrity rule: appended official PDFs are preserved as retrieved. The front matter adds navigation only and does not alter statutory, regulatory, judicial, or municipal wording.

Source inventory and page map

16 official source documents are included. Page numbers below refer to the finished merged PDF. Use the PDF bookmarks or search the exact citation.

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TITLE 5 - BUSINESS LICENSES AND REGULATIONS

5.75 RENTAL LICENSING AND INSPECTION

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5.75.150 Remedies in This Chapter Are Not Exclusive.**5.75.010 Statement of Purpose.**

A. The purpose of this Chapter is to protect the public health, safety and general welfare of the residents of Overland Park in Rental Dwellings. The further intent of this Chapter is to:

1. Promote safe living conditions and a well-maintained community;
2. Protect the character and stability of residential areas;
3. Correct and prevent housing conditions that adversely affect or are likely to adversely affect the safety, health and welfare of residents of rental properties;
4. Preserve the value of land and buildings throughout the City;
5. Enforce minimum standards for the exterior maintenance of residential buildings and property;
6. Protect the public from increased criminal activity that tends to occur in residential areas that are unstable due to Dwellings that are blighted or substandard; and
7. Provide a mechanism for enforcement and the administration of the City Code to ensure that the above purposes are accomplished.

B. It is not the intent of the City to intrude upon contractual relationships between tenant and landlords; nor does the City intend to intervene as an advocate for either party, to act as an arbiter, or to hear complaints by landlords or tenants which are not specifically and clearly related to the provisions of this Chapter.

(History: Ord. RLI-3120 §1, 2016)

Effective on: 2/23/2016

5.75.020 Definitions.

As used in this Chapter, the following terms shall have these prescribed meanings:

Director – The Director of Planning and Development Services or the Director’s designee.

Dwelling – A building or structure that contains one or more Dwelling Units or Rooming Units intended or designed to be used or occupied for living purposes.

Dwelling Unit – A single unit providing complete independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation.

KC Metropolitan Area – The area defined by the Kansas City Metropolitan Statistical Area (KCMSA).

Manager – Any person who, alone or jointly or severally with others, shows Rental Dwellings to prospective Occupants and/or enters lease agreements on the Owner's behalf, and/or receives Rent from Occupants, and/or is responsible for, or arranging for, maintenance of a Rental Dwelling.

Occupant / Tenant – Any individual living or sleeping in a Rental Dwelling, or having possession of a space within a Rental Dwelling.

Owner – Any Person having a legal or equitable interest in the property; or recorded in the official records of the county as holding title to the property; or otherwise having control of the property; including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.

Owner's Agent – The Person designated by the Owner to be the agent required by Section 5.75.060 A.5.

Person – Any individual, firm, corporation, association, partnership, cooperative or governmental agency.

Premises – A lot, plot or parcel of land, easement or public way, including any structures thereon.

Rent – Payments of cash or other forms of consideration made periodically by an Occupant to an Owner, Owner's Agent or Manager in return for the use of a Rental Dwelling.

Rental Dwelling – A Dwelling, or portion of a Dwelling, designed for or used for human habitation and offered for Rent.

Rental License – A license issued by the City permitting a Rental Dwelling to be rented and/or occupied by Persons other than the Owner and the Owner's immediate family, and subject to the terms set forth in this Chapter.

Rooming Unit – Any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living, but not for cooking purposes.

(History: Ord. RLI-3120 §2, 2016)

Effective on: 2/23/2016

5.75.030 Applicability.

A. Applicability – The provisions of this Chapter shall apply to all Rental Dwellings as defined by this Chapter. One (1) Rental License shall be issued for each Rental Dwelling building under common ownership and shall be deemed to cover all units therein under common ownership. In the event any Rental Dwelling building has different ownership for different units therein, each Owner shall be required to obtain a separate Rental License. *(For example, if each Dwelling Unit of a Duplex is owned by separate Owners, each Owner must obtain a separate Rental License.)*

B. Exemptions – The provisions of this Chapter shall not apply to the following, or to other uses that, in the sole discretion of the Director, are similar:

1. Hotels and motels licensed by the State of Kansas;
2. Convents;
3. Monasteries;
4. Parish houses or rectories;
5. Mosques;
6. Temples;
7. Synagogues;
8. Hospitals;
9. Nursing homes and assisted living facilities; and
10. Jails.

C. City Authority – The City shall have authority to exercise its powers under this Chapter including the power to issue, renew, deny, revoke or suspend a Rental License; and to declare a Rental Dwelling in violation of this Article. These powers shall apply to any Rental Dwelling, in whole or in part.

(History: Ord. RLI-3120 §3, 2016)

Effective on: 2/23/2016

5.75.040 Rental License Requirement.

On and after July 1, 2017, the City will begin the process of issuing Rental Licenses. Upon notification, Owners of Rental Dwellings are required to make application for a Rental License and to secure such license. On and after July 1, 2019, no Person shall allow to be occupied, offer for Rent or rent to another for occupancy any Rental Dwelling unless the Owner has first obtained a Rental License under the terms of this Chapter.

(History: Ord. RLI-3120 §4, 2016)

Effective on: 2/23/2016

5.75.050 Rental Licensing Standards.

The following standards and conditions shall be met in order to hold a Rental License under this Chapter:

- A. The Rental License fee and any re-inspection fee (if any) must be timely paid.
- B. Information contained in the application shall remain current throughout the term of the Rental License, or be updated within thirty (30) days after any changes.
- C. The Rental Dwelling shall not be declared or found to be dangerous or unsafe for human habitation or condemned as hazardous or unfit for human habitation under applicable City Code or Kansas Statute.
- D. The Rental Dwelling and Premises shall remain in compliance with all City Codes materially affecting health and safety, or zoning regulations.
- E. Business entities required to register with the Secretary of State shall remain in good standing with the Secretary of State and with the State of Kansas.

(History: Ord. RLI-3120 §5, 2016)

Effective on: 2/23/2016

5.75.060 Application For Rental License; Rental License Fee.

A. Application – The Owner of each Rental Dwelling shall make written application to the City on a form furnished by the City for such purpose. The Application shall include the following information:

1. Address identifying the location of the Rental Dwelling to be licensed;
2. Number of Rental Dwelling on Premises;
3. Owner's information (as required by subsection B.);
4. Manager's information (as required by subsection B.);

5. If the Owner resides outside the Kansas City Metropolitan Area, or is a business entity without an office in the Kansas City Metropolitan Area operating with regular business hours, the Owner shall designate an Owner's Agent who shall reside in the Kansas City Metropolitan Area or which is a business entity having an office in the Kansas City Metropolitan Area with regular business hours. The Owner's Agent information shall be provided as required by subsection B. By designating an Owner's Agent, the Owner is affirming that the Owner's Agent may accept service on behalf of the Owner of all Notices to the Owner set forth this Chapter. If an Owner's Agent is terminated, dissolves, resigns or is otherwise unable or unwilling to serve as the Owner's Agent, the Owner shall designate a new Owner's Agent within thirty (30) days thereof. If the Owner fails to designate an Owner's Agent as required by this Section, the City may take action to deny, revoke, or suspend the Owner's Rental License pursuant to Section 5.75.100; and

6. The signature of the Owner, declaring under penalty of perjury that the information contained in the Rental License application is true and correct. If the Owner is a business entity, the signature of an authorized partner or officer shall be provided. (Electronic signatures in compliance with K.S.A. 16-1607 are acceptable.)

B. Owner, Manager and Owner's Agent information shall be provided as follows:

1. If the Owner, Manager or Owner's Agent is a natural person, he or she shall provide a full name, date of birth, residence address, telephone number and email address.

2. If the Owner, Manager or Owner's Agent is not a natural person, but is a corporation, limited liability corporation, nonprofit corporation, limited liability partnership, limited partnership, foreign business or any other legal or commercial entity which is required to register with the Secretary of State, the application shall include the following for each Owner, Manager or Owner's Agent, as applicable:

a. Full legal name of the entity;

b. Business address, telephone number, and email address;

c. The name, date of birth, residence address, telephone number and email address of a partner or officer responsible for the Rental Dwelling; and

d. Name, address and telephone number of the entity's registered agent;

3. A post office box will not be accepted for any address required in this subsection.

C. Rental License Fee – No application shall be considered complete without full payment of the required Rental License fee. The full amount of the Rental License fee shall be required regardless of the time of year in which the application is made. There shall be no refund or waiver in any case when a licensed Rental Dwelling is no longer offered for Rent prior to the end of the licensing term, or when the Rental License is revoked as provided for under this Chapter. A fee schedule pertaining to Rental License fees shall be fixed by the City Manager, pursuant to the Planning and Development Fee and Cost Recovery Policy as adopted by the Governing Body, and the City Manager or their designee may establish any and all policies or waivers related to the same.

(History: Ord. CM-3433 §1, 2023; Ord. RLI-3120 §6, 2016)

Effective on: 2/23/2016

5.75.070 Issuance; Renewal.

A. Issuance – Upon satisfaction of all application, fee payment and inspection requirements, the City shall issue a Rental License to the Owner, unless the Rental License is or has been otherwise denied, refused, revoked or suspended pursuant to Section 5.75.100. The Rental License shall provide the license number, license expiration date, Rental Dwelling address(es), and identity of the Owner and, as applicable, the Manager and Owner's Agent.

1. The issuance of a Rental License shall not be construed to be a license for, or an approval of, any violations of any of the provisions of this Chapter or of any other City Code.

B. Renewal – All Rental Licenses issued under this Chapter shall be renewed prior to the expiration date indicated on the Rental License. Licenses are initially issued and then renewed biennially (once every two years). All Owners shall apply for renewal on a form provided by the City. No renewal shall be granted without payment of the required Rental License fee.

(History: Ord. RLI-3120 §7, 2016)

Effective on: 2/23/2016

5.75.080 Rental License Not Transferable.

A. A Rental License issued hereunder is not transferable to a new Owner.

B. When an Owner conveys title to a Rental Dwelling to another, the Owner conveying title shall, on or before the day of such transfer, notify the City in writing of the name, address and phone number of the new Owner.

C. A new Owner shall submit an application for a Rental License in accordance with this Chapter (including Rental License fee) no more than thirty (30) days from the date of taking title to the property, provided a Rental License is still required for the property.

(History: Ord. RLI-3120 §8, 2016)

Effective on: 2/23/2016

5.75.090 Duties of Licensee.

A. Every Rental Dwelling licensee shall notify the City (in writing or via the City's on-line registration) of any change of information contained in the last Rental License application filed with the City within thirty (30) days after the changed information.

B. The Owner of a Rental Dwelling shall, prior to the time of sale of the Rental Dwelling, notify the buyer in writing of all unabated orders and violation notices issued by the City for the Rental Dwelling, as well as the requirement that the Rental Dwelling, upon acquisition by a new Owner, must be licensed with the City. A copy of the notification shall be provided to the City within five (5) days of providing the notification to the buyer. Time of sale is the time when a written purchase agreement is executed by the buyer or, in the absence of a purchase agreement, upon the execution of any document providing for the conveyance of the Rental Dwelling.

(History: Ord. RLI-3120 §9, 2016)

Effective on: 2/23/2016

5.75.100 Denial, Revocation or Suspension of Rental License.

After issuing notice and giving an opportunity to be heard, the City may deny, suspend or revoke a Rental License as follows:

A. Notice – The City will issue written notice to the Owner that the Rental License will be denied, suspended or revoked and the reason(s) therefore, unless the Owner makes a timely request for a hearing by filing a hearing request within ten (10) calendar days after being served said notice. The notice of denial, revocation or suspension shall be served upon the Owner in person or by certified mail. It shall not be a defense to any administrative action taken that the Owner did not receive the notice, provided it was served in compliance with the information on file from the last rental application (or any supplement thereof). The notice shall provide:

1. The effective date of the denial, suspension or revocation and the address(es) or other identifying criteria of the Rental Dwelling(s) affected by the denial, suspension or revocation;
2. The specific reasons for the denial, revocation or suspension, including copies of any applicable inspection reports;
3. A statement that any rental of the Rental Dwelling while the Rental License is denied, suspended or revoked may subject the Owner to prosecution; and
4. A description of how to request a hearing as set out below.

B. Hearing Request – Any request for hearing shall be in writing and shall set forth in sufficient detail why the Owner believes that City's Notice of Denial, Suspension or Revocation was issued in error, or why the proposed action is excessive, inappropriate, or unreasonable. The request for hearing will be filed with the Director, and shall stay any administrative enforcement action under this Chapter until the Director has issued a final order. If the Owner fails to make a timely request for a hearing, the Director shall deny, suspend or revoke the Rental License in accordance with the notice.

C. Hearing – Upon receipt of a timely request for a hearing, the Director shall set the matter for hearing before the Director (or designee). After the hearing, the Director has the authority to deny, revoke or suspend the Rental License if:

1. There are City Code violations on the Premises; or
2. The Owner has failed to comply with any requirements of this Chapter.

D. Appeals – Persons aggrieved by a decision of the Director may appeal as set out in Section 5.75.130.

E. Dangerous or Unsafe Conditions – Notwithstanding the procedure for denial revocation or suspension set out above, whenever a Rental Dwelling is determined by the Code Official to be dangerous or unsafe pursuant to applicable City Code or Kansas Statutes, the Rental License shall immediately be suspended on the effective date of said determination, and the Rental Dwelling shall not be occupied until after an inspection by the Code Official and approval of the remedy of any conditions that caused the dangerous or unsafe condition.

(History: Ord. RLI-3120 §10, 2016)

Effective on: 2/23/2016

5.75.110 Rental Inspection Program.

A. Exterior Inspection – Prior to the issuance of a Rental License or any renewal thereof, the City shall conduct an exterior inspection of the Premises to determine compliance with this Chapter. Thereafter, exterior inspections may be conducted with such frequency as the City, in its sole discretion, determines to be necessary or feasible.

1. Exterior inspections may include an inspection of the exterior of all buildings on the Premises and all common areas.
2. Exterior inspections shall be conducted by the City at all reasonable hours, and may be conducted with or without notice to the Owner, Owner's Agent, Manager or Occupants.

3. The City shall develop an inspection protocol and standard inspection checklist for all exterior inspections and shall ensure that the inspections are minimally intrusive. At the time of the issuance of a Rental License pursuant to this Chapter, the City will provide the licensee with information on the minimum code requirements for exterior maintenance of Rental Dwellings. Nothing contained herein, or in the information provided to licensees, shall be construed to relieve the Owner or Occupants of responsibility for compliance with all applicable City Codes.

B. Notice of Violation – If an exterior inspection reveals Code violation(s), the City shall serve a Notice of Violation upon the Owner or the responsible Person under the requirements of the applicable City Code.

C. Non-compliance – Failure to correct any violation(s) by the corrective action date set forth in a Notice of Violation may result in the revocation or suspension of the Rental License and/or municipal court prosecution, as well as abatement of the violation by the City and assessment of associated charges when permitted by City Code or Kansas Statute.

D. Right of Entry – If entry onto the Premises for purposes of inspection is refused, the City shall have recourse to every remedy provided by law to secure entry, including but not limited to, application for an administrative search warrant.

(History: Ord. RLI-3120 §11, 2016)

Effective on: 2/23/2016

5.75.120 Notices.

Unless personal or certified mail is specified, notices required by this Chapter shall be deemed sufficient when sent by first class mail to the address(es) specified in the last Rental License application filed (or any supplement thereof). If the Rental Dwelling is not licensed pursuant to this Chapter, notice is deemed sufficient if sent by first class mail to the Owner's address of record with the Johnson County Department of Records and Tax Administration. Notices so mailed are sufficient whether actually received or returned.

(History: Ord. RLI-3120 §12, 2016)

Effective on: 2/23/2016

5.75.130 Administrative Appeal Procedure.

A. Following any denial, suspension or revocation of a Rental License (including a renewal) by the Director as outlined in Section 5.75.100, an Owner may appeal on the issue of whether the Rental License was properly denied, suspended or revoked. The Owner shall submit a written request for appeal to the City Clerk within ten (10) calendar days from the date of the final notice of denial, suspension or revocation. The request shall contain a statement of the grounds for the appeal. The appeal shall be conducted within seven (7) business days of receipt of the written request, unless extended by the City for good cause shown.

B. The appeal shall be conducted by an appeals officer designated by the City Manager. The appeals officer shall consider and review all relevant evidence and argument.

C. The scope of the appeal shall be limited to whether the City's denial, suspension or revocation of the Rental License was within the scope of its authority, supported by substantial competent evidence, and not arbitrary or capricious. The review shall be informal and not subject to the rules of civil and/or criminal procedure.

D. The appeals officer shall render a written decision no later than ten (10) business days after the review, unless extended by the City for good cause shown, and may affirm, modify or reverse the action by Director. The written decision may be personally served upon the Owner or mailed first class to the Owner's address specified in the last Rental License application filed (or any supplement thereof).

(History: Ord. RLI-3120 §13, 2016)

Effective on: 2/23/2016

5.75.140 Unlawful Operation of Rental Dwelling.

A. It shall be unlawful for any Person to fail to comply with any provision of this Chapter. A Person who allows to be occupied or rents to another any Rental Dwelling without a Rental License as required by this Chapter is guilty of a misdemeanor punishable as provided in Section 1.12.010 of the Overland Park Municipal Code. Each day that a Person fails to comply, or fails to maintain a Rental License as required by this Chapter, shall constitute a separate offense.

B. Whenever a Rental Dwelling has been rented without a Rental License, the City may serve a Notice of Violation upon the Owner by personal service or by certified mail to the address of record with the Johnson County Department of Records and Tax Administration. The Notice of Violation shall provide notice of the following:

1. The Rental Dwelling has been rented without a Rental License;
2. The Owner must obtain a Rental License by a date certain in order for the Rental Dwelling to remain occupied;
3. A statement that any rental of the Rental Dwelling or the affected Dwelling Units while the Rental License is revoked or suspended may subject the Owner to prosecution; and
4. Each day that the Owner fails to obtain a Rental License as required by this Chapter shall constitute a separate offense and is punishable as provided in Section 1.12.010 of the Overland Park Municipal Code.

C. If the Owner fails to comply with the Notice of Violation, the City may issue a Notice to Appear, setting a date and time for appearance in Municipal Court. In addition, the City may prominently post a notice on the affected Premises indicating that:

1. The Rental Dwelling is not licensed and is in violation of Chapter 5.75 of the Overland Park Municipal Code;
2. A statement that any rental of the Rental Dwelling or the affected Dwelling Units while the Rental License is revoked or suspended may subject the Owner to prosecution; and
3. It shall be unlawful for any Person to deface or remove a posted notice from an unlicensed Rental Dwelling. The unlawful removal of a posting shall constitute a public offense, punishable as provided in Section 1.12.010 of the Overland Park Municipal Code.

D. It shall be unlawful for any Person to deface or remove a posted notice from an unlicensed Rental Dwelling. The unlawful removal of a posting shall constitute a public offense, punishable as provided in Section 1.12.010 of the Overland Park Municipal Code.

(History: Ord. RLI-3120 §14, 2016)

Effective on: 2/23/2016

5.75.150 Remedies in This Chapter Are Not Exclusive.

The remedies provided in this Chapter are not exclusive. They are in addition to and do not supersede or preempt other remedies such as condemnation, written violation orders and warnings and criminal charges for violation of substantive provisions of any City or State Code relating to housing maintenance, fire safety, building codes, zoning, health and the like. Further, the remedies in this Chapter do not supersede or affect the legal rights and remedies of landlords or tenants provided under State law.

(History: Ord. RLI-3120 §15, 2016)

Effective on: 2/23/2016

TITLE 6 - ANIMALS

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6.04 LICENSING AND REGISTRATION OF DOGS AND CATS

Contents:

- 6.04.010 Dog/Cat License Fee.**
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- 6.04.030 Registration - Tags.**
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- 6.04.040 Collar or Harness Required.**
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- 6.04.070 Enumeration of Animals.**
- 6.04.080 Fees to General Fund.**

6.04.090 Severability.**6.04.010 Dog/Cat License Fee.**

- A. There shall be a Dog/Cat License fee imposed upon the owners of each dog and cat of the age of 6 months or over, attaining such age during the license year. This fee may be paid in one, two, or three year increments. The City Manager is hereby authorized to set fees and fee related policies for the Dog/Cat License.
- B. In no event shall a Dog/Cat License be issued for a dog or cat without proof of current rabies vaccination.
- C. The Dog/Cat License year shall be from January 1st through December 31st of each year. The Dog/Cat License fee shall be due and payable before June 30th of each year.
- D. Dogs or cats shall be licensed within 30 days after being brought into the City or attaining 6 months of age.
- E. Failure to pay the Dog/Cat License fee within times prescribed herein constitutes a violation of this Section. The Dog/Cat License fee for those dogs or cats subject to licensing for 6 months or less of the Dog/Cat License year shall be prorated at half of the annual Dog/Cat License fee amount.

(History: Ord. DAC-3486 §1, 2025; Ord. DAC-3436 §1, 2023; Ord. DAC-3329 §1, 2021; Ord. DAC-2771 §1, 2009; DAC-2211 §1, 2000; DAC-1675 §1, 91; DAC-1679 §1, 91; DAC-1311 §1, 85; DAC-1311 §1, 85; DAC-711 §1, 72; DAC-697 §1, 72)

6.04.020 Penalty for Overdue Dog/Cat License Fee.

If the Dog/Cat License fee required by [6.04.010](#) is not paid within the times provided in that Section, the City Manager is hereby authorized to set an over due penalty that will apply in addition to the normal Dog/Cat License fee beginning July 1.

(History: Ord. DAC-3436 §2, 2023; Ord. DAC-3329 §2, 2021; Ord. DAC-2211 §2, 2000; DAC-1675 §2, 91; DAC-697 §2, 72)

6.04.030 Registration - Tags.

The owner, keepers or harborers of any dog or cat shall cause the same to be registered at the office of the City Clerk. The registration shall contain the name and address and telephone number of the animal's owner, keeper or harborer, the animal's breed, name, sex, whether spayed or neutered, whether microchipped, color and description and such other information as may be deemed necessary. Subject to the provisions of [6.04.060](#), the City Clerk or authorized assistant, shall upon payment of the license fee, issue a suitable tag bearing the registration number.

(History: Ord. DAC-3388 §1, 2022; Ord. DAC-3329 §3, 2021; Ord. DAC-1679 §2, 91; DAC-697 §3, 72)

6.04.035 Violation of 6.04.030 - Penalty.

Every person who is convicted of a violation of [6.04.030](#) shall be punished by imprisonment for not more than 30 days or by a fine in the amount of \$50 for the first violation within the period covered in the current licensing year and the preceding licensing year; \$100 for the second violation within said period; \$150 for a third violation within said period; \$200 for a fourth violation within said period; and \$500 for a fifth and subsequent violation within said period; or by both such fine and imprisonment. Provided, however, no person shall be eligible for a parole or suspension of any part of said fine, except that portion of any fine or combination of fines that are assessed from the same set of operative facts that exceed \$200 may be suspended for not less than 12 months on the condition the violator have no further violations of the animal control laws during that period.

(History: Ord. DAC-3329 §4, 2021; Ord. DAC-1735 §1, 92; DAC-1679 §3, 91; DAC-1091 §1, 80)

6.04.040 Collar or Harness Required.

The owner, keeper or harbinger of any dog or cat shall cause the same to wear a collar or harness while such animal is outside the dwelling of the owner, keeper or harbinger. The tag required in [6.04.030](#) shall be securely affixed to the collar or harness of each dog or cat registered. The tag shall be situated on the collar or harness in such a manner that it may at all times be easily visible to law enforcement officers or animal control officers of the city. Replacement tags shall be issued for \$1.00 each.

(History: Ord. DAC-2211 §3, 2000; DAC-1679 §4, 91; DAC-697 §4, 72)

6.04.045 Presentation of Animal.

The owner, keeper or harbinger of any dog or cat shall physically produce the animal for observation, identification or inspection when requested to do so by a City animal control officer or law enforcement officer investigating a violation of the animal control and/or welfare laws of the City, provided the officer has probable cause to believe a crime or violation of the animal control laws has been committed. Failure to do so is a violation of this title.

(History: Ord. DAC-1729 §1, 92)

6.04.050 Number of Dogs and Cats Permitted; Permits.

Except as otherwise provided in Section [6.04.051](#), the owning, keeping or harboring of any combination of 4 dogs and/or cats upon any premises or property, or in any dwelling or living quarters of any type within the City is permitted, provided:

A. **Special Animal Permit.** Any person who desires to own, keep, or harbor more than any combination of 4 dogs and/or cats may apply to the City Clerk for an annual "Special Animal Permit" that shall upon issuance permit the applicant to own, keep or harbor the animals specifically allowed in that Special Animal Permit.

1. Criteria. All applicants must adequately show that: (1) special circumstances exist that justify the keeping of the subject animals, (2) the keeping of additional animals will not create a nuisance in the surrounding neighborhood, (3) humane care will be provided,

and (4) the premises where the animals are kept is suitable for the keeping of multiple animals and is in conformity with all City zoning requirements. The criteria to be evaluated include, without being limited to, the following:

- a. The animals will be kept or maintained at all times in a safe and sanitary manner.
- b. The quarters in which such animals are kept or confined will be adequately lighted and ventilated and are so constructed and maintained that they can be kept in a clean and sanitary condition.
- c. The health and well-being of the animals will not in any way be endangered by the manner of keeping or confinement.
- d. The keeping of such animals will not harm the surrounding neighborhood or disturb the peace and quiet of the surrounding neighborhood.
- e. The keeping of such animals will not cause fouling of the air by offensive odors and thereby create or cause unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the animals are kept or harbored.
- f. The animals will not unreasonably annoy humans, endanger the life, health or safety of other animals or persons or substantially interfere with the rights of citizens to the enjoyment of life or property.
- g. The animals will not repeatedly run or be found at large, will not damage or deposit excretory matter upon the property of anyone other than their owner, and will not chase vehicles or molest or intimidate pedestrians or passersby.
- h. The animals will not make disturbing noises, including but not limited to, continued and repeated or untimely howling, barking, whining or other utterances causing unreasonable annoyance, disturbance or discomfort to neighbors and others in close proximity to the premises where the animals are kept or harbored, or otherwise be offensive or dangerous to the public health, safety or welfare, by virtue of their behavior, number, type or manner of keeping.
- i. The applicant, or any person who will share in the care, custody and control of the animals, is not currently in violation of, or has not previously violated any applicable City, state or federal laws, codes, rules or regulations, including, but not limited to, those pertaining to the care and control of animals and the maintenance of their property, which would reflect adversely on their ability to fully comply with the conditions of the subject permit.

2. Application.

- a. The City Clerk shall deny any application where the applicant fails to show proof of the aforementioned requirements or an examination of the documentation submitted by the applicant, or an investigation, by the Animal Control Division of the Police Department, or both, reveals that in the opinion of the Animal Control Division the applicant has failed to meet the requirements of this Section.
- b. Any application for up to 4 dogs, or 4 cats, or 3 dogs and 1 cat, or 3 cats and 1 dog, shall be required to show proof of meeting the required standards by clear and convincing evidence. Any application for more than 4 dogs or cats, or any combination thereof in excess of four (4), shall be required to show proof of meeting the required standards beyond a reasonable doubt.

- c. The Animal Control Division shall submit a written report of its investigation stating the factual basis for its recommendation to grant or deny any application. The Animal Control Division shall consider the comments of neighbors, past violations by applicant, the size, condition and location of the area where the animals will be kept, the size of the animals to be kept, past complaints concerning the applicant, the burden of proof and the criteria set forth in this Section, or any other factors relative to the issue of keeping additional animals.
 - d. The City Clerk shall establish an application process to be followed by all individuals seeking a Special Animal Permit. The Special Animal Permit shall be issued for the period from January 1st through December 31st of each year. The City Manager is hereby authorized to set fees and fee related policies for the Special Animal Permit. All fees shall be nonrefundable and nontransferable. The Special Animal Permit shall be issued for the individual animals listed in the application and shall not be transferable to other animals. Except for Special Animal Permits required for the keeping of more than 2 fostered animals, should an animal subject to the Special Animal Permit be replaced, a new application and Special Animal Permit shall be required, but no new Special Animal Permit fee shall be required. The fact an individual has previously been issued a Special Animal Permit may be considered but shall not be controlling in the City Clerk's decision to issue a Special Animal Permit for a different animal. Nothing in this Section shall exempt or except any applicant or any other person from the registration, vaccination or any other requirement of this Chapter.
- B. Animal Breeder Permit. The City Clerk may issue an annual Animal Breeder Permit to any person who keeps dogs or cats for breeding or selling on a commercial basis within the City. A permit must be obtained for each animal the breeder intends to have bred. The applicant must be in conformity with the City zoning ordinances and state laws, not have been convicted of violating the cruelty or animal welfare laws of this or any other jurisdiction, and make a satisfactory showing that the area for housing the animals will provide a humane standard of care and will not constitute a nuisance to the surrounding neighborhood. The Animal Breeder Permit shall be issued for a one-year period from January 1st through December 31st of each year. The City Manager is hereby authorized to set fees and fee related policies for the Animal Breeder Permit. Notwithstanding, all animals owned, kept or harbored pursuant to this paragraph that are 6 months of age or older must be licensed in accordance with this Chapter.
- C. Animal Fostering.
- 1. Any resident wanting to foster a dog or a cat within the City will need to provide appropriate paperwork from a state licensed adoption shelter or Animal Rescue Organization. The Resident will only be allowed to foster the animal for a total of 180 days before being required to license it with the City.
 - 2. Fostered animals shall count toward the 4 total animals allowed under Section A.
 - 3. In no event may a dangerous animal as defined in Section 6.10.010 be fostered within the City.
- D. Permit Revocation. Subject to the appeal process set forth in Section 6.04.055, the permits described in this Section may be revoked by the City Clerk upon a showing that; (1) the animal's place of keeping constitutes a nuisance to the surrounding neighbors, (2) humane

standards of care are not being met by the permittee, (3) a violation of City zoning regulations has occurred, or (4) the permittee had provided false information in their application.

E. Definitions.

1. "Nuisance" shall be defined as any act which is unreasonably annoying or vexatious to another or substantially interferes with the rights of others and shall include, but not be limited to, obnoxious odors, excessive noise, and creation of an environment attractive to other animals or insects. More than three substantiated violations of this title within a twelve-month period will automatically constitute a nuisance.
2. "Humane standards of care" shall be defined to include, but not be limited to, accessibility of the animal to food and water, proper medical attention, proper shelter from the elements, and cleanliness in animal waste areas with regular waste removal.
3. "Special circumstances" shall be defined as any unusual, extraordinary and exceptional situation or condition whereby the strict application of the numerical limits set forth in this Section would be contrary to the intent, purposes and objectives of such limitations and would be contrary to the public interest and welfare.
4. "Animal Rescue Organization" shall be defined as a licensed non-profit organization that specializes in rescuing, caring for, and rehoming pets.

F. Service Animals. The provisions of this Section 6.04.050 shall not be applicable to service animals. For the purposes of this Section, service animals shall be animals providing the services specified in K.S.A. 39-1103 et seq.

(History: Ord. DAC-3486, §2, 2025; Ord. DAC-3436 §3, 2023; Ord. DAC-2987 §1, 2013; DAC-2693 §1, 2008; DAC-2399 §1, 2002; DAC-2146 §1, 99; DAC-1833 §1, 94; DAC-1735 §2, 92; DAC-1679 §5, 91; DAC-1511 §1, 88; DAC-1402 §1, 86; DAC-1385 §1, 86; DAC-1311 §2, 85; DAC-880 §1, 76; DAC-711 §2, 72)

6.04.051 Number of Dogs and Cats Permitted on Properties Annexed by Ordinance No. A-2367 or Ordinance No. A-2719; Permits.

The owning, keeping or harboring of dogs and cats upon any premises or property, or in any dwelling or living quarters of any type within that portion of the City annexed by either Ordinance No. A-2367 or Ordinance No. A-2719 shall be permitted as follows for so long as the property bears a county zoning designation. On any tract 20 acres or larger, an aggregate total of 7 adult cats or dogs, more than one year old, may be kept, boarded, bred or trained, whether or not for commercial gain or as pets. Provided:

- A. Special Animal Permit. Any person who desires to own, keep, or harbor more than the number of dogs or cats permitted above may apply to the City Clerk for an annual Special Animal Permit that shall upon issuance permit the applicant to own, keep or harbor the animals specifically allowed in that Special Animal Permit.
1. Criteria. All applicants must adequately show that: (1) special circumstances exist that justify the keeping of the subject animals, (2) the keeping of additional animals will not create a nuisance in the surrounding neighborhood, (3) humane care will be provided, and (4) the premises where the animals are kept is suitable for the keeping of multiple

animals and is in conformity with all applicable City zoning requirements. The criteria to be evaluated include, without being limited to, the following:

- a. The animals will be kept or maintained at all times in a safe and sanitary manner.
- b. The quarters in which such animals are kept or confined will be adequately lighted and ventilated and are so constructed and maintained that they can be kept in a clean and sanitary condition.
- c. The health and well-being of the animals will not in any way be endangered by the manner of keeping or confinement.
- d. The keeping of such animals will not harm the surrounding neighborhood or disturb the peace and quiet of the surrounding neighborhood.
- e. The keeping of such animals will not cause fouling of the air by offensive odors and thereby create or cause unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the animals are kept or harbored.
- f. The animals will not unreasonably annoy humans, endanger the life, health or safety of other animals or persons or substantially interfere with the rights of citizens to the enjoyment of life or property.
- g. The animals will not repeatedly run or be found at large, will not damage or deposit excretory matter upon the property of anyone other than their owner, and will not chase vehicles or molest or intimidate pedestrians or passersby.
- h. The animals will not make disturbing noises, including but not limited to, continued and repeated or untimely howling, barking, whining or other utterances causing unreasonable annoyance, disturbance or discomfort to neighbors and others in close proximity to the premises where the animals are kept or harbored, or otherwise be offensive or dangerous to the public health, safety or welfare, by virtue of their behavior, number, type or manner of keeping.
- i. The applicant, or any person who will share in the care, custody and control of the animals, is not currently in violation of, or has not previously violated any applicable City, state or federal laws, codes, rules or regulations, including, but not limited to, those pertaining to the care and control of animals and the maintenance of their property, which would reflect adversely on their ability to fully comply with the conditions of the subject permit.

2. Application.

- a. The City Clerk shall deny any application where the applicant fails to show proof of the aforementioned requirements or an examination of the documentation submitted by the applicant, or an investigation, by the Animal Control Division of the Police Department, or both, reveals that in the opinion of the Animal Control Division the applicant has failed to meet the requirements of this Section.
- b. Any application shall be required to show proof of meeting the required standards beyond a reasonable doubt.
- c. The Animal Control Division shall submit a written report of its investigation stating the factual basis for its recommendation to grant or deny any application. The Animal Control Division shall consider the comments of neighbors, past violations by applicant, the size, condition and location of the area where the animals will be kept, the size of the animals to be kept, past complaints concerning the applicant, the

burden of proof and the criteria set forth in this Section, or any other factors relative to the issue of keeping additional animals.

- d. The City Clerk shall establish an application process to be followed by all individuals seeking a Special Animal Permit. The Special Animal Permit shall be issued for the period from January 1st through December 31st of each year. The City Manager is hereby authorized to set fees and fee related policies for the Special Animal Permit. All fees shall be nonrefundable and nontransferable. The Special Animal Permit shall be issued for the individual animals listed in the application and shall not be transferable to other animals. Except for Special Animal Permits required for the keeping of more than 2 foster animals, should an animal subject to the Special Animal Permit be replaced, a new application and Special Animal Permit shall be required, but no new Special Animal Permit fee shall be required. The fact an individual has previously been issued a Special animal Permit may be considered but shall not be controlling in the City Clerk's decision to issue a Special Animal Permit for a different animal. Nothing in this Section shall exempt or except any applicant or any other person from the registration, vaccination or any other requirement of this Chapter.
- B. Permit Revocation. Subject to the appeal process set forth in Section 6.06.055, the permits described in this Section may be revoked by the City Clerk upon a showing that: (1) the animal's place of keeping constitutes a nuisance to the surrounding neighbors, (2) humane standards of care are not being met by the permittee, (3) a violation of any applicable zoning regulations has occurred, or (4) the permittee has provided false information in their application.
- C. Definitions. The terms "nuisance," "humane standards of care" and "special circumstances" shall have the meanings set forth in Section 6.04.050.
- D. Kennels Previously Approved by County. Any person who, prior to annexation into the City, obtained a conditional use permit from Johnson County for a kennel, shall be allowed to keep dogs and cats in greater numbers than set forth above in accordance with the terms of such conditional use permit. Provided, however, any such person may apply for a "special animal permit" as set forth above.
- E. Service Animals. The provisions of this Section 6.04.051 shall not be applicable to service animals. For the purposes of this Section, service animals shall be animals providing the services specified in K.S.A. 39-1103 et seq.

(History: Ord. DAC-3486 §3, 2025; Ord. DAC-3436 §4, 2023; Ord. DAC-2987 §2, 2013; DAC-2693 §2, 2008; DAC-2399 §2, 2002)

6.04.055 Appeal.

- A. Any person who is denied a Special Animal Permit, an Animal Breeder Permit or an Animal Foster Home Permit, whose existing permit has been revoked, may within 10 days thereafter file a written notice or statement of appeal from said decision, ruling, action, or finding to the Overland Park Municipal Court for an administrative hearing thereon.
- B. The City Manager is hereby authorized to set an administrative hearing appeal fee. Such fee shall be paid to the Municipal Court Clerk and is required for each appeal to the Municipal Court, and no appeal shall be set for hearing until such fee has been paid.

- C. The filing of an appeal under this subsection shall not stay any action taken pursuant to this Chapter.
- D. The hearing shall be conducted by an Overland Park Municipal Court judge who will sit as an administrative judge for purposes of this Chapter. The sole issue for determination shall be whether decisions, rulings, actions, or findings of the Animal Control Officer or the City Clerk (or their respective designees) were within the scope of their authority, supported by substantial evidence, and not arbitrary or capricious in nature. The Court shall make specific findings of fact and conclusions of law in each case.

Pursuant to its role as administrative judge, the court is empowered to hold hearings, subpoena witnesses, take the testimony of any person under oath and in connection therewith, to require the production of any evidence relating to any matter being heard. In the case of the refusal of any person to comply with any subpoena issued hereunder or to testify in any matter regarding which he or she may be lawfully questioned, the court may order such person to comply with such subpoena and testify; and failure to obey the court's order may be punished by the court as contempt.

(History: Ord. DAC-3436 §5, 2023; Ord. DAC-1679 §6, 91; DAC-1385 §2, 86)

6.04.056 Appeals, Administrative Hearing.

The hearing on the appeal provided for in [6.10.160](#) shall be conducted by an Overland Park Municipal Court judge who will sit as an administrative judge for purposes of this chapter. The sole issue for determination shall be whether decisions, rulings, actions, or findings of the Chief Animal Control Officer and/or the City Clerk were within the scope of their authority, supported by substantial evidence, and not arbitrary nor capricious in nature. The Court shall make specific findings of fact and conclusions of law in each case.

(History: Ord. DAC-1385 §3, 86)

6.04.057 Subpoena Power.

Pursuant to its role as administrative judge, the court is empowered to hold hearings, subpoena witnesses, take the testimony of any person under oath and in connection therewith, to require the production of any evidence relating to any matter being heard. In the case of the refusal of any person to comply with any subpoena issued hereunder or to testify in any matter regarding which he or she may be lawfully questioned, the court may order such person to comply with such subpoena and testify; and failure to obey the court's order may be punished by the court as contempt.

(History: Ord. DAC-1385 §4, 86)

6.04.058 Inoculation against Rabies Required.

All owners, keepers and harborers of dogs and cats within the City are required to have a registered veterinarian inoculate their animal(s) for rabies and insure that the inoculation is valid at all times the animal(s) is/are within the City.

(History: Ord. DAC-2138 §1, 98)

6.04.060 Rabies Certificate Required at Time of Licensing.

No license required by this chapter will be issued until the owner, keeper or harbinger of the animal furnishes a certificate signed by a registered veterinarian, showing that the animal is currently inoculated against rabies. Recognition shall be given to a certificate which indicates a 1-year, 2-year or 3-year inoculation period for cats and dogs if duly signed by a registered veterinarian.

(History: Ord. DAC-2138 §2, 98; DAC-1679 §7, 91; DAC-879 §1, 76; DAC-697 §5, 72)

6.04.070 Enumeration of Animals.

The City Council may require an annual enumeration of all dogs and cats owned within the City. The enumeration shall account for the number and ownership of all dogs and cats owned in the city and may be compared and corrected with the records of the county.

(History: Ord. DAC-697 §6, 72)

6.04.080 Fees to General Fund.

All fees, charges, and penalties paid to or collected by any officers of the City under or pursuant to the provisions of this title shall be paid over to the city treasurer and credited to the general operating fund.

(History: Ord. DAC-697 §16, 72)

6.04.090 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not effect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-1311 §3, 85)

6.08 CONTROL AND IMPOUNDMENT OF DOMESTIC ANIMALS

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6.08.010 Ownership.

Any person owning, keeping or harboring a dog or cat for seven consecutive days shall be conclusively presumed to be the owner of such animal for purposes of this title. In addition, any person who signs a receipt for return of an animal from Animal Haven or any other animal shelter shall be presumed to be the owner, keeper or harbinger of the animal.

(History: Ord. DAC-1679 §8, 91; DAC-697 §7, 72)

6.08.020 Dog and Cat Control.

A. Dog Control. All dogs must be confined to the residential property of the owner, keeper or harbinger of said dog; provided, dogs may be taken off the residential property of the owner, keeper or harbinger when:

1. on a leash, no longer than 10 feet in length and the leash and animal are under the control of a responsible person. Whether a person is responsible shall be determined by giving due consideration to the size and temperament of the animal; provided, all dogs determined to be vicious and registered as vicious animals under the provisions of this chapter shall be muzzled when off the residential property of the owner, keeper or harbinger and shall be under the control of an adult;
2. the dog is confined in a cage or within the enclosed interior of a motor vehicle; provided, it is a violation of this Section for a dog to be transported in the open bed of a truck unless restrained in a cage or on a leash that will prevent the animal from jumping or falling off the vehicle;
3. under the control of the owner, keeper or harbinger and during the conduct of an AKC, UKC or other kennel club or organized dog club trial, show or exhibition;
4. under the control of the owner, keeper or harbinger and during the conduct of legal hunting activities within the City or during the conduct of training a dog for legal hunting activities, provided that if such training includes the discharge of a firearm, the conditions of Overland Park Municipal Code Section [11.12.155](#) must be complied with; provided further, no training for hunting purposes will be conducted on any property without the permission of the landowner upon whose property the training is occurring; provided

further that such training and/or hunting activities are prohibited from all public parks and recreational facilities.

For the purposes of this Section "confined to the residential property of the owner, keeper or harborer" shall mean, but not be limited to mean, confined either inside the residential structure of the owner, keeper or harborer, or if outside the residential structure of the owner, keeper or harborer, the dog shall be physically restrained on a chain or leash or within a suitable fence or other proper method of physical restraint from which it cannot escape or endanger public safety outside the suitable method of confinement; provided:

- a. If the dog is in the physical presence of its owner, keeper, or harborer and on its owner's, keeper's or harborer's property and under the demonstrated direct and immediate voice control of its owner, keeper or harborer, it shall be considered confined to the residential property of its owner, keeper or harborer. It shall not be considered confined to the residential property of the owner, keeper or harborer, if the dog is off the property of the owner, keeper or harborer, whether it is under the demonstrated direct and immediate voice control of its owner, keeper or harborer or not.
 - b. Dogs shall not be considered confined to the premises of the residential property of their owner, keeper or harborer if the only restraining device is an electric fence. An electric fence is defined as a fence that shocks an animal or person upon the person or animal touching it.
 - c. Dogs may be confined to the premises of the residential property of their owner, keeper or harborer by an electronic fence or an electronic collar. An electronic fence or electronic collar is defined as a fence or a collar that controls the movement of a dog by emitting an electrical shock when the animal wearing the collar nears the boundary of the owner's, keeper's or harborer's property. The collar may be controlled manually by a person or automatically in a predetermined manner. Dogs confined to residential property of the owner, keeper, or harborer, by an electronic fence or an electronic collar, shall not be permitted to be nearer than 10 feet away from any public sidewalk or property line that is contiguous to neighboring property. In addition, dogs are prohibited from being confined by an electronic fence or an electronic collar in the front yards of an owner's, keeper's or harborer's property. No dog having been found a dangerous animal by the animal control division shall be confined by an electronic fence or an electronic collar. All owners, keepers or harborers of dogs who use an electronic fence shall clearly post their property to indicate to the public that a dog is confined to the property by an electronic fence or electronic collar. Electronic collars may not be used to control a dog when it is off its owner's, keeper's or harborer's property.
5. When within a fenced closure on city-owned property under the control of the Director of Parks and Recreation, provided the owner complies with any regulations posted by the Director.

B. Cat Control. All cats must be under the control of their owner, keeper or harborer at all times. For the purpose of this Section, a cat shall be considered not under control and in violation of this Section in the following situations:

1. If a neighbor complains orally or in writing to the owner, keeper or harborer of a cat, that the cat is entering upon the neighbor's property, then the cat's presence on the neighbor's property at any time subsequent to the neighbor's complaint shall constitute a violation of this Section;
2. If a cat causes injury to persons or animals.
3. If a cat causes damage to property off its owner's, keeper's or harborer's property to include, but not limited to, breaking, bruising, tearing up, digging up, crushing or injuring any lawn, garden, flower bed, plant, shrub or tree in any manner or defecating or urinating upon any private property.

C. The provisions of this Section shall not apply to any property zoned RUR, PRUR, RLD or PRLD that is annexed into the City pursuant to Ordinance No. A-2719 unless and until the property is rezoned.

(History: Ord. DAC-2771 §2, 2009; DAC-2825 §1, 2009; DAC-2728 §1, 2008, modified during codification under authority of K.S.A. 12-3015; DAC-1679 §9, 91; DAC-1385 §5, 86; DAC-1311 §4, 85; DAC-1091 §2, 80; DAC-697)

6.08.025 Other Domestic Animals.

- A. All domestic animals, excluding dogs and cats, but including cows and horses, although not limited thereto, shall be enclosed with a fence sufficiently close, composed of posts and rails; posts and palings; posts and planks or palisades; posts and wire; rails alone, laid up in the manner commonly called a worm fence; or turf, with ditches on each side, of stone; or a hedge in existence on July 1, 1986, composed either of thorn or Osage orange.
- B. Fences required under this section are as set out in K.S.A. 29-102 et.seq (1986 Session Laws) or any amendments thereto, which are incorporated by reference as if set out in full herein.
- C. It shall be unlawful for any domestic animal except as provided in [6.08.020](#) to run at large.
- D. If any domestic animal, other than dogs or cats, break free of their lawful enclosure, and trespass on land owned by another person, the owner or occupant of the land may take into possession such animal trespassing, and keep the same until damages can be collected pursuant to K.S.A. 29-408 (1986 Session Laws).

(History: Ord. DAC-1385 §6, 86)

6.08.026 Animals Prohibited in Downtown Business District's Farmers Market.

It shall be unlawful for any person to permit, suffer or allow a dog, cat or other domestic animal to enter or remain upon any portion of the property designated as the Downtown Business District's Farmers Market, during those periods the market is open for business to include any time designated for "setting up" market displays, provided "service dogs" as defined by K.S.A. 39-1108 may be upon market property when assisting an individual.

(History: Ord. DAC-2123 §1, 98)

6.08.030 Seizure.

When a law enforcement officer or Animal Control Officer detects an animal in violation of [6.08.020](#) and [6.08.025](#), the officer shall make a reasonable attempt to determine, when possible, the owner of such animal. If the owner can be determined, such animal may still be seized and impounded in the discretion of the officer.

(History: Ord. DAC-2959 §1, 2012; DAC-2771 §3, 2009; DAC-1385 §7, 86; DAC-1311 §5, 85; DAC-697 §10(part), 72)

6.08.060 Redemption of Impounded Animal - Vaccination.

Redemption of an animal impounded under the provisions of this section shall be permitted upon payment of any pound fees and any veterinarian fees then due and owing. In the event the animal has not been vaccinated for rabies when the owner seeks to redeem the animal, the owner shall be required to sign a written acknowledgment of receipt of the animal which includes a written promise to the City to have the animal vaccinated and duly licensed with the City within seven days after receipt of the animal. If a registered veterinarian determines it would be temporarily dangerous to the health of the animal to vaccinate it during this seven-day period, the owner will be given an extension of up to 30 days after the animal's release from impoundment in which to obtain the vaccination. In either event, the license tag required by [6.04.030](#) shall be withheld pending final vaccination.

(History: DAC-1311 §7, 85; DAC-697 §10)

6.08.070 Procedure on Failure to Redeem.

The City shall have a lien against any animal seized pursuant to [6.08.030](#) for its keep. If after seven days from the date of seizure the animal has not been redeemed, the City shall have the right to dispose of the animal through sale to any private individual and apply the sale proceeds to the expense incurred in keeping the animal. If after seven days from date of seizure, the animal has not been redeemed or sold, then it may be given away or humanely destroyed unless there is good reason, in the opinion of the impounding veterinarian, to suspect the presence of rabies in such animal; it may then be retained at the discretion of the impounding veterinarian.

(History: DAC-1311 §8, 85; DAC-697 §11)

6.08.080 Damage to Property.

It shall be unlawful for the owner, keeper or harbinger of any animal to permit, suffer or allow such animal to go upon any sidewalk, parkland, or private or public property and break, bruise, tear up, dig up, crush or injure any lawn, flower bed, plant, shrub, tree or garden in any manner whatsoever, or for the animal to defecate or urinate on any such property, provided it shall not be a violation for an animal to defecate on public property if the owner, keeper or harbinger cleans the property immediately; provided it shall not be a violation for an animal to urinate on public property as long as the animal does not urinate on flower beds, shrubs, bushes, trees or other plants, not to include grass.

(History: Ord. NOI-2287 §10, 2001; DAC-1679 §11, 91; DAC-1311 §9, 85; DAC-697 §14)

6.08.085 Injury to Person or Animal.

It shall be unlawful for the owner, keeper or harbinger of any animal to permit such animal to:

- A. Cause injury to people.
- B. Bite or cause injury to any person or other animal.

(History: Ord. DAC-2771 §4, 2009)

6.08.090 Rabies Impoundment Procedures.

Except as provided in [6.08.130](#), a dog, cat, or ferret which bites, scratches, or otherwise causes an abrasion that breaks the skin of a person shall immediately be quarantined at the owner's expense by City personnel with a City authorized impounding agent or a licensed veterinarian, for a period of ten days. 1) If the owner is known and is present or is available to make arrangements, and the injury occurs during regular office hours, the animal will be impounded with a veterinarian of the owner's choice whose place of business is in Johnson County, Kansas, for a period of ten days. 2) If the injury occurs after normal business hours, and the owner is unable or unavailable to make arrangements for impounding of the animal, the animal will be impounded at a City authorized impounding agent until the next business day at which time the owner must make arrangements for the animal to be transferred to the facility of a licensed veterinarian whose place of business is in Johnson County, Kansas, for the remainder of the confinement period. The total period of confinement of the animal is to be for a period of not less than ten days from the date of the actual bite, scratch or abrasion. Any animal quarantined at the City's impound agent shall be transferred to a licensed veterinarian whose place of business is located within Johnson County, Kansas, no later than the next business day upon payment of all fees. Procedures related to the isolation of mammals other than dogs, cats and ferrets causing exposure to rabies for observation and procedures related to mammals exposed to rabies shall be in accordance with Kansas Administrative Regulations 28-1-13 and 28-1-14, or as otherwise directed by a county, state or federal health official with jurisdiction and knowledge of the same.

(History: Ord. DAC-2959 §2, 2012; DAC-2199 §1, 2000; DAC-1311 §10, 85; DAC-880 §2, 76; DAC-711 §3, 72)

6.08.100 Notice of Impoundment of Biting Animal to Chief Animal Control Officer.

In all cases of impoundment under this Section, the veterinarian or City-authorized impounding agent with whom the dog, cat, ferret or other mammal is impounded, shall give immediate written notice to the Chief Animal Control Officer that such animal has been confined and will be confined not less than 10 days nor more than 12 days.

(History: Ord. DAC-2959 §3, 2012; DAC-2771 §5, 2009; DAC-2199 §2, 2000; DAC-1311 §11, 85; DAC-711 §3(part), 72; DAC-697 §15(B), 72)

6.08.110 Notification of Owner of Impounded Animal.

If the address of the owner of the animal can be determined, the Chief of Police shall make reasonable effort to notify the owner that the animal is impounded under the provisions of 6.08.090 through 6.08.130 and the owner must redeem the animal and pay all pound fees, any veterinarian fees and any license and penalty fees then due and owing the City. Upon redemption, the owner must transfer the animal to a licensed veterinarian as required by 6.08.090.

(History: Ord. DAC-2199 §3, 2000; DAC-711 §3(part), 72; DAC-697 §15(C), 72)

6.08.120 Lien Against Animal Impounded - Sale or Disposal.

The City shall have a lien against the animal for its keep and if, after the period of impoundment provided in 6.08.090 through 6.08.130, the animal has not been redeemed by the owners, the City shall have the right to order disposal of the animal through sale to any private individual and apply the sale proceeds to the expense incurred in keeping the animal. If the animal is not redeemed or sold after the period of impoundment, it may be given away or humanely destroyed.

(History: Ord. DAC-711 §3(part), 72; DAC-697 §15(D), 72)

6.08.130 Alternatives for Confined Animal.

1. In the event the investigating officer determines:
 - A. That the animal owner has no prior animal violations; and
 - B. That the animal is not vicious nor likely to attack or bite someone else; and
 - C. That the animal had an effective rabies inoculation and was duly licensed under this title at the time of the injury, then, the animal need not be impounded in accordance with Section 6.08.090 but the following alternative procedure shall be followed:
 1. If the injured person, his/her parent, or guardian desires that the animal be impounded and agrees in writing to pay for its board during the period of impoundment, it shall be so impounded for the period specified in Section 6.08.090 notwithstanding any other provision of this title.
 2. If the injured party, his/her parent, or guardian is unwilling to agree in writing to pay for the animal's board during the period of impoundment, the animal shall be permitted to remain on the property of its owner or keeper; provided no animal shall be allowed to remain on the property of its owner or keeper under this Section unless such person signs a written agreement to keep the animal confined to the property for the period specified in Section 6.08.090 and further agrees to allow the animal to be examined periodically to determine its physical condition during the confinement period. If the owner or keeper is unwilling to sign such an agreement, the animal shall be immediately impounded in accordance with Section 6.08.090.
2. If the animal was not duly licensed with the City but otherwise met the requirements of this paragraph for home confining the animal, the animal must be confined outside the home as required by this Section, provided, should the owner license the animal during the ten day confinement period, the animal may be confined at home in accordance with the standards set forth in this Section for any remaining portion of the confinement period.
3. Animal Control officers shall have the authority to remove an animal from home confinement and place it with an animal shelter or veterinarian at any time during home confinement if the animal becomes ill during the quarantine period or the Animal Control officer develops

reasonable suspicion that any conditions of home confinement or requirements of this Code, are not being followed.

(History: Ord. DAC-2756 §1, 2009; DAC-2199 §4, 2000; DAC-1679 §12, 91; DAC-880 §3, 76; DAC-711 §3, 72)

6.08.135 Violations; Penalties Generally.

Unless specific penalties are otherwise provided herein, the following penalties shall apply. Upon a first conviction for violation of this chapter, the Court shall assess a fine of no less than \$50. Upon a second conviction, the Court shall assess a fine of no less than \$150. Upon a third or subsequent conviction, the Court shall assess a fine of no less than \$500. Provided that no prior conviction shall be considered in determining the penalty to be assessed if 24 months have elapsed between the date of the violation and the date of the conviction next immediately preceding the sentencing date.

No person shall be eligible for a parole, suspension or reduction of any part of said fine. In addition to any such fine imposed, the Court may impose a jail term of up to 30 days, except that portion of any fine or combinations of fines assessed from the same set of operative facts that exceed \$200 may be suspended for not less than 12 months on the condition the violator have no further violations of the animal control laws during that period.

(History: Ord. DAC-1735 §3, 92; DAC-1679 §12, 91)

6.08.140 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not effect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-1311 §12, 85)

6.09 ANIMAL WELFARE

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6.09.060 Severability.**6.09.005 Definitions.**

Whenever in this chapter the following terms are used, each shall have the meaning respectively ascribed in this section:

- A. **Adequate care** is normal and prudent attention to the needs of an animal, including that care which is normally necessary to maintain good health in a specific species of animal;
- B. **Adequate food** is wholesome foodstuffs suitable for the species provided at suitable intervals in a sanitary manner in quantities sufficient to maintain good health in an animal considering its age and condition;
- C. **Adequate health care** is the provision to each healthy animal of all immunizations and preventive care required to maintain good health; space adequate to allow the animal rest and exercise sufficient to maintain good health; and the provision to each sick, diseased or injured animal of necessary veterinary care or humane death;
- D. **Adequate shelter** is a structurally sound, properly ventilated, sanitary and weatherproof shelter suitable for the species, conditions and age of the animal which provides access to shade from direct sunlight and regress from exposure to inclement weather condition;
- E. **Adequate water** is a continual access to or access at suitable intervals to a supply of clean, fresh, potable water provided in a sanitary manner suitable for the species, condition and age of the animal in sufficient amounts to maintain good health in the animal.
- F. **Commercial Animal Establishment** is any pet shop, grooming shop, boarding kennel, animal exhibit, auction, riding school, stable carriage horse service, cattery, kennel, sentry or guard dog service, animal trainer, business keeping animals in stock for retail or wholesale trade or sale, or any establishment providing one or more of the principal activities of the aforementioned establishment.
- G. **Owner, keeper or harbinger** is any person who feeds, cares for, shelters or professes or exhibits ownership of an animal.

(History: Ord. DAC-1729 §2, 92)

6.09.010 Cruelty to Animals.

- 1. "Cruelty to animals" is:
 - A. Intentionally and Maliciously killing, injuring, maiming, torturing, burning or mutilating any Animal. A violation of this provision is a felony which must be charged in the District Court pursuant to K.S.A. 21-6412(b)(1);
 - B. intentionally abandoning or leaving any Animal in any place without making provisions for its proper care;
 - C. having physical custody of any Animal and intentionally failing to provide such food, potable water, protection from the elements, opportunity for exercise and other care as is needed for the health or well-being of such kind of Animal;
 - D. intentionally using a wire, pole, stick, rope or any other object to cause an Equine to lose its balance or fall, for the purpose of sport or entertainment;

- E. intentionally causing any physical injury other than the felony violations set forth in paragraph 1A above;
- F. molesting, willingly beating with a stick, chain, club or other object, burn or scald with any substance(s), administering any poisonous substance with the intent that the same shall be taken or swallowed, cruelly ill-treating, overworking or overloading, or disfiguring any Animals in the City; whether or not such Animal is owned by that person;
- G. administering any poison to a domestic animal; or
- H. exposing any poisonous substance with the intent that the same shall be taken or swallowed by any domestic animal.

This Section shall not apply to any person legally exposing poison upon their premises for the purpose of destroying coyotes or other predatory animals.

2. The provisions of this Section shall not apply to:

- A. Normal or accepted veterinary practices;
- B. bona fide experiments carried on by recognized research facilities;
- C. killing, attempting to kill, trapping, catching or taking of any Animal in accordance with the provisions of Chapter 32 or Chapter 47 of the Kansas Statutes Annotated;
- D. rodeo practices accepted by the Professional Rodeo Cowboys' Association;
- E. the humane killing of an Animal which is diseased or disabled beyond recovery for any useful purpose, or the humane killing of Animals for population control, by the Owner thereof or the agent of such Owner residing outside of a City or the Owner thereof within a City if no Animal shelter, pound or licensed veterinarian is within the City, or by a licensed veterinarian at the request of the Owner thereof, or by any officer or agent of any incorporated humane society, the operator of an Animal shelter or pound, a local or state health officer or a licensed veterinarian three business days following the receipt of any such Animal at such society, shelter or pound;
- F. with respect to farm Animals, normal or accepted practices of Animal husbandry, including the normal and accepted practices for the slaughter of such Animals for food or by-products and the careful or thrifty management of one's herd or Animals, including Animal care practices common in the industry or region;
- G. the killing of any Animal by any person at any time which may be found outside of the owned or rented property of the Owner or custodian of such Animal and which is found injuring or posing an immediate threat to any person, farm or domestic Animal;
- H. an Animal control officer trained by a licensed veterinarian in the use of a tranquilizer gun, using such gun with the appropriate dosage for the size of the Animal, when such Animal is vicious or could not be captured after reasonable attempts using other methods;
- I. laying an Equine down for medical or identification purposes;
- J. normal or accepted practices of pest control, as defined in subsection (x) of K.S.A. 2-2438a, and amendments thereto; or
- K. accepted practices of Animal husbandry pursuant to regulations promulgated by the United States Department of Agriculture for domestic pet Animals under the Animal Welfare Act, public law 89-544, as amended and in effect on July 1, 2006.

3. As used in this Section:

- A. "Animal" shall have the meaning ascribed to it in K.S.A. 21-6411, and amendments thereto.
- B. "Equine" means a horse, pony, mule, jenny, donkey, or hinny.
- C. "Maliciously" means a state of mind characterized by actual evilmindedness or specific intent to do a harmful act without a reasonable justification or excuse.
- 4. The first conviction of cruelty to Animals as described in this Section should be punished pursuant to O.P.M.C. Section [6.16.020](#).
- 5. The second or subsequent conviction of cruelty to Animals as described in this Section is a non-person felony, that must be charged in the District Court pursuant to K.S.A. 21-6412(b)(2)(B).

(History: Ord. DAC-2959 §4, 2012; DAC-2864 §1, 2010; DAC-2619 §1, 2006; DAC-1729 §3, 92; DAC-1311 §13, 85; POC-949; POC-625)

6.09.015 Illegal Ownership or Keeping of an Animal.

Illegal ownership or keeping of an animal is owning or keeping on one's premises an animal by a person convicted of unlawful conduct of dog fighting under K.S.A. 21-6414 and amendments thereto, cruelty to animals as defined in subsection (a)(1) of K.S.A. 21-6412, and amendments thereto or cruelty to animals as defined in O.P.M.C. Section [6.09.010A](#), within five years of the date of such conviction. Every person convicted of violating this Section shall be imprisoned for not more than six months or fined not to exceed \$1,000, or both such fine and imprisonment. (History: Ord. DAC-2959 §5, 2012; DAC-2619 §1, 2006)

6.09.020 Seizure and Disposition of Animals.

- A. Any public health officer, animal control officer, law enforcement officer or licensed veterinarian, or any officer or agent of any duly incorporated humane society, animal shelter or other appropriate facility, may take into custody any animal, upon either private or public property, which clearly shows evidence of cruelty to animals, as defined in [6.09.010](#) herein and when failure to do so would result in further injury or pain and suffering to the animal. Such officer, agent or veterinarian may inspect, care for or treat such animal or place such animal in the care of a duly incorporated humane society or licensed veterinarian for treatment, boarding or other care or, if it appears, as determined by an officer of such humane society or by such veterinarian, that the animal is diseased or disabled beyond recovery for any useful purpose, for humane killing.
- B. If a person is adjudicated guilty of the crime of cruelty to animals, as defined in [6.09.010](#) herein and the court having jurisdiction is satisfied that an animal owned or possessed by such person would be in the future subjected to such crime, such animal shall not be returned to or remain with such person. Such animal may be turned over to a duly incorporated humane society or licensed veterinarian for sale or other disposition.

(History: Ord. DAC-1729 §4, 92; DAC-1679 §14, 91; DAC-1311 §14, 85; POC-949 §2, 77)

6.09.025 Abuse and Neglect of Animals.

- A. No owner, keeper or harbinger of an animal shall fail to provide the animal with adequate care, adequate food, adequate water, adequate health care, and adequate shelter. Such shelter

should be clean, dry, and compatible with the condition, age and species. An animal must also have the opportunity for adequate daily exercise. This requires that an owner must offer some freedom from continuous chaining, stabling and tethering. The area where animals are kept must also be kept free from unsanitary conditions and vermin-harboring debris.

B. Tethering. For the purposes of this Section, "tethering" is the use of a chain, leash, tie, tether, rope or other device to restrain any animal to an inanimate object. It shall be unlawful to tether any animal in a manner that is inhumane, cruel, or detrimental to its welfare.

In addition to the above general requirements, the tethering of a dog shall be subject to the following conditions:

1. Dogs shall not be tethered outside except between the hours of 7:00 a.m. and 7:00 p.m., and in no such instance shall a dog be tethered for more than 30 minutes without supervision. Supervision shall mean within the visual and auditory range of the owner, without the use of electronic means.
2. Dogs shall not be tethered without access to shade when sunlight is likely to cause overheating, or appropriate shelter to provide insulation and protection against cold and dampness when the atmospheric temperature falls below 40 degrees Fahrenheit, or to tether without securing the animals water supply so that it cannot be tipped over by the tether.
3. Dogs shall not be tethered in an open area where it can be teased or provoked by persons or in an area that does not provide the dog protection from attack by other animals.
4. Dogs shall not be tethered in an area where bare earth is present and no steps have been taken to prevent the area from becoming wet and muddy in the event of precipitation.
5. Any device used for the purpose of tethering a dog shall provide the dog at least ten feet in which to run.
6. Any device used for the purpose of tethering a dog shall not be of a weight that inhibits the free movement of the dog within the area tethered.
7. Dogs shall be tethered in such a manner as to prevent injury, strangulation or entanglement on fences, trees or other man made or natural obstacles.
8. It is unlawful to attach chains or other tether restraint implements directly to a dog without the proper use of a collar, harness, or other device designed for that purpose and all such tethering devices shall be made from a material that prevents injury to the animal.

C. No person shall offer to give or give a live animal as a prize or as a business inducement or any other form of gratuity.

(History: Ord. DAC-3329 §5, 2021; Ord. DAC-2959 §6, 2012; DAC-1729 §5, 92)

6.09.035 Rescue of Animals from Vehicles.

Whenever any animal is found confined in a motor vehicle in a public place under weather conditions that endanger its life as determined by the supervisor of animal control, such is a violation of this section and the supervisor of animal control is hereby authorized, with assistance from the police which are hereby authorized to enter such vehicle and rescue such animal and thereafter impound it. A prominent written notice shall be left on or in the vehicle advising that the animal has been removed under the authority of this section and impounded.

(History: Ord. DAC-1729 §7, 92)

6.09.037 Commercial Animal Establishments.

Standards: Any person operating a commercial animal establishment shall keep and maintain the animals, and all structures, pens, or yards, tanks, ponds, or other holding areas in which the animals are kept, in such a manner as to prevent a nuisance or health hazard to humans and to avoid injury and illness to these animals. All holding areas must be properly sanitized so as to keep the animals enclosed therein free of diseases. All such animals shall be provided with a constant supply of wholesome food and water or in lieu of this, the proprietor shall prominently and publicly post and shall follow a schedule for adequate feeding and watering. A schedule shall also be posted for cleaning and maintaining cages and other holding areas at the facility. Any animal that is infected or diseased with an infectious agent shall be immediately isolated in such a manner as to prevent spread of disease to any other healthy animals, and it shall be treated immediately to prevent further condition deterioration or euthanized, and if the owner or keeper fails or refuses to provide for such, the supervisor of animal control may remove each such animal to the animal shelter for disposition. All commercial animal establishments must permit inspection of their records, premises and the animals harbored therein by animal control officers of the City, law enforcement officers, and City officials. Failure to comply with the requirements of this section shall be a violation. A conviction for violation of this section shall result in a fine of not less than \$500 and not more than \$1,000. Each day shall be considered a separate offense.

(History: Ord. DAC-1729 §8, 92)

6.09.040 Unlawful Trapping.

"Unlawful trapping" is the utilization, except for display or exhibition purposes, of any trap, net, snare, or other trapping device which does not painlessly capture or immediately kill its victim; or the utilization of any trap of the type commonly known as steel jaw, leghold traps.

(History: Ord. DAC-1729 §9, 92; DAC-1311 §16, 85; POC-881 §1, 76)

6.09.045 Trapping Coyotes in Protection of Private Property and Livestock.

- A. Notwithstanding the provisions in Section [6.09.040](#), upon request by a resident, property owner, homeowner, or homes association, the Chief of Police may find that a coyote (*Canis latrans*) has become a danger to the private property or livestock of such individual(s) and may authorize and direct the trapping of a specific targeted animal responsible for private property destruction.
- B. In the event the Chief of Police makes the finding required by subsection A, the Chief may authorize any method of trapping which is found to be humane and necessary when considered in the totality of the circumstances.

C. In the event the Chief deems trapping necessary, the resident, property owner, homeowner or homes association making the request will be responsible for the first \$250 of the costs of said trapping.

D. All trapping must occur on either City-owned property or property owned or controlled by the resident, property owner, homeowner or homes association, or on other property with the consent of the owner of the property.

(History: Ord. DAC-2797 §1, 2009)

6.09.050 Unlawful Trading in Animals.

A. The sale or giving away of chickens or ducklings younger than eight weeks of age in quantities of less than 25 to a single purchaser; or

B. The giving away of any live animal, fish, reptile, or bird as a prize for, or as an inducement to enter any contest, game, or other competition; or as an inducement to enter a place of amusement or business; or offer such animal as an incentive to enter into any business agreement whereby the offer was for the purpose of attracting trade.

(History: Ord. DAC-1311 §17, 85; POC-881 §2, 76)

6.09.060 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-1311 §18, 85)

6.10 DANGEROUS ANIMALS

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6.10.010 Definitions.

For the purposes of this chapter "**dangerous animal**" means and includes

- A. any mammal, amphibian, fish, reptile or fowl which is of a species which, due to size, vicious nature or other characteristics would constitute a danger to human life, physical well-being, or property, including but not limited to, lions, tigers, leopards, panthers, bears, wolves, wolf-hybrid, wolf-mix, Tundra Shepherd, apes, gorillas, monkeys of a species whose average adult weight is 20 pounds or more, foxes, elephants, alligators, crocodiles, and snakes which are venomous or otherwise present a risk of serious physical harm or death to human beings as a result of their nature or physical makeup including, but not limited to, boa constrictors, Madagascar ground boas, green and yellow anacondas, Cuban boas, Indian pythons, reticulated pythons, African rock pythons, Amethystine pythons, Boelen's pythons and all members of the Pythonidae family that exceed six feet in length.
- B. Any dog or cat having a disposition or propensity to attack or bite any person or animal without provocation, and causing a severe injury as defined in 6.10.050, is hereby defined as a "dangerous animal." For the purposes of this chapter, where the official records of the Chief Animal Control Officer or City Clerk indicate a dog or cat has bitten any person or persons, it shall be prima facie evidence that said dog or cat is a dangerous animal.
- C. Any Dog or Cat having been previously determined by any other City or Municipality to be a dangerous or vicious animal shall be prima facie evidence that said dog or cat is a dangerous animal, unless that determination was based solely on breed or breed mix.

Person includes any natural person, association, partnership, organization or corporation.

(History: Ord. DAC-3395 §1, 2022; Ord. DAC-3329 §6, 2021; Ord. DAC-1871 §1, 94; DAC-1735 §4, 92; DAC-1625 §1, 89; DAC-1494 §1, 87; DAC-1442 §1, 87; DAC-1426 §1, 87; DAC-1309 §1, 85; DAC-1284; DAC-880)

6.10.020 Prohibition.

Except as provided in [6.10.030](#) and [6.10.040](#), no person shall own, keep, or harbor any dangerous animal in the City of Overland Park.

(History: Ord. DAC-3329 §7, 2021; Ord. DAC-1309 §2, 85)

6.10.030 Exceptions; Permit and Registration Requirements.

Any person or organization which falls into one of the following subsections shall be permitted to own, harbor or have charge, custody, control, or possession of any animal described in 6.10.010(A) hereof, provided the person or organization has first secured a permit under 6.10.070; shall also be required to register their animals in accordance with the provisions of this ordinance and Title 6 of the Overland Park Municipal Code:

- A. The keeping of such animals in zoos, bona fide educational or medical institutions, museums or any other place where they are kept as live specimens for the public to view, or for the purpose of instruction or study.
- B. The keeping of such animals for exhibition to the public of such animals by a circus, carnival or other exhibit or show.
- C. The keeping of such animals in a bona fide, licensed veterinary hospital for treatment.
- D. Commercial establishments possessing such animals for the purpose of sale or display.
- E. The keeping of a dangerous dog as defined in 6.10.010(B) or (C) herein shall be subject to the following mandatory requirements:
 - 1. *Leash and Muzzle.* No person shall permit a dangerous dog to go outside its kennel or pen unless such dog is securely leashed with a leash no longer than four (4) feet in length. No person shall permit a dangerous dog to be kept on a chain, rope or other type of leash outside its kennel or pen unless a person is in physical control of the leash. Such dogs may not be leashed to inanimate objects such as trees, posts, buildings, etc. In addition, all dangerous dogs on a leash outside the animal's kennel must be muzzled by a muzzling device sufficient to prevent such dog from biting persons or other animals.
 - 2. *Confinement.* All dangerous dogs shall be securely confined indoors or in a securely enclosed and locked pen or kennel, except when leashed and muzzled as above provided. Such pen, kennel, or structure must have secure sides and a secure top attached to the sides. All structures used to confine dangerous dogs must be locked with a key or combination lock when such animals are within the structure. Such structure must have a secure bottom or floor attached to the sides of the pen or the sides of the pen must be embedded in the ground no less than two (2) feet. All structures erected to house dangerous dogs must comply with all zoning and building regulations of the City. All such structures must be adequately lighted and ventilated and kept in a clean and sanitary condition.
 - 3. *Confinement Indoors.* No dangerous dog may be kept on a porch, patio or in any part of a house or structure that would allow the dog to exit such building on its own volition. In addition, no such animal may be kept in a house or structure when the windows are open or when screen windows or screen doors are the only obstacle preventing the dog from exiting the structure.
 - 4. *Signs.* All owners, keepers or harborers of dangerous dogs within the City shall display in a prominent place on their premises a sign easily readable by the public using the words "Beware of Dog." In addition, a similar sign is required to be posted on the kennel or pen of such animal.
 - 5. *Insurance.* All owners, keepers or harborers of dangerous dogs must, within ten (10) days of the effective date of this ordinance, provide proof to the City Clerk of public liability insurance in a single incident amount of \$300,000.00 for bodily injury to or death of any person or persons or for damage to property owned by any persons which may result from the ownership, keeping or

maintenance of such animal. At the time of initial registration, the owner, keeper or harbinger must present proof to the City Clerk of the required insurance. At the time of subsequent registration, the owner, keeper or harbinger must show proof of insurance for the present registration period and proof that there was insurance coverage throughout the period of the prior registration year.

In the event said liability insurance is canceled, lapsed, or for any other reason becomes non-enforceable, said owner, keeper, or harbinger shall be in violation of the provisions of this ordinance and subject to the penalties provided herein.

6. *Identification Photographs.* All owners, keepers or harborers of dangerous dogs must within ten (10) days of being designated such provide to the City Clerk two color photographs of the registered animal clearly showing the color and approximate size of the animal.
7. *Reporting Requirements.* All owners, keepers or harborers of dangerous dogs must, within ten (10) days of the incident, report the following information in writing to the City Clerk as required hereinafter:
 - a. The removal from the City or death of a dangerous dog.
 - b. The new address of the dangerous dog or owner should the owner move within the corporate City limits.
8. *Microchipping.* All owners of a dangerous dog must provide proof of microchipping to the City Clerk within 10 days of being designated such.
9. *Spaying/Neutering.* All owners of Dangerous Animals must, within 10 days of designation, spay or neuter the animal, if such animal has not previously been sterilized, and provide proof of such to the City Clerk.
10. *Failure to Comply.* It shall be unlawful for the owner, keeper or harbinger of a dangerous dog to fail to comply with the requirements and conditions set forth in this ordinance. Any dog found to be the subject of a violation of this ordinance shall be subject to immediate seizure and impoundment. In addition, failure to comply will result in the revocation of the license of such animal and the permit providing for the keeping of such animal resulting in the immediate removal of the animal from the City or provide proof that the animal has been humanely euthanized by its owner to the City.
- F. The keeping of any snakes of the species boa constrictors, Madagascar ground boas, green and yellow anacondas, Cuban boas, Indian pythons, reticulated pythons, African rock pythons, Amethystine pythons, Boelen's pythons and all members of the family pythonidae that exceed six feet in length; provided, these animals shall be kept under the following mandatory conditions.
11. In consideration of the right of the public not to be unexpectedly exposed to snakes, these animals will not be openly displayed in a public setting outside of established forums for such practices to include herpetological shows, educational displays, pet stores and other special displays whereby members of the public are forewarned that a snake(s) may be displayed in the open.
12. Snakes shall be transported in a manner that precludes escape. At a minimum snakes shall be placed in a sturdy cloth bag free of holes or tears and the bag placed in a box or similar container. The box or container must be locked or sealed during transportation.
13. Snakes shall be housed in secure cages with hinged tops or doors or a sliding glass front which includes a locking mechanism. The cage shall be kept in a room modified to prevent snake escapes and which has a door which shall be kept shut or locked when not occupied by the owner.

14. Snakes requiring permits shall not be sold to minors.
15. Pet stores or other vendors or sellers of snakes requiring permits are required to provide a copy of this ordinance to all prospective purchasers of such snakes.
16. Snakes will not be fed or in any fashion provided any live or living creature while observable by any member of the public or in any manner which may otherwise violate the humane laws of the City.
17. It shall be unlawful and a violation of this subsection for any person to not comply with the standards set forth herein.

(History: Ord. DAC-3329 §8, 2021; Ord. DAC-2621 §1, 2006; DAC-1871 §2, 94; DAC-1625 §2, 89; DAC-1442 §2, 87; DAC-1309 §3, 85; DAC-880 §14)

6.10.040 Exemptions.

The provisions of this Chapter shall not apply to the transportation of such animals through this City. Also, the provision of this Chapter shall not apply to the keeping of a service dog to accommodate an individual with a disability recognized by the Americans with Disabilities Act (ADA), provided the owner keeper or harbinger of the dog can provide reliable verification of the training and use of the dog as a service dog.

(History: Ord. DAC-3329 §9, 2021; Ord. DAC-2959 §7, 2012; DAC-1309 §4, 85)

6.10.050 Notice of Keeping Dangerous Animals.

Upon the written complaint of any person that a person owns or is keeping or harboring a dangerous animal in violation of this chapter in the City, the Chief Animal Control Officer or their authorized deputy shall forthwith cause the matter to be investigated; and if after investigation the facts indicate that such person named in the complaint is in fact the owner or is keeping or harboring any such dangerous animal in the City, shall forthwith send written notice to such person requiring such person to safely remove said animal from the City within five days of the date of said notice. Notice as herein provided shall not be required where such dangerous animal has previously caused severe injury or death to any person or has escaped and is at large in which case the Chief Animal Control Officer shall cause said animal to be immediately seized and impounded, according to the provisions of [6.10.060](#), or killed if seizure and impoundment are not possible without risk of serious physical harm or death to any person.

Severe injury shall include, but is not limited to, any physical injury resulting in broken bones or disfiguring lacerations that required suturing.

(History: Ord. DAC-3329 §10, 2021; Ord. DAC-1481 §1, 87; DAC-1309 §5, 85)

6.10.060 Seizure and Impounding of Dangerous Animals.

The Chief Animal Control Officer or their authorized deputy shall forthwith cause to be seized and impounded any dangerous animal, where the person owning, keeping or harboring such animal has failed to comply with the notice sent pursuant to [6.10.050](#). Upon a seizure and impoundment, said animal shall be delivered to a place of confinement which may be with any organization which is authorized by law to accept, own, keep or harbor such animals.

If, during the course of seizing and impounding any such animal, the animal poses a risk of serious physical harm or death to any person, such person or persons authorized by the Chief Animal Control Officer may render said animal immobile by means of tranquilizers or other safe drugs; or if that is not safely possible, then said animal may be humanely euthanized.

(History: Ord. DAC-3329 §11, 2021; Ord. DAC-1309 §6, 85)

6.10.070 Permit Required.

- A. No person under [6.10.030](#) owning, harboring, or having charge, custody, control or possession of any animal described in [6.10.010](#) hereof, shall allow such animal to remain within the City unless and until they have first secured a permit so to do and complies with all terms and conditions of such permit; and, in addition thereto, such animal shall at all times be so confined, controlled and restrained in such manner so the life, limb or property of any person lawfully entering such premises shall not be endangered.
- B. Failure to obtain a permit when required by subsection A after written notification by the Chief Animal Control Officer or their authorized deputy shall be adequate grounds for said officer or deputy to impound said animal until a permit is obtained. If no permit is obtained within ten days, said animal will become property of the impounding agency and subject to be humanely euthanasia.

(History: Ord. DAC-3329 §12, 2021; Ord. DAC-1309 §7, 85; DAC-1284 §2)

6.10.080 Issuance of Permit.

Except as hereinafter provided, no person under [6.10.030](#) shall have, keep, maintain, or have in their possession or under their control within the City any animal described in [6.10.010](#) hereof without first applying to and receiving a permit from the City Clerk; provided, no permit shall be granted except with such conditions attached as shall, in the opinion of the person or agency approving such permit, reasonably insure the public health, safety and general welfare, and in any event no permit shall be granted for any animal at any particular location except upon an explicit finding by the Chief Animal Control Officer or an authorized deputy that the issuance thereof will not be contrary to the public health, safety and general welfare.

(History: Ord. DAC-3329 §13, 2021; Ord. DAC-1309 §8, 85; DAC-880 §6)

6.10.090 Application for Permit.

An application for any permit required pursuant to this chapter shall be made to the City Clerk in writing and upon a form furnished by the City Clerk. Said application shall be verified by the person who desires to have, keep, maintain or have in their possession or under their control, in the city, the animal for which a permit is required, and shall set forth the following:

- A. Name, address and telephone number of the applicant.

- B. The applicant's interest in such animal.
- C. The proposed location, and the name, address, and telephone number of the owner of such location, and of the lessee, if any.
- D. The number and general description of all animals for which the permit is sought.
- E. Any information known to the applicant concerning vicious or dangerous propensities of all such animals.
- F. The housing arrangements for all such animals with particular details as to safety or structure, locks, fencing, etc.
- G. Safety precautions proposed to be taken.
- H. Noises or odors anticipated in the keeping of such animals.
- I. Prior history of incidents involving the public health or safety involving any of said animals.
- J. Proof of insurance to cover those who may be injured or killed by said animal.
- K. A statement, signed by the applicant, indemnifying the City and its agents and employees for any and all injuries that may result from said animal.
- L. Any additional information required by the Chief Animal Control Officer at the time of filing such application or thereafter.

(History: Ord. DAC-3329 §14, 2021; Ord. DAC-1309 §9, 85; DAC-880 §7)

6.10.100 Dangerous Animal Permit Fee.

The City Manager is hereby authorized to set fees and fee related policies for the Dangerous Animal Permit. The initial non-refundable fee shall be payable to the City Clerk at the time of filing the permit application, and annually thereafter.

(History: Ord. DAC-3436 §6, 2023; Ord. DAC-3329 §15, 2021; Ord. DAC-1309 §10, 85; DAC-880 §8)

6.10.110 Temporary Permits; Powers of Animal Control Officer.

The Chief Animal Control Officer may, following application for a permit and pending final disposition of the same, grant a temporary permit for the maintenance within the City of any such animal upon such conditions as the Chief Animal Control Officer shall, in their sole discretion, require when, in their opinion, there is no reasonable doubt as to the consistency thereof with the public health, safety and general welfare, but no such animal shall be otherwise kept or maintained within this city or permitted to occupy any premises within this city except while such a regular or temporary permit is in full force and effect; Provided, however, that any law enforcement officer or the Chief Animal Control Officer, or an authorized deputy, shall take possession of any animal described under [6.10.010](#) for which a permit has not been issued and keep the same until the proper permit has been secured by the owner or keeper thereof and shall release the same to the owner or keeper when all fees and costs have been paid and all laws and permit conditions complied with.

(History: Ord. DAC-3329 §16, 2021; Ord. DAC-1309 §11, 85; DAC-880 §10)

6.10.120 Term and Renewal of Permits.

No permit required by this chapter shall be granted for a period in excess of one year. An application for renewal of any permit shall be made not less than 45 days prior to the expiration thereof, and shall be accompanied by the same fee as required upon making the original application.

(History: Ord. DAC-3329 §17, 2021; Ord. DAC-1309 §12, 85; DAC-880 §11)

6.10.130 Inspections, Investigations, and Issuance of Renewal Permits.

Prior to the annual renewal of any permit issued hereunder and at least once not more than six months after the issuance of any such permit or after its renewal, the Chief Animal Control Officer or their designated representative shall inspect the premises subject to such permit to determine whether the person to whom it has been issued is continuing to comply with all of the conditions specified in this chapter. In addition, the animal control officer shall investigate the past history of the permit holder to determine whether during the past permit period the permit holder was in compliance with all of the conditions specified in this chapter. The investigation may include a review of department records and interviews with the permit holder and neighbors. If the Chief Animal Control Officer determines during any such inspection and investigation that any of the conditions therein specified are being violated or have been noted during the past permit period, the Chief Animal Control Officer shall recommend denial of a renewal of any such permit, and/or shall recommend revocation of such permit in the event that such violation is not corrected within such period of time as determined by the Chief Animal Control Officer. Upon completion of the investigation and review process provided herein, the Chief Animal Control Officer shall recommend to the City Clerk that the dangerous animal permit be renewed or that the renewal application be denied. If the recommendation is to deny the permit, the basis for the denial shall be included in the recommendation report.

(History: Ord. DAC-3329 §18, 2021; Ord. DAC-2207 §1, 2000; DAC-1735 §5, 92; DAC-1309 §13, 85; DAC-880 §12)

6.10.140 Revocation and Suspension of Permits.

The City Clerk, upon recommendation of the Chief Animal Control Officer may, for good cause, revoke any permit or modify any terms or provisions thereof and may, in the event it is reasonably necessary to protect against an immediate threat or danger to the public health or safety, suspend any permit or portion thereof without hearing, for a period not to exceed 30 days. Failure to comply with any of the provisions of this chapter shall be considered good cause for revocation or suspension of a permit.

(History: Ord. DAC-3329 §19, 2021; Ord. DAC-2207 §2, 2000; DAC-1309 §14, 85; DAC-880 §13)

6.10.150 Commercial Establishments.

- A. Commercial establishments possessing such animals for the purpose of sale or display may replace the same with others of the same kind, but the number of each shall not be in excess of the number thereof allowed by the terms of such permit. Such establishments may, in the discretion of the Chief Animal Control Officer, be granted a permit for those such numbers of each kind of animal as do not exceed the maximum number such establishment estimates will be maintained by it in this City at any one time during the period of the permit. Such

permit shall require the immediate notification of the Chief Animal Control Officer upon the acquisition of any animal having a prior history of any incident involving the public health or safety, or resulting in any bodily injury or property damage.

- B. Upon the sale of any dangerous animal, said commercial establishment shall immediately send notification of said sale along with the name and address of the buyer, the method of transporting the animal, the path of travel of such transportation, and the destination to the Chief Animal Control Officer.

(History: Ord. DAC-3329 §20, 2021; Ord. DAC-1309 §15, 85; DAC-880 §15)

6.10.160 Appeals; Fees.

- A. Any person aggrieved by or dissatisfied with any of the following decisions, rulings, actions or findings may within 10 days thereafter file a written notice or statement of appeal from said decision, ruling, action or finding to the Overland Park Municipal Court for an administrative hearing thereon.
1. The determination that an animal is dangerous;
 2. The denial of a Dangerous Animal Permit;
 3. The denial of a renewal of a previously issued Dangerous Animal Permit;
 4. The revocation of a previously issued Dangerous Animal Permit; and
 5. The temporary suspension of any Dangerous Animal Permit or portion thereof.
- B. The City Manager is hereby authorized to set an administrative hearing appeal fee. Such fee shall be paid to the Municipal Court Clerk and is required for each appeal to the Municipal Court, and no appeal shall be set for hearing until such fee has been paid.
- C. The filing of an appeal under this subsection shall not stay any action taken pursuant to this Chapter.
- D. The hearing shall be conducted by an Overland Park Municipal Court judge who will sit as an administrative judge for purposes of this Chapter. The sole issue for determination shall be whether decisions, rulings, actions, or findings of the Animal Control Officer or the City Clerk (or their respective designees) were within the scope of their authority, supported by substantial evidence, and not arbitrary or capricious in nature. The Court shall make specific findings of fact and conclusions of law in each case.

Pursuant to its role as administrative judge, the court is empowered to hold hearings, subpoena witnesses, take the testimony of any person under oath and in connection therewith, to require the production of any evidence relating to any matter being heard. In the case of the refusal of any person to comply with any subpoena issued hereunder or to testify in any matter regarding which he or she may be lawfully questioned, the court may order such person to comply with such subpoena and testify; and failure to obey the court's order may be punished by the court as contempt.

(History: Ord. DAC-3436 §7, 2023; Ord. DAC-3329 §21, 2021; Ord. DAC-2207 §3, 2000; DAC-1309A §1, 86; DAC-1309 §16, 85; DAC-880 §16)

6.10.165 Appeals, Administrative Hearing.

The hearing on the appeal provided for in [6.10.160](#) shall be conducted by an Overland Park municipal court judge who will sit as an administrative judge for purposes of this chapter. The sole issue for determination shall be whether decisions, rulings, actions, or findings of the Chief Animal Control Officer and/or the City Clerk were within the scope of their authority, supported by substantial evidence, and not arbitrary nor capricious in nature. The Court shall make specific findings of fact and conclusions of law in each case.

(History: Ord. DAC-3329 §22, 2021; Ord. DAC-1309A §2, 86)

6.10.166 Subpoena Power.

Pursuant to its role as administrative judge, the Court is empowered to hold hearings, subpoena witnesses, take the testimony of any person under oath and in connection therewith, to require the production of any evidence relating to any matter being heard. In the case of the refusal of any person to comply with any subpoena issued hereunder or to testify in any matter regarding which they may be lawfully questioned, the Court may order such person to comply with such subpoena and testify; and failure to obey the Court's order may be punished by the court as contempt.

(History: Ord. DAC-3329 §23, 2021; Ord. DAC-1309A §3, 86)

6.10.168 Appeal; District Court.

Any aggrieved party may appeal the decision and findings of the Overland Park municipal court judge pursuant to K.S.A. 60-2101(d) (1984 Supp.). However, the filing of an appeal under this subsection shall not stay any action taken pursuant to this chapter.

(History: Ord. DAC-3329 §24, 2021; Ord. DAC-1309A §4, 86)

6.10.170 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not effect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-3329 §25, 2021; Ord. DAC-1309 §17,85; DAC-880 §17)

6.10.180 Violations and Penalties.

Any person violating or permitting the violation of any provision of this ordinance shall upon conviction in the Overland Park Municipal Court be fined a sum not less than \$200 and not more than \$1,000. In addition to the fine imposed, the Court may sentence the defendant to imprisonment in the county jail for a period not to exceed 30 days. Should the defendant refuse to remove the dog from the City, the municipal court judge shall find the defendant owner in contempt and order the immediate confiscation and impoundment of the animal. Each day that a violation of this ordinance continues shall be deemed a separate offense. In addition to the foregoing penalties, any person who violates this ordinance shall pay all expenses, including shelter, food, handling, veterinary care and testimony necessitated by the enforcement of this ordinance; as well as any restitution to the victim as ordered by the Municipal Court judge.

(History: Ord. DAC-3329 §26, 2021; Ord. DAC-1625 §3, 89; DAC-1442 §3, 87; DAC-1309 §18, 85; DAC-880 §18)

6.10.190 Costs to be Paid by Responsible Persons.

Any reasonable costs incurred by the Chief Animal Control Officer in seizing, impounding, confining or disposing of any dangerous or wild animal, pursuant to the provisions of [6.10.050](#), [6.10.060](#), [6.10.070](#) or [6.10.110](#) shall be charged against the owner, keeper, or harbinger of such animal and shall be collected by the City Clerk.

(History: Ord. DAC-3329 §27, 2021; Ord. DAC-1309 §20, 85)

6.12 INJURED OR DISEASED ANIMALS

Contents:

6.12.010 Destruction of Certain Animals.

6.12.020 Disease Control - Quarantine.

6.12.030 Enforcement of Quarantine.

6.12.040 Dead Animals; Duty to Report.

6.12.050 Removal of Large Dead Animal.

6.12.060 Removal of Small Dead Animal.

6.12.070 Severability.

6.12.010 Destruction of Certain Animals.

Law enforcement officers or Animal Control Officers of the City or anyone having the authority of an Animal Control Officer, as designated by the City Manager or Chief of Police, may kill any dog, cat, domestic animal or warm-blooded animal without notice to the owner thereof whether it bears the tag herein provided for or not, if such dog, cat, domestic animal or warm-blooded animal is deemed by said officer to be a vicious animal, or injured severely with no apparent chance of survival, or in such pain as to warrant humane destruction. The remains of any such animal so destroyed shall be preserved by such officers to permit a test to be conducted for rabies.

(History: Ord. DAC-2771 §6, 2009; DAC-697 §12, 72)

6.12.020 Disease Control - Quarantine.

When rabies or other communicable diseases are known to exist in the community, or when it is known to exist in neighboring communities, the mayor may declare a quarantine of all dogs, cats, other domestic animals, and any other warm-blooded animals. It shall be the duty of the owner of the dog, cat, other domestic animal, and any other warm-blooded animal to keep such dog, cat, other domestic animal, and any other warm-blooded animal confined to the premises of such owner or keeper and under control.

(History: Ord. DAC-697 §13(A), 72)

6.12.030 Enforcement of Quarantine.

It shall be the duty of all Animal Control Officers, or anyone having the authority of an Animal Control Officer, law enforcement officers, or those having the authority of law enforcement officers to enforce such quarantine. The City Manager and the Chief of Police shall have the right to deputize school guards and other persons as needed. Such deputized persons need not seize such animals but shall aid in determining the owner to the end that warrants of arrest can be issued against the violating owners.

(History: Ord. DAC-2771 §7, 2009; DAC-697 §13(B), 72)

6.12.040 Dead Animals; Duty to Report.

It shall be unlawful for any person to put any dead animal in any street, avenue, alley, or other public place in the City; and it shall be the duty of the owner, keeper, and all persons having knowledge of any dead animal on public property in the City to immediately report the same to the City police department, giving the kind of animal and the place where the same may be found. It shall be the duty of the animal control officer, immediately upon receipt of such report, to remove or provide for the removal of such dead animal.

(History: Ord. DAC-1311 § 19, 85)

6.12.050 Removal of Large Dead Animal.

It is the responsibility of the owner or proprietor of the premises to remove all deceased large animals within 12 hours after the death of such animal. If not so removed, the animal control supervisor shall cause the animal to be removed at actual cost to the owner or proprietor.

(History: Ord. DAC-1311 §20, 85)

6.12.060 Removal of Small Dead Animal.

It shall be the responsibility of the owner of a deceased small animal to provide for its removal by private means.

(History: Ord. DAC-2771 §8, 2009; DAC-1311 §21, 85)

6.12.070 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-1311 §22, 85)

Contents:

- 6.13.010 Legislative Findings**
- 6.13.020 Definitions**
- 6.13.030 Keeping of Chickens**
- 6.13.040 Permit Required**
- 6.13.050 Performance Standards**
- 6.13.060 Revocation and Suspension.**
- 6.13.070 Appeal**
- 6.13.080 Violations and Penalty**
- 6.13.090 Severability**

6.13.010 Legislative Findings

The Governing Body finds that in order to provide for the allowance of chickens upon single and two-family residential properties in the City, or upon an agricultural property of less than 3 acres being used for residential purposes, there is a need to regulate and set minimum standards for the keeping of such chickens in order to mitigate any detrimental impact to neighboring properties and to protect the public health, safety, and welfare of the residents of the City.

History: Ord. DAC-3435 §2, 2023.

6.13.020 Definitions

For the purposes of this Chapter, these words and phrases shall have the following meaning:

- A. **Chicken** means *Gallus gallus domesticus* of the female sex. This definition does not include male chickens or roosters, or other fowl, such as, but not limited to, peacocks, turkeys, guinea fowls, ducks or waterfowl, all of which are not permitted under this Chapter.
- B. **Chicken Coop** or **Coop** means an enclosed and roofed structure for housing chickens that provides shelter from the elements.
- C. **Chicken Run** or **Run** means an enclosed outside yard or area for keeping chickens.
- D. **Chicken Tractor** or **Tractor** means a movable chicken coop lacking a floor.
- E. **Humane standards of care** shall be defined to include, but not be limited to, accessibility of the chickens to food and water, proper medical attention, proper shelter from the elements, and cleanliness in animal waste areas with regular waste removal.
- F. **Nuisance** means any act which is unreasonably annoying or vexatious to another or substantially interferes with the rights of others and shall include, but not be limited to,

obnoxious odors, excessive noise, and creation of an environment attractive to other animals or insects. More than three substantiated violations of this title within a twelve-month period will automatically constitute a nuisance.

History: Ord. DAC-3435 §3, 2023

6.13.030 Keeping of Chickens

- A. It shall be unlawful for any person to keep or otherwise maintain chickens upon any single or two-family residential property within the City, or upon any agricultural property of less than 3 acres being used for residential purposes, unless the chickens are kept in accordance with the provision of this Chapter.
- B. It shall further be unlawful for any owner, renter or leaseholder of any such property to allow chickens to be kept or maintained in or upon such property in violation of the provisions of this Chapter.
- C. The keeping of chickens is for non-commercial purposes only. It shall be unlawful to engage in chicken breeding or fertilizer production for commercial purposes upon any single or two-family residential property within the City, or upon any agricultural property of less than 3 acres being used for residential purposes.

History: Ord. DAC-3435 §4, 2023

6.13.040 Permit Required

- A. General Requirement. In order for a person to keep or otherwise maintain chickens upon any single or two-family residential property within the City, or upon any agricultural property of less than 3 acres being used for residential purposes, an annual "Chicken Permit" shall be obtained from the City Clerk's office. The Chicken Permit shall be obtained prior to the keeping chickens on the property. The City Clerk shall establish an application process to be followed by all individuals seeking a Chicken Permit. The Chicken Permit shall be issued for a one year period of time from the date of approval.
- B. Application. Applications for a Chicken Permit shall be filed on forms prescribed by the City and include a non-refundable fee and the following information:
 - 1. Applicant's name and contact information.
 - a. If the applicant is not the property owner, then written permission of the property owner shall be submitted with the application along with the property owner's name and contact information.
 - 2. Street address or legal description of the property where chickens will be kept.
 - 3. The requested number of chickens.
 - 4. Sufficient information to show compliance with the Conditions for Approval set forth in C and the Performance Standards set forth in 6.13.050, which shall be confirmed by city staff prior to the issuance of the Chicken Permit.
- C. Conditions for Approval. The Applicant must adequately show, by clear and convincing evidence, that the keeping of chickens will not create a nuisance in the surrounding neighborhood, that humane care will be provided, and that the premises where the chickens

are kept are suitable for the keeping of chickens and is in conformity with all City zoning requirements. The criteria to be evaluated include, without being limited to, the following:

1. The chickens will be kept or maintained at all times in a safe and sanitary manner.
2. The chicken coop in which the chickens are kept or confined will be adequately lighted and ventilated and is so constructed and maintained that they can be kept in a clean and sanitary condition.
3. The health and well-being of the chickens will not in any way be endangered by the manner of keeping or confinement.
4. The keeping of the chickens will not harm the surrounding neighborhood or disturb the peace and quiet of the surrounding neighborhood.
5. The keeping of the chickens will not cause fouling of the air by offensive odors and thereby create or cause unreasonable annoyance or discomfort to neighbors or others in close proximity to the premises where the chickens are kept.
6. The chickens will not unreasonably annoy humans, endanger the life, health or safety of other animals or persons or substantially interfere with the rights of citizens to the enjoyment of life or property.
7. The chickens will not repeatedly run or be found at large, will not damage or deposit excretory matter upon the property of anyone other than their owner, and will not molest or intimidate pedestrians or passersby.
8. The chickens will not make disturbing noises, including but not limited to, continued and repeated or untimely crowing, whining, growling, cry or other utterances causing unreasonable annoyance, disturbance or discomfort to neighbors and others in close proximity to the premises where the chickens are kept, or otherwise be offensive or dangerous to the public health, safety or welfare, by virtue of their behavior, number, type or manner of keeping.
9. The applicant, or any person who will share in the care, custody and control of the chickens, is not currently in violation of, or has not previously violated any applicable City, state or federal laws, codes, rules or regulations, including, but not limited to, those pertaining to the care and control of animals and the maintenance of their property, which would reflect adversely on their ability to fully comply with the conditions of the Chicken Permit.
10. The keeping of the chickens will adhere to the Performance Standards set forth in 6.13.050.

As part of the application process, the Animal Control Division shall inspect the property and submit a written report of its investigation of the property stating the factual basis for its recommendation to grant or deny the application. As part of its evaluation of the above Conditions for Approval, the Animal Control Division may consider the comments of neighbors, past violations by the applicant, the size, condition and location of the area where the chickens will be kept, past complaints concerning the applicant, or any other factors relative to the issue of keeping chickens. Upon completion of the investigation and review process the Animal Control Division shall recommend approval or denial of the Chicken Permit application. If denial is recommended, the basis for the denial shall be included in the report.

The City Clerk shall deny any application where the applicant fails to show proof of the aforementioned requirements or an examination of the documentation submitted or any investigation by the Animal Control Division, or both, reveals that in the opinion of the Animal Control Division that the applicant has failed to meet the requirements of this Chapter.

- D. Permit Fee. The City Manager is hereby authorized to set fees and fee related policies for the Chicken Permit. All fees shall be nonrefundable and nontransferable. Failure to pay the fee shall constitute a violation of this Chapter.

History: Ord. DAC-3435 §5, 2023

6.13.050 Performance Standards

A. Number and Type of Chickens.

1. Number of Chickens Allowed.¹

Number of Chickens Allowed		
Lot Size	Chicken Permit Required	Maximum number of Hens Allowed
0.20 - 0.49 Acres	Yes	3
0.50 - 0.99 Acres	Yes	6
1-3 Acres	Yes	12
> 3 acres	No	No Maximum

2. Type of Chickens Allowed.

- No rooster and allowed on any property less than 3 acres.
- This Chapter only allows chickens as defined in 6.13.020, and does not allow any other fowl, such as, but not limited to, peacocks, turkeys, guinea fowls, ducks or waterfowl, are not permitted under this Chapter.

B. Locational Requirements.

- Subject to the provisions of this Chapter, chickens are allowed on:
 - Residentially-zoned properties equal to or larger than 0.20 acre and developed with a detached single-family dwelling or duplex.
 - Agricultural property of less than 3 acres being used for residential purposes.
- Setbacks.

Setback Requirements for Chicken Coops, Mobile Pens and Runs

Yard	Required Setback
Front Yard	Enclosures not permitted
Side Yard	10 feet
Rear Yard	25 feet

3. Chickens shall only be kept upon property which is the principal residence of the owner of the chickens. Tenants and renters of property may keep chickens with the written permission of the property owner. Proof of such permission shall be submitted with the application. (See 6.13.040 B.1.i.)

C. Chicken Coops and Enclosures.

1. Chickens must be provided a secure and well ventilated chicken coop. Mobile pens or chicken tractors must not be used as the primary chicken coop.
2. Chicken coops and runs must be inspected by an Animal Control Officer prior to obtaining chickens and issuance of a Chicken Permit.
3. The floor area of the chicken coop or a combination of the floor area and attached pen area must equal at least 10 square feet of area per chicken.
4. For properties less than 3 acres, no chicken coop, mobile pen or run shall exceed 200 square feet.
5. Chickens must be housed in a chicken coop or other roofed structure, attached pen or detached mobile pen whenever they are unattended by the keeper. During daylight hours, when attended by the keeper, the chickens are allowed in a completely fenced-in yard.
6. Chicken coops and runs must be located in a fenced-in rear yard.
7. No chicken coop or run shall be located in any area of the property that is considered frontage or a landscaped setback, both as defined by the Unified Development Ordinance.

D. General Requirements.

1. The keeping of chickens shall be done in such a manner as to continually and adequately meet these Performance Standards and the Conditions for Approval set forth in 6.13.040C.
2. The keeping of chickens shall be done in such a manner as to control noxious odors and the breeding of rodents, flies or other insects, so as not to create a nuisance of any kind. The chicken owner shall take necessary action to reduce the attraction of predators and rodents and the potential infestation of insects and parasites. Chickens found to be infested with insects and parasites that may result in unhealthy conditions to human habitation may be removed by an Animal Control officer.
3. All grain and food stored for the use of chickens shall be kept in a rodent-proof container.
4. Live slaughter of chickens is prohibited on residential property.

5. Chickens shall not be allowed to run at large.

a. For the purposes of 6.10, any dog attacking a chicken running at large shall not be construed as a dangerous animal based upon the attack of the chicken.

6. It shall further be unlawful to picket or tie any such animal in any of the streets or right-of-way of the City for the purpose of grazing or feeding.

7. The chicken owner must provide for the storage and removal of chicken manure. All stored manure shall be covered in a fully enclosed structure with a roof or lid over the entire structure. No more than 3 cubic feet of manure shall be stored. All other chicken manure not used for composting or fertilizing shall be regularly removed in a manner complying with all applicable federal, state and local regulations. The chicken coop, chicken tractor and surrounding area must be kept free from trash and accumulated droppings. Uneaten feed shall be removed in a timely manner.

¹Properties in the City bearing a county zoning designation may be subject to more restrictive allowances based upon applicable zoning regulations. (For example, see Article 18, Section 7.A.1.b of the *Johnson County Zoning & Subdivision Regulations*, incorporated by OPMC 18.100.120 - 18.100.190).

History: Ord. DAC-3435 §6, 2023

6.13.060 Revocation and Suspension.

Upon recommendation of the Animal Control Division, a Chicken Permit may be revoked or suspended by the City Clerk upon a showing any of the following:

- A. The chicken's place of keeping constitutes a nuisance to the surrounding neighbors;
- B. Humane standards of care are not being met by the permittee;
- C. A failure to meet or to continue to meet any applicable Performance Standard or Conditions for Approval;
- D. A violation of City zoning regulations has occurred;
- E. The permittee provided false information in their application; or
- F. In the event it is reasonably necessary to protect against an immediate threat or danger to the public health or safety.

Failure to comply with any provision of this Chapter shall be considered good cause for revocation or suspension of a Chicken Permit.

History: Ord. DAC-3435 §7, 2023

6.13.070 Appeal

- A. Any person who is denied a Chicken Permit for keeping chickens, or whose existing Chicken Permit has been revoked, may within 10 days thereafter file a written notice or statement of

appeal from said decision, ruling, action, or finding to the Overland Park Municipal Court for an administrative hearing thereon.

- B. The City Manager is hereby authorized to set an administrative hearing appeal fee for a Chicken Permit appeal. Such fee shall be paid to the Municipal Court Clerk and is required for each appeal to the Municipal Court. No appeal shall be set for hearing until such fee has been paid.
- C. The filing of an appeal under this subsection shall not stay any action taken pursuant to this Chapter.
- D. The hearing on the appeal shall be conducted by an Overland Park Municipal Court judge who will sit as an administrative judge for purposes of this Chapter. The sole issue for determination shall be whether decisions, rulings, actions, or findings of the Animal Control Officer or the City Clerk (or their respective designees) were within the scope of their authority, supported by substantial evidence, and not arbitrary or capricious in nature. The Court shall make specific findings of fact and conclusions of law in each case.

Pursuant to its role as administrative judge, the court is empowered to hold hearings, subpoena witnesses, take the testimony of any person under oath and in connection therewith, to require the production of any evidence relating to any matter being heard. In the case of the refusal of any person to comply with any subpoena issued hereunder or to testify in any matter regarding which he or she may be lawfully questioned, the court may order such person to comply with such subpoena and testify; and failure to obey the court's order may be punished by the court as contempt.

History: Ord. DAC-3435 §8, 2023

6.13.080 Violations and Penalty

The violation of any provision of this Chapter is a public offense and any person convicted thereof shall be punished as provided in [1.12.010](#). Each day that any violation of these sections shall continue shall constitute a separate offense.

History: Ord. DAC-3435 §9, 2023

6.13.090 Severability

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this Chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this Chapter or any part thereof.

History: Ord. DAC-3435 §10, 2023

6.14 BEEKEEPING

Contents:

6.14.010 Legislative Findings.

6.14.020 Keeping of Bees.**6.14.030 Keeping of a Hive, Stand, Box, or Apiary.****6.14.040 Multiple Number of Beehives.****6.14.050 Subsequent Development of Adjacent Properties.****6.14.060 Owner's Hives on Other Properties.****6.14.070 Water Facilities.****6.14.080 Exemptions.****6.14.085 Severability.****6.14.090 Violations and Penalty.****6.14.010 Legislative Findings.**

The Governing Body of the City of Overland Park, Kansas, finds that there is a need to regulate and set minimum standards for the keeping of bees within the corporate limits of the City to protect the public health, safety, and welfare of the residents of Overland Park.

(History: Ord. BK-1198 §1, 83)

6.14.020 Keeping of Bees.

It shall be unlawful for any person to place, establish, or maintain any hive, stand, box, or apiary or keep any bees in or upon any premises within the corporate limits of the City unless the bees are kept in accordance with the provisions of this chapter.

(History: Ord. BK-1198 §2, 83)

6.14.030 Keeping of a Hive, Stand, Box, or Apiary.

No hive, stand, or apiary shall be placed or kept:

- A. Closer than 25 feet to the property line of adjoining residential property if a house or other building used for residential purposes is located on such property;
- B. Or closer than 75 feet to any house or other building used for residential purposes other than the residence of the keeper of such bees without first obtaining written permission of such land, which permission may be revoked at any time;
- C. Or closer than 100 feet to the exterior line of the traveled portion of a public street;
- D. Or upon land not owned or possessed by the keeper of such bees without first obtaining written permission to do so from the owner or person lawfully in possession of such land, which permission may be revoked at any time.

(History: Ord. BK-1198 §3, 83)

6.14.040 Multiple Number of Beehives.

No more than three beehives shall be placed or kept in a location which is between 75 feet and 600 feet from a house or other building used for residential purposes other than the residence of the keeper of such bees.

(History: Ord. BK-1198 §4, 83)

6.14.050 Subsequent Development of Adjacent Properties.

Provided that should adjacent property be later developed, or residential structures located closer than the distances herein prescribed, the keeper shall move such hives, stands, boxes, or apiaries to comply with these regulations.

(History: Ord. BK-1198 §5, 83)

6.14.060 Owner's Hives on Other Properties.

Every person owning a hive, stand, box, or apiary located on premises other than where he resides shall identify such hive, stand, box or apiary by a sign or other prominent marking stating in letters at least one inch high on a contrasting background the name, address, and phone number of the owner of such equipment.

(History: Ord. BK-1198 §6, 83)

6.14.070 Water Facilities.

Fresh, clean, watering facilities for the bees shall be provided within 25 feet of each hive, stand, box or apiary.

(History: Ord. BK-1198 §7, 83)

6.14.080 Exemptions.

Nothing in these regulations shall be deemed or construed to prohibit the keeping of bees within a school or university building for the purpose of study or observation, or within a physician's office or laboratory for the purpose of medical research, treatment, or other scientific purposes.

(History: Ord. BK-1198 §8, 83)

6.14.085 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not effect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-1311 §23, 85)

6.14.090 Violations and Penalty.

The violation of any provision of [6.14.030](#) through [6.14.080](#) is a public offense and any person convicted thereof shall be punished as provided in [1.12.010](#) of the Overland Park Municipal Code. Each day that any violation of these sections shall continue shall constitute a separate offense.

(History: Ord. BK-1198 §9, 83)

6.15 HORSES, MULES, DONKEYS, AND OTHER EQUINES

Contents:

- 6.15 010 Legislative Findings.**
- 6.15.020 Keeping of Horses, Mules, Donkeys or Other Equines.**
- 6.15.030 Density and Distance.**
- 6.15.040 Feeding of Animals and Handling of Animal Wastes.**
- 6.15.045 Severability.**
- 6.15.050 Violations & Penalty.**

6.15 010 Legislative Findings.

The Governing Body of the City of Overland Park, Kansas, finds that there is a need to regulate and set minimum standards for the keeping of horses within the corporate limits of the City to protect the public health and welfare of the residents of Overland Park.

(History: Ord. H-1207 §1, 83)

6.15.020 Keeping of Horses, Mules, Donkeys or Other Equines.

It shall be unlawful for any person to stable, board, or keep within the City of Overland Park any horse, mule, donkey, or other equine upon any premises unless the horse, mule, donkey, or other equine is kept in accordance with the provisions of this chapter.

(History: Ord. H-1207 §2, 83)

6.15.030 Density and Distance.

No more than one horse, mule, donkey, or other equine shall be kept for each 20,000 square feet of contiguous, gross land area. No stable or shelter for horses, mules, donkeys or other equines shall be permitted closer than 100 feet from any occupied residential structure other than on the same tract.

(History: Ord. H-1207 §3, 83)

6.15.040 Feeding of Animals and Handling of Animal Wastes.

- A. No feeding or watering troughs or tanks shall be located within 100 feet of a property line.
- B. All occupied stalls shall be cleaned at least once each day.

C. Temporary storage of animal waste.

1. All waste not immediately disposed of as herein provided shall be stored in a vault or pit constructed of concrete or other approved material which shall be kept covered by a rigid, tight-fitting cover. A permit shall be obtained from the Code Administrator for the construction of the waste vault, and he shall review the plans and inspect the construction of the vault to assure compliance with these regulations. Such vault shall be at least 300 feet from any occupied residential structure other than on the same tract.
2. Animal waste shall be removed from the vault and disposed of as herein provided whenever necessary to avoid overflow or spillage.

D. Waste disposal.

All waste shall be disposed of by one of the following methods:

1. Animal waste shall be removed from the tract and disposed of in a manner complying with all applicable federal, state, and local regulations.
2. Animal waste may be uniformly spread and distributed over agricultural fields when such field is at least 200 feet from any occupied residential structure other than on the same tract.

- E. The provisions of this Section shall not apply to any property zoned RUR, PRUR, RLD or PRLD that is annexed into the City pursuant to Ordinance No. A-2719, unless and until such property is rezoned.

(History: Ord. H-2722 §1, 2008; H-1207 §4, 83)

6.15.045 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause or phrase in this chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this chapter or any part thereof.

(History: Ord. DAC-1311 §24, 85)

6.15.050 Violations & Penalty.

The violation of any provision of [6.15.020](#) through [6.15.040](#) is a public offense, and any person convicted thereof shall be punished as provided in [1.12.010](#). Each day that any violation of these sections shall continue shall constitute a separate offense.

(History: Ord. H-1207 §5, 83)

6.16 ENFORCEMENT - PENALTIES

Contents:

6.16.010 Enforcement of Title.

6.16.015 Law Enforcement Canines.

6.16.020 General Penalties for Violations of Title.

6.16.010 Enforcement of Title.

It is made the duty of the animal control officer, or anyone having the authority of animal control officer, including but not limited to law enforcement officers, to enforce the terms and provisions of this title, and the City Manager or the Police Chief may appoint by and with the consent of the Governing Body some suitable person to be known as an animal control officer, whose duties it shall be to assist in the enforcement of this title and to work under the immediate supervision and direction of the police department. Anyone having the authority of an animal control officer is given the authority to seize any animal found outside the City limits when he/she has reasonable grounds to believe the animal committed any act within the City which is prohibited by the provisions of this title or which subjects the animal to seizure if found within the City. Any private person may, upon signed complaint, bring charges against any owner of a dog, cat, or other warm-blooded animal for the violation of any of the provisions of this title.

(History: Ord. DAC-1311 §25, 85; DAC-697 §17, 72)

6.16.015 Law Enforcement Canines.

The provisions of this title shall not apply to law enforcement canines owned, kept and maintained by the City of Overland Park, Kansas, for law enforcement purposes nor shall the provisions of this title apply to law enforcement canines brought into the City of Overland Park, Kansas, at the request of the City of Overland Park Police Department for assistance in law enforcement purposes, provided that all law enforcement canines shall be inoculated against rabies as required by Section [6.04.060](#).

(History: Ord. DAC-1606 §1, 89)

6.16.020 General Penalties for Violations of Title.

Any person who fails to do anything required by this title or who does anything prohibited by this title is guilty of a violation thereof. Any person convicted of the violation of any provision of this title where a specific penalty is not otherwise prescribed shall be punished as provided in [1.12.010](#). Each day that any violation of these sections shall continue shall constitute a separate offense.

(History: Ord. DAC-1131 §26, 85; DAC-697 §18, 72)

REPEALED SECTIONS OF TITLE 6 - ANIMALS

Repealed Sections of 6.08 Control and Impoundment of Dogs and Cats

6.08.040 Violation of 6.08.020 - Penalty Generally. (Repealed)

Repealed.

(History: Ord. DAC-1679 §10, 91; DAC-1512 §1, 88; DAC-1385 §8, 86; DAC-1311 §6, 85; DAC-1104 §1, 81; DAC-1091)

6.08.050 Violation of 6.08.020 - Penalty Procedure. (Repealed)

Repealed.

(History: Ord. DAC-1311 §27, 85; DAC-1104 §2, 81; DAC-1091)

Repealed Sections of 6.09 Animal Welfare

6.09.030 Injury to a Domestic Animal. (Repealed)

Repealed.

(History: Ord. DAC-2959 §8, 2012; DAC-1729 §6, 92; DAC-1311 §15, 85; POC-625 §34, 72)

TITLE 7 - HEALTH AND SANITATION

7.01 CODE ENFORCEMENT - GENERALLY

Contents:

7.01.100 Authorized Actions.

7.01.200 Required Registration for Problem Properties.

7.01.100 Authorized Actions.

The Code Official, or, where appropriate, the Governing Body, is authorized, subject to any adopted policies or administrative rules or regulations, to take the following actions to bring the subject property into compliance with this code or other ordinances of the City. Those actions include, without being limited to, abatement of the violation; vacation of the premises until the violation is corrected; prohibition of occupancy of the premises until the violation is corrected; issuance of a Notice to Appear in Municipal Court; injunctive or other relief in the District Court of Johnson County; suspension or revocation of any City licenses pertaining to the premises that remain in violation, and any other necessary or appropriate actions authorized by any applicable law, ordinance, statute, rule or regulation. If no public necessity is found for the immediate demolition of the structure or premises, the code official or Governing Body may take such other action, including, without limitation, causing the property to be cleaned, cleared, vacated, secured or otherwise repaired or any other action deemed necessary to promote the public health, safety or general welfare. The provisions of Section 7.26.230 shall be made applicable to this section and pursuant to those provisions and any other applicable laws, statutes, ordinances, rules or regulations, the property owner may be charged for the costs incurred by the City in taking any actions to abate or correct such unlawful conditions, including administrative fees, and a lien may be placed on the property for any such unpaid costs and fees. The City Manager shall designate the department, division, employee or agency of the City to enforce this code, and such designee shall, for the purposes of this code, be known as the code official or code administrator.

(History: Ord. CCO-2243 §1, 2000)

7.01.200 Required Registration for Problem Properties.

The Director of Planning and Development Services is authorized to adopt written rules and regulations specifying the criteria for placing non-owner occupied property within a responsible party registration program for problem properties. These rules and regulations shall follow the general guidelines set forth in this section. Such properties shall include, without being limited to, properties where the owner or the accused has failed to appear at arraignment or trial, or that have been the subject of a prosecution in Municipal or District Court or a civil proceeding in any court of competent jurisdiction where, in the course of those judicial proceedings, a warrant for failure to appear in court, a contempt of court order, or any similar order reflecting the accused or owner's failure to comply with required court procedures or orders, was issued by the court. The rules and regulations shall provide for the inclusion in that program of properties where any code violation remains uncorrected after the completion of appropriate court proceedings initiated by the City or properties where a failure to correct outstanding violations of the Overland Park Municipal Code has resulted in the City being required to undertake action to abate the violation or vacate the subject property, or both. The rules and regulations shall contain appropriate procedures consistent with the requirements of due process governing the designation of property for inclusion in the program and an appeal process for any property owner aggrieved by such inclusion. No property subject to the requirements of this registration program may be operated as non-owner occupied property within the City, leased or rented to any tenant, or occupied in any manner by a tenant of any kind whatsoever, unless and until full compliance with the registration program has been certified by the City and all outstanding code violations have been corrected and all costs, charges, fees, court fines and costs and all other financial obligations to the City are satisfied in full. The rules and regulations shall include, at a minimum, the following matters: detailed requirements pertaining to the designation and definition of a responsible party who shall be obligated to keep the subject property in full compliance with all applicable code provisions; personal information pertaining to that responsible person, such as a residence address and phone number as well as documentation of sufficient identifying characteristics of that person to allow, if necessary, the issuance of a warrant for their arrest. The Director shall submit a copy of these proposed rules and regulations to the Community Development Committee not less than 30 days before their effective date.

(History: Ord. CCO-2243 §1, 2000)

TITLE 7 - HEALTH AND SANITATION

7.04 NUISANCES GENERALLY

Contents:

7.04.010 Certain Matters Declared Nuisances.

7.04.020 Things Injurious or Annoying.

7.04.150 Title.

7.04.160 Purpose and Findings.

7.04.170 Definitions.

7.04.180 Nuisances or Unsafe Structures Unlawful; Responsibility to Abate.

7.04.190 Enforcement Against Nuisances; Designation of Officer; Order of Abatement; Hearing; Notice to Appear.

7.04.200 Abatement of Nuisance by City; Notice of Costs; Assessment and Collection.

7.04.220 Excavation Fill.

7.04.230 Removal of Unsafe Structures; Salvage, Sale; Assessment and Collection Of Costs; Procedure.

7.04.280 Immediate Hazards.

7.04.290 Right of Entry; Unlawful Interference; Penalty.

7.04.300 Penalty.

7.04.310 Severability.

7.04.010 Certain Matters Declared Nuisances.

The following sections designate matters that are nuisances.

(History: Ord. NU-99 Art. I §1 (part) 1961)

7.04.020 Things Injurious or Annoying.

Every act done, occupation followed or thing kept or maintained by any person or persons, partnership or corporation so as to constitute an injury or annoyance to the public is a nuisance.

(History: Ord. NU-99 Art. I §1(a) 1961)

(See also: [11.28.095](#))

7.04.150 Title.

The title of Overland Park Municipal Code Sections 7.04.150 through 7.04.310, inclusive, shall be known as the Nuisance and Unsafe Structures Enforcement Act (NUSE Act).

(History: Ord. NU-1382 §1, 86)

7.04.160 Purpose and Findings.

- A. The purpose of the Nuisance and Unsafe Structures Enforcement Act is to provide reasonable controls restricting and prohibiting the allowance of nuisances and unsafe structures to exist on property within the City of Overland Park; to declare that certain conditions constitute public nuisances or unsafe structures, which are unsightly, are a menace and dangerous to health of the inhabitants of the City, or of any residential or commercial area and the residents thereof, and are offensive to the general public health, safety, and welfare of the community; to provide a method of enforcement of this Act; to provide procedures to notify property owners or those in control of real property that a violation exists and to allow for self-abatement by such person; to provide property owners or those in control of real property notification and an opportunity to be heard concerning violations of the Act; to provide administrative procedures to allow the City to direct the abatement of violations; to provide a method of assessment or collection of costs for abatement by the City; to declare that the existence of such violations are unlawful; and to provide penalties for enforcement through the Municipal Court system.
- B. The Governing Body of the City of Overland Park, Kansas, hereby finds that the allowance of nuisances and unsafe or dangerous structures, as defined herein, on private property or adjacent rights-of-way or easements are public nuisances which are unsightly, a menace dangerous to the health of the inhabitants of the City, or of the residential or commercial area and the residents thereof, and are offensive to the general public health, safety, and welfare of the community. Such nuisances or unsafe structures promote conditions which cause disease, pollution; proliferation of rats, vermin, mosquitoes, and snakes; the spread of fire; a harmful environment for transients and to the community as a result of transient use; harmful attractions for children; creates short and long-term impacts on the area including the diminution of property values and the integrity of the neighborhood; and interferes with the orderly development of property in the City.

(History: Ord. NU-1382 §1, 86)

7.04.170 Definitions.

For purposes of this Act, the following definitions shall apply:

- A. **City** shall mean the City of Overland Park, Kansas.
- B. **Property owner** shall mean the named property owner as indicated by the records of the Records and Tax Administration or Appraiser's Office in Johnson County, Kansas.
- C. **Drainageway** shall mean a man-made or natural conveyance that transports stormwater overland which is frequently referred to as a channel, swale, engineered swale, ditch, gully, stream, or watercourse. The **drainageway** includes all land inundated during the 1% design storm. A drainageway does not include areas where water flows in a non-concentrated or sheet flow condition.

- D. **Representative** shall mean any person or entity listed in the Johnson County, Kansas, Appraiser's Office or Treasurer's Office for the purposes of paying taxes; a registered agent with the Kansas Secretary of State's Office for corporate or partnership ownership; an agent or manager directed by the property owner, estate, or court order to represent the interests of the property or to otherwise control activities on the real property; or a corporate officer.
- E. **Person** shall mean any individual; individuals; partnership; corporation; unincorporated association; other business organization; committee; board; trustee; receiver; agent; or any representative who has charge, care or responsibility for maintenance of any property, lot or parcel of land regardless of status as owner, tenant or lessee, and regardless of whether such person has possession.
- F. **Tenant** shall mean any person who has a severable or nonseverable interest in the real property either by oral or written lease or covenant, or by other methods of conveying a limited interest in such lands; or any person who occupies or has possession of such real property.
- G. **Perennial violator** shall mean any person who shows an annual pattern of failing to comply with this Act which may be shown by repeated notices of abatement, notices of costs, or previous violations of this Act.
- H. **Nuisance** shall mean any condition which causes or creates an unreasonable interference with the rights of the general public and shall include, but not be limited to, graffiti, rank vegetation; rank or infested compost heaps; dense smoke; excessive dust, ash, or fine particles in the air; rank ponds or standing water including swimming pools, water receptacles, and undrained areas; cesspools creating on or rising to the surface; rank odors; unkempt trash, refuse, brush and limbs, debris or building materials; rank sewage or septic system; excessive accumulation of animal waste; exposed animal carcasses after death; sheds, garages, or other out-buildings allowing infestation of rodents or insects or left unsecured to allow entry of animals, humans, or the natural elements such as rain, hail and snow, or otherwise left unkempt or unsightly, except for outdoor dog or pet houses maintained in a clean and reasonable manner; trees, shrubs, or plants which are dead, diseased or infested which present a harmful or dangerous condition to the public; exposed refrigerators or freezers, or other appliances left unsecured; private streets on residential and commercial properties containing potholes or other conditions creating safety hazards for pedestrians or motor vehicles; encroachments in the public right-of-way for private purposes which create a safety hazard including, but not limited to, fixed basketball goals and masonry mailbox enclosures; surface discharge from sump pumps or other subsurface drainage lines in a manner that causes buildup of algae or ice that endangers pedestrian or vehicular traffic; and any other condition which is determined to present a dangerous or harmful condition to the public.
- I. **Unsafe structure** shall mean any structure or part of a structure which remains or is damaged to present a dangerous or unsafe condition to the public including, but not limited to, structures damaged by fire, damaged by natural events or elements such as wind, tornadoes, earthquakes, flooding or settling of the ground; damaged by insect infestation; damaged due to the failure to provide reasonable maintenance; structures occupied or unoccupied which have broken windows, missing boards or siding, unsecured doors, or unsecured openings which allow the harboring of animals, insects, transients, or create an attraction to children; structures which, due to the opinion of qualified experts or inspectors,

including but not limited to, fire, engineering, or architectural experts, present an unsafe or dangerous condition to those on or near the property; unfinished structures where no occupancy permit has been issued, and any building permit has lapsed for more than 30 days; structures which remain unfinished, or without an occupancy permit, after 18 months from the date of the first building permit and where no inspection for newly completed work has been requested from the City within the last 45 days.

J. **Qualified expert** shall mean a person who is regularly employed to conduct structural inspections to comply with life, safety, mechanical, health, and building codes or a licensed professional in the field of engineering or architecture.

K. **Graffiti** shall mean any drawing, painting, writing, inscription, figure or mark, regardless of its content, of the type which is commonly known and referred to as "graffiti," which is written, drawn, painted, sprayed, scratched or otherwise placed or affixed, regardless of the nature of the material used, on any wall, window, rock, building or portion thereof, fence, gate, sign, utility box, utility pole, other structure, tree or other real or personal property, either publicly or privately owned, and that is visible from any adjacent public or private property or public or private right-of-way.

(History: Ord. ROCR-3305 §3, 2020; Ord. EGD-2948 §1, 2012; NU-2877 §1, 2011; NU-2601 §1, 2006; NU-1719 § 1, 92; NU-1382 §1, 86)

7.04.180 Nuisances or Unsafe Structures Unlawful; Responsibility to Abate.

A. It shall be unlawful for any property owner, representative, tenant, or other such person with control, occupancy, or possession of real property to allow or maintain a nuisance or unsafe structure to exist on any lot or parcel of land within the City, including any areas between the property lines of said lot or parcel and the center line of any adjacent street or alley including sidewalks, streets, alleys, easements and rights-of-way.

B. The property owner, representative, tenant or other such person with control, occupancy, or possession of real property shall be responsible for the abatement of any nuisance or unsafe structure.

(History: Ord. NU-1382 §1, 86)

7.04.190 Enforcement Against Nuisances; Designation of Officer; Order of Abatement; Hearing; Notice to Appear.

A. The Governing Body hereby delegates to the City Manager the authority to designate a public officer to be charged with the administration and enforcement of this Act as it concerns nuisances. The public officer shall authorize the investigation of violations of the Act. If it is determined that a violation of this Act exists, then the officer shall file a written report with the City Clerk and direct that an order of abatement be sent to the property owner, representative, or tenant. The Governing Body, by resolution, also may make such determination;

B. Except as provided by Subsection C, the order of abatement shall be served on the owner or agent of such property by certified mail, return receipt requested, or by personal service, or if the same is unoccupied and the owner is a nonresident, then by mailing a notice by certified mail, return receipt requested, to the last known address of the owner.

- C. If the owner or agent of the owner of the property has failed to accept delivery or otherwise failed to effectuate receipt of an order sent pursuant to this Section during the preceding 24-month period, the City may provide notice of the issuance of any further orders to abate or remove a nuisance from such property in the manner provided by Subsection B or as provided in this Subsection. Except as specifically provided in this Subsection, the City may provide notice of the order by such methods including, but not limited to, door hangers, conspicuously posting notice of such order on the property, personal notification, telephone communication or first class mail. If the property is unoccupied and the owner is a nonresident, notice provided by this Section shall be given by telephone communication or first class mail.
- D. The order of abatement shall state:
1. A common or legal description of the property, or both;
 2. That the property is in violation of the Act;
 3. The nature of the violation, including relevant ordinances, with sufficient information that would reasonably allow the recipient to determine the nature of the violation to allow for self-abatement;
 4. That the condition creating the violation shall be abated within a designated time period, not exceeding 10 days from the date of the notice, provided that extensions of such 10-day time period shall be granted if the owner or agent of the owner of the property demonstrates that due diligence is being exercised in abating the nuisance;
 5. That the recipient, upon written request, may obtain a hearing before a designated hearing officer, provided such request is received by the City Clerk prior to the expiration of the designated waiting period;
 6. That failure to comply with the order of abatement shall result in the abating the violation with the assessment of costs made against the property or by filing for judgment against the recipient;
 7. That failure to pay such assessments within 30 days of the notice of costs shall result in the filing of a tax lien against the property, or the filing for judgment against the recipient, or both;
 8. That such violations are subject to prosecution.
- E. If the recipient of the order of abatement makes a written request for hearing within the waiting period, then the City shall immediately schedule a hearing before a designated hearing officer. The hearing officer shall receive evidence, review the investigation, and prepare a written order. The order shall be sent by certified mail to all relevant parties within 10 days of the hearing, unless otherwise stated at the hearing, and prior to the City taking any action to abate the violation. The order shall describe the relevant facts relied upon, state the specific Code provisions being relied upon should a violation be found, and state any such other stipulations, methods of abatement, or orders as deemed necessary by the hearing officer.
- F. If an authorized public officer determines that a violation of this Act exists, he or she may issue a Notice to Appear in Municipal Court for such violation. No other procedures are required as a prerequisite to the issuance of a Notice to Appear.

(History: Ord. NU-2601 § 2, 2006; NU-2299 §1, 2001; NU-1382 §1, 86)

7.04.200 Abatement of Nuisance by City; Notice of Costs; Assessment and Collection.

- A. If the recipient of the order of abatement fails to comply with the order within the period of time designated in the order, or fails to comply with the order after a hearing on the matter, then the City may go onto the property to abate the violation in a reasonable manner. The City shall not be responsible for damage to property due to reasonable methods of gaining entrance onto the property or for damages to property in the reasonable exercise of its duty to the public to abate the violations. The City may use its own employees or contract for services to abate violations of the Act.
- B. If the City takes action to abate the violation, it shall provide a Notice of Costs to the property owner, representative, or tenant. The Notice of Costs shall be delivered by certified mail, return receipt requested, at the last known mailing address; or if the property is vacant or unoccupied, the Notice of Costs shall also be posted on the property in a reasonable manner. The recipient shall have 30 days from the date of the Notice to make full payment. The Notice of Costs shall state:
1. The common or legal description of the property, or both;
 2. The nature of the violation, including relevant ordinances;
 3. The nature of the work performed to abate the violation;
 4. The costs incurred for the abatement of the violations in either a lump sum or in itemized form;
 5. That the notice is a demand for payment within 30 days from the date of notice;
 6. That failure to pay the entire amount within 30 days shall allow the City to file a tax lien against the property or to pursue litigation for the recovery of the costs, or both;
 7. That such additional remedies to recover costs shall include additional amounts including additional administrative costs, attorneys' fees when applicable, and interest;
 8. That payments shall be made by check or money order made payable to the City of Overland Park, Kansas, with no post-dating of the check, and sent to the address as stated within the notice with a written indication of the purpose for the payment and the address of the property where the violations occurred. Partial payments will not be accepted and shall be considered as non-payments.
- C. If the payment of costs is not made within the 30-day period, the City may levy a special assessment for such costs against the lot or piece of land. The City Clerk at the time of certifying other City taxes to the County Clerk shall certify the aforesaid costs, and the County Clerk shall extend the same on the tax roll of the county against the lot or parcel of ground, and it shall be collected by the county treasurer and paid to the City as other City taxes are collected and paid. Provided further, the City may collect the costs in the manner provided at K.S.A. 12-1,115, as amended, by bringing an action in the appropriate court as a personal debt. The City may pursue both assessment and collection at the same time until the full cost, including applicable interests, court costs, attorneys' fees, and administrative costs have been paid in full. (Ref. K.S.A. 12-1617e, as amended).

(History: Ord. NU-2601 § 3, 2006; NU-1382 §1, 86)

7.04.220 Excavation Fill.

It shall be the duty of the property owner, representative or the tenant, upon removal of a structure, to fill any basement or other excavation located upon the premises and take any other action necessary to leave such premises in a safe condition including the grading and seeding or sodding of the area, removal of dirt or mud from roads, streets, alleys, or sidewalks, to allow for proper drainage of the site, and to remove any and all refuse, trash, debris, brush and limbs, or materials from the site.

(History: Ord. NU-1382 §1, 86)

7.04.230 Removal of Unsafe Structures; Salvage, Sale; Assessment and Collection Of Costs; Procedure.

- A. If the owner of any structure has failed to commence the repair or removal of such structure within the time stated in the resolution or has failed to diligently prosecute the same thereafter, the City may proceed to raze and remove such structure, make the premises safe and secure, or let the same to contract. The City shall keep an account of the cost of such work and may sell the salvage from such structure and apply the proceeds or any necessary portion thereof to pay the cost of removing such structure and making the premises safe and secure. All moneys in excess of that necessary to pay such costs, after the payment of all costs, shall be paid to the owner of the premises upon which the structure was located.
- B. The City shall give notice to the owner of such structure by certified mail, return receipt requested, of the total cost incurred by the City in removing such structure and making the premises safe and secure. Such notice also shall state that payment of such cost is due and payable within 30 days following receipt of such notice. If the cost is not paid within the 30-day period and if there is no salvageable material or if moneys received from the sale of salvage or from the proceeds of any insurance policy in which the City has created a lien pursuant to K.S.A. 40-3901 et seq., and amendments thereto, are insufficient to pay the cost of such work, the balance shall be collected in the manner provided by K.S.A. 12-1,115, as amended, or shall be assessed as a special assessment against the lot or parcel of land on which the structure was located and the City Clerk at the time of certifying other City taxes, shall certify the unpaid portion of the costs and the County Clerk shall extend the same on the tax rolls of the county against such lot or parcel of land. The City may pursue collection both by levying a special assessment and in the manner provided by K.S.A. 12-1,115, as amended, but only until the full cost and any applicable interest has been paid in full.
- Whenever any structure is removed from any premises under the provisions of this act, the City Clerk shall certify to the county appraiser that such structure, describing the same, has been removed.
- C. If there is no salvageable material, or if the moneys received from the sale of salvage or from the proceeds of any insurance policy in which the City has created a lien pursuant to K.S.A. 40-3901 et seq., and amendments thereto, are insufficient to pay the costs of the work, such costs or any portion thereof in excess of that received from the sale of salvage or any insurance proceeds may be financed, until the costs are paid, out of the general fund or by the issuance of no-fund warrants. Whenever no-fund warrants are issued under the authority of this act, the Governing Body of such City shall make a tax levy at the first tax levying period for the purpose of paying such warrants and the interest thereon. All such tax levies shall be in addition to all other levies authorized or limited by law and shall not be subject to the aggregate tax levy prescribed in article 19 of chapter 79 of the Kansas Statutes Annotated,

and amendments thereto. Such warrants shall be issued, registered, redeemed and bear interest in the manner and in the form prescribed by K.S.A. 79-2940, and amendments thereto, except they shall not bear the notation required by that section and may be issued without the approval of the state board of tax appeals. All moneys received from special assessments levied under the provisions of this section or from an action under K.S.A. 12-1,115, as amended, when and if paid, shall be placed in the general fund of the City.

(History: Ord. NU-1382 §1, 86)

7.04.280 Immediate Hazards.

In the event the public officer authorized under this Act determines that a nuisance or unsafe structure exists which creates an immediate hazard, then the City shall proceed, without delay, to take steps to abate the situation and without prior notice to or hearing of the owner, representative, or tenant. The cost of such action shall be assessed as set forth in Chapter 7.28 of this Code, or pursuant to K.S.A. 12-1,115, as amended, or both.

(History: Ord. NU-1382 §1, 86)

7.04.290 Right of Entry; Unlawful Interference; Penalty.

- A. Any authorized officer or agent of the City, pursuant to this Act, shall be allowed to enter onto any land within the City limits to investigate violations of this Act or for the abatement of violations pursuant to this Act.
- B. It shall be unlawful for any person to interfere with a public officer or agent of the City in performing his or her duties pursuant to this Act whether investigating or abating violations.
- C. Any person who interferes with an officer or agent of the City pursuant to this Act shall be punished as provided in Section [1.12.010](#) of this Code.

(History: Ord. NU-1382 §1, 86)

7.04.300 Penalty.

- A. Any property owner, representative, tenant, or person found in violation of this Act shall be subject to prosecution in the Overland Park Municipal Court. Any such person found guilty of violating the provisions of this Act shall be subject to a fine of not less than \$50 nor more than \$500 and not more than 10 days in jail, or both a fine and jail sentence. Any person found guilty of this Act two or more times within any one-year period, or determined by the Municipal Court to be a perennial violator, shall be fined not less than \$250 nor more than \$500 and shall be subject to a sentence not to exceed 30 days in jail, or both a fine and a jail sentence.
- B. Prosecution of any offender under this Act does not limit the City's right to pursue assessment or collection of costs as stated in this Act, or by other laws.
- C. Each day that any violation shall continue shall constitute a separate offense.
- D. Any fines assessed under this Act shall be collected by the Municipal Court administration and paid over to the general fund, except for assessments of court costs.

(History: Ord. ROCR-2245 §9, 2001; NU-1382 §1, 86)

7.04.310 Severability.

If any section, subsection, paragraph, sentence, clause or phrase in this Chapter or any part thereof is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this Chapter or any part thereof.

(History: Ord. NU-1382 §1, 86)

TITLE 7 - HEALTH AND SANITATION

7.08 NOISE

Contents:

7.08.001 Definitions.

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7.08.001 Definitions.

The following words and phrases when used in this ordinance shall, for the purpose of this ordinance, have the meanings respectively ascribed to them in this section unless otherwise defined in the text of the section.

Commercial Area– property zoned C-O, CP-O, C-1, CP-1, C-2, CP-2, C-3, CP-3, CBD, DD, Oxford Township Districts CP-0J, CP-1J, CP-2J, CP-3J (per the March, 1982, Zoning and Subdivision Regulations for Oxford Township), or property operating under a special use permit for a commercial use.

dB(A)– A-weighted sound level measured in decibels by a general purpose, properly calibrated, sound level meter complying with the provisions of the American National Standard Institute.

Emergency Motor Vehicle– a motor vehicle belonging to a fire department or certified private volunteer firefighter or firefighting association, partnership or corporation, an ambulance, or a motor vehicle belonging to a federal, state, county or municipal law enforcement agency, provided such vehicle is being used as an emergency vehicle by one authorized to use such vehicle for that purpose.

Industrial Area - property zoned BP, M-1, MP-1, M-2, MP-2, and Oxford Township Districts IP-1J and IP-2J (per the March, 1982, Zoning and Subdivision Regulations for Oxford Township).

Plainly Audible– capable of being heard. It is not necessary to distinguish words or melodies. A plainly audible sound may consist of bass alone.

Property Owner– the named property owner as indicated by the records of the Register of Deeds or Appraiser's Office in Johnson County, Kansas.

Residential Area– property zoned RE, R-1, RP-1, R-1A, RP-1A, R-2, RP-2, R-3, RP-3, RP-4, R-5, RP-5, R-6, RP-6, former District R-4, and Oxford Township Districts RR, R-1A, R-1B, R-2, R-3 and R-4 (per the March, 1982, Zoning and Subdivision Regulations for Oxford Township) or property upon which a legal non-conforming residential use is operating.

Sound Amplification or Producing Device or Similar Equipment– shall mean radio, radio receiving set, television, phonograph, stereo, tape player, cassette player, compact disc player, “boom box,” loudspeaker, drum, juke box, nickelodeon, musical instrument, sound amplifier or other device which produces, reproduces, or amplifies sound.

Tenant– any person who has an interest in real property either by oral or written lease or covenant.

(History: Ord. NOI-2287 §1, 2001)

7.08.002 Unlawful to Cause a Noise Disturbance.

It shall be unlawful to make or cause to be made a Noise Disturbance within the City. A Noise Disturbance shall include any or all of the following:

- A. A sound registered on a decibel meter from any source not exempted or otherwise regulated by this Chapter and which, when measured anywhere off of the property of the sound source, is in excess of the dB(A) established for the time period and zones listed below.

AREA	7:00 a.m. – 10:00 p.m.	10:00 p.m. – 7:00 a.m.
Residential	60 dB(A)	55 dB(A)
Commercial	65 dB(A)	60 dB(A)
Industrial	70 dB(A)	65 dB(A)

- B. The owning, keeping or harboring of any animal that howls, barks or emits audible sounds, without provocation of the complainant, that are unreasonably loud or disturbing which are of such character, intensity and duration as to disturb the peace and quiet of a reasonable person in the neighborhood or to be detrimental to the life and health of any individual.
- C. A sound resulting from the erecting, constructing, excavating, demolishing, altering or repairing of any structure, or operating, or permitting the operation of any tools or equipment used in construction, drilling, or demolition work in such a manner as to cause a sound Plainly Audible across any property boundary line between the hours of 9:00 p.m. and 7:00 a.m. Between the hours of 7:00 a.m. and 9:00 p.m., this activity shall not be subject to the time, area and dB(A) limits set forth in subsection A.
- D. The repairing, rebuilding, modifying or stationary testing of any motor vehicle, motorcycle, or motorboat in such a manner as to cause a sound Plainly Audible across any property boundary line between the hours of 10:00 p.m. and 7:00 a.m. Between the hours of 7:00 a.m. and 10:00 p.m., this activity shall not be subject to the time, area and dB(A) limits set forth in subsection A.
- E. The operating or occupancy of a vehicle, which is moving or stationary, standing or parked, whether persons are seated in the vehicle or not, from which any Sound Amplification or Producing Device or Similar Equipment is creating a sound that is Plainly Audible at least fifty (50) feet from the source of the sound.* A violation of this subsection shall be a traffic offense.
- F. The operation of any power tool, garden tool, lawnmower, snow blower or other similar equipment or device in Residential Areas in such a manner as to cause a sound Plainly Audible across any property boundary line between the hours of 10:00 p.m. and 7:00 a.m.

Between the hours of 7:00 a.m. and 10:00 p.m., this activity shall not be subject to the time, area and dB(A) limits set forth in subsection A.

- G. The operating, playing, permitting or causing to be operated or played any Sound Amplification or Producing Device or Similar Equipment in a manner as to cause a sound Plainly Audible across any property boundary line between the hours of 12:00 a.m. (midnight) and 6:00 a.m. Between the hours of 6:00 a.m. and 12:00 a.m. (midnight), this activity is subject to the area and dB(A) limits set forth in subsection A above.

*As to vehicle equipment and maintenance and prevention of excessive or unusual noise therefrom, see OPMC 12.04.175(a).

(History: Ord. NOI-3051 §1, 2014; NOI-2772 §1, 2008; NOI-2373 §1, 2002; NOI-2287 §2, 2001)

7.08.003 Unlawful to Allow a Noise Disturbance; Responsibility for Abatement.

- A. It is unlawful for any Property Owner or Tenant, or other person with control, occupancy, or possession of residential property, to allow or permit a person or group of persons to create a Noise Disturbance as defined in subsections A through G of Overland Park Municipal Code Section 7.08.002 on said property.
- B. The Property Owner, Tenant or other such person with control, occupancy, or possession of property, shall be responsible for abatement of Noise Disturbances occurring on that property and failure to do so shall be a violation of this section.

(History: Ord. NOI-2310, §1, 2001; Ord. NOI-2287, §3, 2001)

7.08.004 Exemptions.

The following shall not be considered to be Noise Disturbances for purposes of this ordinance:

- A. Sound from law enforcement motor vehicles and other Emergency Motor Vehicles including, but not limited to, snow-clearing equipment.
- B. Sound from vehicles or equipment belonging to the city, state, county, federal government, school or other governmental agencies or utilities engaged in preparing for or remedying a potentially hazardous situation.
- C. Sound that a person is making or causing to be made when said person has received and maintains a valid license or permit which specifically allows sound levels in excess of those set forth in this ordinance from any department, board or commission of the City authorized to issue such license or permit.
- D. Sound originating from private property, provided that such property was annexed into the City by either Ordinance No. A-2367 or Ordinance No. A-2719.

(History: Ord. NOI-2696 §1, 2008; NOI-2402 §1, 2002; NOI-2373 §2, 2002; NOI-2291 §1, 2001; NOI-2287 §4, 2001)

7.08.005 Penalties.

- A. Upon a first conviction for a violation of this chapter, the Court shall assess a fine of no less than fifty dollars (\$50.00). Upon a second conviction, the Court shall assess a fine of no less

than one hundred fifty dollars (\$150.00). Upon a third or subsequent conviction, the Court shall assess a fine of no less than two hundred fifty dollars (\$250.00). No prior conviction shall be considered in determining the penalty to be assessed if twenty-four (24) months have elapsed between the date of the violation and the date of the conviction next immediately preceding the sentencing date.

- B. No person shall be eligible for a parole, suspension or reduction of any part of said fine except that that portion of any fine or combination of fines that exceeds two hundred dollars (\$200.00) assessed from the same set of operative facts may be suspended for twelve (12) months on the condition the violator have no further violations of the noise ordinance during that period. In addition to any such fine imposed, the Court may impose a jail term of up to six (6) months.
- C. Each occurrence of a violation, or in the case of a continuous violation, each day a violation occurs or continues, constitutes a separate offense and shall be punishable as such hereunder.

(History: Ord. NOI-2287 §5, 2001)

7.10.010 Incorporation.

There is incorporated by reference, for the purpose of establishing minimum requirements for the operation and maintenance of such pools, spas and similar facilities to minimize hazards to health and safety of users of such facilities, comprehensive regulations entitled "Rules and Regulations Relating to the Operation and Maintenance of Swimming Pools, Spas and Similar Facilities in the City of Overland Park, Kansas," dated November, 1997 and approved by the Community Development Committee of the City Council on November 5, 1997; prepared, compiled, published and promulgated by the City of Overland Park, Kansas, Health and Environment Division, in code form as that term is defined in K.S.A. 12-3301 (c), such incorporation by reference being authorized by K.S.A. 12-3009 to and including 12-3012. Not less than three (3) copies of said ordinance shall be marked "official copy as adopted by Ordinance No. SPR-2081" to which shall be attached a copy of the ordinance codified herein, and filed with the City Clerk to be opened to inspection and available to the public at all reasonable business hours. The Municipal Court and all administrative departments of the City charged with the enforcement of the ordinance shall be supplied at the cost of the City such number of official copies of such ordinance as may be deemed expedient. The Governing Body may set fees for inspection and licensing of regulated facilities by adoption of a Resolution.

(History: Ord. SPR-2081 §1, 97; Ord. SPR-1980 §1, 96)

TITLE 7 - HEALTH AND SANITATION

7.16 TREES AND SHRUBS

Contents:

- 7.16.100 Purpose and Intent.**
- 7.16.110 Legacy of Greenery Committee.**
- 7.16.120 City Forester.**
- 7.16.130 Definitions.**
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- 7.16.190 Trees and Shrubs on Private Property.**
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- 7.16.208 Abatement by City; Notice of Costs; Assessment and Collection.**
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- 7.16.220 Exceptions and Other Regulations.**

7.16.100 Purpose and Intent.

- A. Protect and encourage the protection and Maintenance of Trees and Shrubs.
- B. Promote and preserve the City's aesthetic value with respect to Trees and Shrubs.
- C. Regulate and control planting and Maintenance of Trees and Shrubs on and adjacent to private property, Right-of-way and other public properties.
- D. Provide for public health, safety and general welfare with respect to Trees and Shrubs.
- E. Establish the Legacy of the Greenery Committee as a tree board for the City.
- F. Designate a City Forester.

(History: Ord. TP-3025 §1, 2014; TP-2032 §1, 97; TP-1289 §1, 85)

7.16.110 Legacy of Greenery Committee.

A. Creation.

There is hereby created and established a tree board for the City to be known as the Legacy of Greenery Committee (hereinafter referred to as the "Committee").

B. Purpose and Responsibility. The Committee shall be responsible for:

1. Developing strategies to increase, preserve and enhance the City's Tree canopy by promoting, planting and maintaining Trees and Shrubs on both public and private property.
2. The promotion and recognition of commercial developments, businesses, and public entities that have committed to improve and enhance the aesthetics and quality of our environment through landscape enhancements.
3. Supporting the City Forester with programs and events that meet qualifications for National Arbor Day Foundation's Tree City USA status. This includes, but is not limited to, educational programs with the official mascot Forest the Fox, an Arbor Day tree planting ceremony and a tree seedling distribution.
4. The advocacy and dissemination of information supporting proper arboricultural practices, topical concerns affecting the City's Trees, and other information recommended by the City Forester.
5. The review and updating of the List of Approved Street Trees for Overland Park, in accordance with Section 7.16.180.

C. Membership.

1. The Committee shall consist of 13 members who are residents of the City and not less than 18 years of age, and 2 ex-officio members: 1 representing the Planning Commission, and 1 representing the City Council. (For a total of 15 Members.) All Members (including ex-officio) shall be appointed by the Mayor with the consent of the City Council.
2. Should any Committee member move outside the City, the Committee shall declare to the Mayor the existence of a vacancy.
3. The appointments shall be made for two-year terms, plus until their successors take office; provided all vacancies shall be filled by appointment of the Mayor with the consent of the City Council for the unexpired term.
4. Committee members shall serve on a volunteer basis without compensation from the City or any other organization, trust, donation, or legacy for their services to the City.
5. The Committee shall adopt by-laws consistent with the City Council's Rules, Procedures and Protocol for Plural Authorities.
6. The Committee shall elect from its membership a chair and vice-chair, who shall serve one year and until their successors have been selected. Duties and responsibilities of these offices shall be stipulated in the by-laws of the Committee.

D. Staffing. The City Forester shall serve as the staff coordinator for the Committee.

(History: Ord. TP-3363 §1, 2022; Ord. TP-3025 §2, 2014; TP-1289 §2, 85)

7.16.120 City Forester.

A City Forester shall be appointed by the City Manager to serve as the designated City official to observe and enforce the provisions of this Chapter.

(History: Ord. TP-3025 §3, 2014; TP-2032 §2, 97; TP-1289 §3, 85)

7.16.130 Definitions.

For purposes of this Chapter the following definitions shall apply to the listed terms:

- A. **City Forester**– means the City official designated in Section 7.16.120 to observe and enforce the provisions of this Chapter. All references to the City Forester shall include the City Forester’s designee(s).
- B. **Community Services Division**– means the City office designated by the City Manager to perform the duties specified in this Chapter. All references to the Community Services Division shall include the Community Services Division’s designee(s), including but not limited to, the City Forester or any City contractor.
- C. **Landscape Improvements**– means, for the purposes of this Chapter, landscape and hardscape outdoor improvements including, but not be limited to, retaining walls, statues, and decorative boulders.
- D. **Maintenance**- means, without limitation, the protecting, spraying, fertilizing, treating, pruning, abatement of infestation and trimming of Trees or Shrubs.
- E. **Nuisance**– means the doing of an act, failure to perform a legal duty, or the allowance or creation of a condition which injures, endangers, hinders or unreasonably interferes with the public health, safety or welfare in the use and enjoyment of Right-of-way or other public property by the general public. Examples include, but are not limited to, brush and limbs, Trees and Shrubs which are dead, diseased or infested which present a harmful or dangerous condition to the public, and encroachments of Trees and Shrubs in the Right-of-way or other public property which create a safety hazard.
- F. **Owner**– means any person, agent, operator, firm or corporation having a legal or equitable interest in the (real) property; or recorded in the official records of the Johnson County Register of Deeds office as holding title to the property; or otherwise having control of the property, including the guardian of the estate of any such person, and the executor or administrator of the estate of such person if ordered to take possession of real property by a court.
 - 1. *Abutting Owner* – means an Owner that directly abuts the Right-of-way where the Tree or Shrub requiring Maintenance or removal is located.
- G. **Right-of-way**– means the area on, below or above the present and future City Streets, alleys, bridges, bikeways, parkways and sidewalks.
- H. **Shrub**– means a low, usually several-stemmed, woody plant. For the purposes of this Chapter, it shall also include ornamental and native grasses used in place of Shrubs.
- I. **Street**– means the pavement and sub-grade of a City residential, collector or arterial roadway.
- J. **Tree**– means a woody plant having a well-defined stem or trunk, a more or less definite crown, a height at maturity of at least eight feet, and the trunk diameter exceeds two inches.
 - 1. *Large Trees* - Trees with a potential mature height of 50 feet or more.
 - 2. *Medium Trees* - Trees with a potential mature height between 25 to 50 feet.
 - 3. *Small Trees* - Trees with a potential mature height of no more than 25 feet.
 - 4. *Street Trees* - Trees located within the Right-of-way.

(History: Ord. TP-3025 §4, 2014; TP-2032 §3, 97; TP-1289 §4, 85)

7.16.150 Tree and Shrub Distance and Clearance Requirements.

- A. No Tree or Shrub shall be planted in the Right-of-way within a distance of:
 - 1. 10 feet of any fireplug
 - 2. 15 feet of any regulatory sign
 - 3. 20 feet of any street light pole
 - 4. 10 feet of any box culvert
- B. The minimum height clearances for Trees and Shrubs are:
 - 1. 8 feet over public sidewalks
 - 2. 13.5 feet over improved thoroughfares or designated truck routes
 - 3. 12.5 feet over all other Streets
- C. No Tree or Shrub shall be planted or maintained in the Right-of-way within any zone of approach, meaning, the area allowing an unobstructed view in advance of an actual or possible future traffic control device for a distance of 150 feet as measured from the point of the nearest intersecting curbs or curb lines of the Right-of-way.
- D. The sight distance areas, as defined in OPMC Sections 12.04.126 and [18.450.070](#), shall remain free of Shrubs, Landscape Improvements or other vegetation which exceed a height of 2 feet measured from the Street. Trees in this area must be approved by the City Forester.
- E. No Trees, Shrubs or Landscape Improvements over 2 feet in height will be permitted on residential traffic islands or thoroughfare Right-of-way unless approved by the City Forester.
- F. Only Small Tree species, as designated in accordance with Section [7.16.180](#), may be planted or maintained within any portion of Right-of-way with overhead electric lines.
- G. No Tree or Shrub shall be planted or maintained in a location that in any manner creates a Nuisance.

(History: Ord. TP-3025 §5, 2014; TP-1866 §1, 94; TP-1784 §1, 93; TP-1289 §6, 85)

7.16.180 Approved Street Tree List.

Street Tree species allowed to be planted and grown within the Right-of-way will be set forth on the List of Approved Street Trees for Overland Park. This list will be made readily available through the City Forester and on the City's web site and it can be mailed upon request. This list will be reviewed and updated by the Legacy of Greenery Committee at least every three (3) years to reflect changes found in arboricultural practices. The planting of any species not on this list, shall be prohibited unless prior written authorization of the City Forester is obtained; and the City Forester is authorized to adopt regulations providing procedures and criteria for the approval of species not on this List.

(History: Ord. TP-3025 §6, 2014; TP-2732 §1, 2008; TP-2032 §5, 97; TP-1289 §9, 85)

7.16.190 Trees and Shrubs on Private Property.

- A. **Authority.** The Community Services Division shall have the authority to regulate and enforce all regulations concerning the Maintenance and removal of Trees and Shrubs on private property. The City Forester shall assist the Community Services Division as necessary.

- B. Maintenance or Removal.** Whenever the Community Services Division or the City Forester determines that any Tree or Shrub on private property endangers, hinders or obstructs the use of public or private property, is a Nuisance, or in any other way endangers the public health, safety and welfare, the Community Services Division shall issue a notice of violation to order the Maintenance or removal of the Tree or Shrub by the Owner. (See Sections [7.16.205](#) and [7.16.208](#).)
- C. Emergency Action.** In the event the Community Services Division or the City Forester determines that the existing condition of any Tree or Shrub on private property constitutes an immediate hazard to the public health, safety and welfare or otherwise endangers persons or property, then the City shall proceed, without delay, to take steps to abate the situation and without prior notice to or hearing of the Owner, occupant or agent. The cost of such action shall be assessed as set forth in O.P.M.C. Chapter 7.28 as amended, or pursuant to K.S.A. 12-1,115, as amended, or both.
- D. Right to Inspect.** The Community Services Division and the City Forester are hereby authorized to enter on private property for the purpose of inspecting Trees or Shrubs where there appears to be a Nuisance or a threat to public or private property or to the public, health, safety and welfare. This entry and inspection may be done without the prior permission of the Owner, occupant or agent if the threat is imminent and if such notification is not feasible under the circumstances. If any person prevents such entry and inspection, the City may seek an appropriate court order to make such entry and inspection possible.

(History: Ord. TP-3025 §7, 2014; TP-2032 §7, 97; TP-1289 §11, 85)

7.16.195 Trees and Shrubs on Public Property.

- A. Authority.** The City Forester shall have the authority to regulate and enforce all regulations concerning the planting, Maintenance and removal of Trees and Shrubs on public property.
- B. Maintenance.**
1. Whenever the City Forester determines that Maintenance of any Trees or Shrubs located in any Right-of-way is necessary, the City Forester shall follow the procedures set forth in Section [7.16.200](#). Notwithstanding, the City shall always maintain the right to perform any necessary Maintenance of any Tree or Shrub in Right-of-way and the City Forester may at anytime, in the City Forester's discretion, direct city staff or the City's contractor to perform the Maintenance.
 2. Whenever the City Forester determines that Maintenance of any Trees or Shrubs located in any public property other than Right-of-way is necessary, the City Forester shall direct city staff or the City's contractor to perform the Maintenance. Notice to any Abutting Owner is not required.
- C. Removal.**
1. Whenever the City Forester determines that removal of any Shrubs located in any Right-of-way is necessary, the City Forester shall follow the procedures set forth in Section [7.16.200](#). Notwithstanding, the City shall always maintain the right to perform any necessary removal of any Shrub in Right-of-way and the City Forester may at anytime, in the City Forester's discretion, direct city staff or the City's contractor to perform the removal.

2. Whenever the City Forester determines that removal of any Tree in Right-of-way is necessary, the City Forester shall direct city staff or the City's contractor to perform the removal. Notice to any Abutting Owner is not required.
3. Whenever the City Forester determines that removal of any Tree or Shrub on any public property other than Right-of-way is necessary, the City Forester shall direct city staff or the City's contractor to perform the removal. Notice to any Abutting Owner is not required.

(History: Ord. TP-3025 §8, 2014; TP-2032 §8, 97)

7.16.200 Abutting Owner's Duty to Right-of-way.

- A. **Duty.** Abutting Owners are responsible for Maintaining the Trees and Shrubs within or encroaching within the abutting Right-of-way in a manner which promotes safe and healthy Trees and Shrubs and which protects the health, safety, and welfare of the public with respect to the same. The Abutting Property Owners shall not allow such Trees and Shrubs to hinder or obstruct the Right-of-way, create a Nuisance, or threaten life or property within the Right-of-way. When applicable, this duty shall also include the responsibility to remove Shrubs within the abutting Right-of-way. Whenever the Community Services Division or the City Forester determines that any such Tree or Shrub endangers, hinders or obstructs the use of the Right-of-way, is a Nuisance, or in any other way endangers the public health, safety and welfare, the Community Services Division shall issue a notice of violation to order the Maintenance of the Tree or Shrub by the Owner. (See Sections [7.16.205](#) and [7.16.208](#).)
- B. **City Assistance.** An Abutting Owner may contact the City Forester to request the City's assistance with the removal of a diseased, hazardous, or dead Tree in the Right-of-way. Diseased Trees are those diagnosed by the City Forester as having a highly contagious disease that could have catastrophic effects upon the City's Trees. An Abutting Owner may also request the City's assistance with the removal of storm damage from Right-of-way Trees to ensure that the Right-of-way is kept clear for vehicular and pedestrian traffic and that public safety, health and welfare is maintained.

(History: Ord. TP-3025 §9, 2014; TP-2032 §9, 97; TP-1289 §12, 85)

7.16.205 Notice of Violation; Hearing; Notice to Appear.

- A. A notice of violation issued pursuant to Section [7.16.190](#) B. or Section [7.16.200](#) A. shall be sent to the Owner, occupant or agent by certified mail, return receipt requested, or by personal service. If the property is unoccupied and the Owner is a nonresident of Kansas, the notice of violation shall be sent by certified mail, return receipt requested, to the last known address of the Owner.
- B. The notice of violation shall state:
 1. The common or legal description of the property, or both;
 2. That the property is in violation of this Chapter;
 3. A description of the violation that would reasonably allow the Owner, occupant or agent to determine the nature of the violation to allow for self-abatement;
 4. That the violation must be abated by the Owner, occupant or agent within 10 days from the date of the notice of violation, provided that extensions of the time period shall be

granted if the Owner, occupant or agent demonstrates that due diligence is being exercised in abating the violation;

5. That prior to the expiration of the notice period, the Owner, occupant or agent may request in writing a hearing before the hearing officer;
 6. That failure to comply with the notice of violation shall result in the City abating the violation, with the assessment of costs (including a reasonable administrative fee and the cost of all notice) made against the property and the Owner, occupant or agent;
 7. That failure to pay such assessments within 30 days of the notice of costs shall result in the filing of a tax lien against the property or by filing for a personal judgment against the recipient, or both; and
 8. That separate and independent of any abatement of the violation by the City, such violation is subject to prosecution in the Overland Park Municipal Court.
- C. If the recipient of the notice of violation makes a written request for hearing within the notice period, then the City shall immediately schedule a hearing before a designated hearing officer. The hearing officer shall receive evidence, review the investigation, and prepare a written order. The order shall be sent to all relevant parties within 10 days of the hearing, unless otherwise stated at the hearing and prior to the City taking any action to abate the violation. The order shall state the relevant facts and the specific Code provisions relied upon, and any other stipulations, methods of abatement, or orders as deemed necessary by the hearing officer.
- D. If an authorized public officer determines that a violation of this Chapter exists, the public officer may issue a Notice to Appear in Municipal Court for such violation. Such prosecution shall be separate and independent of any abatement action, and no other procedures are required as a prerequisite to the issuance of a Notice to Appear.

(History: Ord. TP-3025 §10, 2014)

7.16.208 Abatement by City; Notice of Costs; Assessment and Collection.

- A. If the Owner, occupant or agent fails to request a hearing and to self-abate the violation within the notice period, then the City may go onto the property to abate the violation in a reasonable manner. The City shall not be responsible for damage to property due to reasonable methods of gaining entrance onto the property or for damages to property in the reasonable exercise of its duty to abate the violation. The City may use its own employees or contract for services to abate the violation.
- B. If the City abates the violation, it shall provide a notice of costs to the Owner, occupant or agent by certified mail, return receipt requested, at the last known mailing address. If the property is vacant or unoccupied, the notice of costs shall also be posted on the property in a reasonable manner. The notice of costs shall state:
 1. The common or legal description of the property, or both;
 2. The nature of the violation, including relevant ordinances;
 3. The nature of the work performed to abate the violation;
 4. The costs incurred for the abatement in either a lump sum or in itemized form;
 5. That the notice of costs is a demand for payment within 30 days from the date of the notice;

6. That failure to pay the entire amount within 30 days shall allow the City to file a tax lien against the property or to pursue litigation for the recovery of the costs, or both;
 7. That such additional remedies to recover costs shall include additional amounts including additional administrative costs, attorneys' fees, and interest;
 8. That payments shall be made by check or money order made payable to the City, with no post-dating of the check, and sent to the address stated within the notice of costs, with a written indication of the purpose for the payment and the address of the property where the violations occurred. (If the City offers payment by credit card, that information may also be provided.) Partial payments will not be accepted and shall be considered as non-payments.
- C. If the payment of costs is not made within the thirty (30) day period, the City may file an affidavit of pending action with the Johnson County, Kansas Department of Records and Tax Administration with respect to the aforesaid costs. In addition, the City Clerk shall certify the aforesaid costs at the time of certifying other City taxes to the County Clerk, and the County Clerk shall extend the same on the tax roll of the County against the property, and it shall be collected by the County Treasurer and paid to the City as other City taxes are collected and paid. Provided further, the City may collect the costs in the manner provided at K.S.A. 12-1,115, as may be amended, by bringing an action in the appropriate court as a personal debt. The City may pursue both assessment and collection at the same time until the full cost, including applicable interests, court costs, attorneys' fees, and administrative costs have been paid in full.

(History: Ord. TP-3025 §11, 2014)

7.16.210 Penalties and Violation; Civil Actions.

- A. It shall be unlawful for any person to plant or otherwise maintain Trees or Shrubs in an area where such planting or Maintenance is prohibited by this Chapter.
- B. It shall be unlawful for any person, including an Abutting Owner, to abuse, damage, mutilate, destroy or remove without the prior written permission from the City Forester (i) any Street Tree, (ii) any Shrub in the Right-of-way that was planted or is maintained by the City, or (iii) any Tree or Shrub on any other public property. Persons in violation of this provision shall be required to provide a replacement Tree or Shrub of a species and caliper approved by the City Forester; provided, however, the City Forester may waive this requirement in the City Forester's sole discretion.
- C. It shall be unlawful for any Owner, occupant or agent to permit any Tree or Shrub on their property to remain in violation of this Chapter after receipt of a notice of violation from the Community Services Division or the City Forester.
- D. It shall be unlawful for any Owner, occupant or agent to allow any Tree or Shrub to hinder or obstruct any Right-of-way abutting their property or to violate any minimum distance or clearance requirements.
- E. It shall be unlawful for any person to prevent, hinder or otherwise interfere with authorized employees, officials or contractors of the City in the performance of their official duties pursuant to the provisions of this Chapter.
- F. Any person who violates any of the provisions of this Chapter is guilty of a public offense and upon conviction shall be punished as provided in OPMC Section [1.12.010](#).

- G. The City may further enforce this Chapter by filing an action in the appropriate court for an injunction to enforce the provisions of this Chapter; to cause correction of any such violation; for assessment and recovery of a civil penalty for such violation; or to pursue any other appropriate civil remedy.

(History: Ord. (History: Ord. TP-3025 §12, 2014; TP-2032 §10, 97; TP-1289 §13, 85)

7.16.220 Exceptions and Other Regulations.

- A. Sections [7.16.150 A.](#), [7.16.150 F.](#) and [7.16.180](#) shall not affect Trees or Shrubs planted prior to the earliest effective date of the applicable prohibitions contained therein. The judgment of the City Forester concerning the planting date of the object at issue shall be entitled to a presumption of correctness that may be rebutted by credible evidence. Any replacement or additional plantings after such earliest effective date shall be in full compliance with all applicable provisions of the Overland Park Municipal Code.
- B. The provisions contained in this Chapter are supplementary to and are not intended to exempt or interfere with the duties, responsibilities, enforcement or interpretation of any other ordinance or law concerning property maintenance, Right-of-way or the removal of vegetation, including, but not limited to, weeds, woody vines, brush, grass and uncultivated plants listed in Chapter 7.20 of the Overland Park Municipal Code.

(History: Ord. TP-3025 §13, 2014; TP-2032 §11, 97; TP-1289 §14, 85)

TITLE 7 - HEALTH AND SANITATION

7.20 WEEDS

Contents:

- 7.20.100 Title.
- 7.20.110 Purpose, Objectives, and Findings.
- 7.20.120 Definitions.
- 7.20.130 Violations; Responsibility to Abate.
- 7.20.140 Public Officer; Notice of Violation; Hearing.
- 7.20.150 Abatement by City; Notice of Costs; Assessment and Collection.
- 7.20.160 Reserved.
- 7.20.170 Right of Entry; Unlawful Interference.
- 7.20.180 Penalty.
- 7.20.190 Exceptions.
- 7.20.200 Severability.
- 7.20.210 Title; Definitions; Applicability of Other Provisions. (Expired)
- 7.20.220 Excessive Growth Unlawful; Responsibility to Abate. (Expired)
- 7.20.230 Notice. (Expired)
- 7.20.240 Notice of Abatement; Hearing; Designated Officer. (Expired)
- 7.20.250 Abatement; Assessment of Costs. (Expired)
- 7.20.260 Expiration Date. (Expired)

7.20.100 Title.

Overland Park Municipal Code Sections 7.20.100 through [7.20.200](#), inclusive shall be known as the Weed and Vegetation Enforcement Act.

(History: Ord. NU-2939 §1, 2011; NU-1376 §1, 86)

7.20.110 Purpose, Objectives, and Findings.

A. The purpose of the Weed and Vegetation Enforcement Act is to:

1. Prohibit the growth of Noxious Weeds, Uncontrolled growth of Invasive Species, and encourage the preservation, planting, and maintenance of Native Plants;
2. Require reasonable Control and action to:
 - a. Prevent the Excessive Growth of Vegetation;
 - b. Eradicate Noxious Weeds;

- c. Eradicate Poisonous Plants to the Touch; and
 - d. Prevent the growth of Invasive Plants that are not properly Controlled.
 - 3. Provide a method of enforcement of violations of this Chapter;
 - 4. Provide procedures to notify the Owner, Occupant or Agent of the property that a violation of this Chapter exists and to allow for self-abatement by such Persons;
 - 5. Provide the Owner, Occupant or Agent an opportunity to be heard concerning violations of this Chapter;
 - 6. Provide procedures to allow the City to abate the violation should the Owner, Occupant or Agent fail to timely act;
 - 7. Provide a method of assessing or collecting costs for such abatement by the City; and
 - 8. Establish that violations of this Chapter are unlawful and to provide penalties for enforcement through the Municipal Court system.
- B. The objectives of the Weed and Vegetation Enforcement Act are to:
- 1. To enhance the City's environmental health by promoting plants that are native to the region;
 - 2. To protect the City's environmental health by prohibiting plants that are likely to cause environmental harm or harm to human health;
 - 3. To require control and action to prevent the Excessive Growth of Vegetation, eradicate Noxious Weeds, and Poisonous Plants to the Touch, and prevent the spread of Invasive Plants.
- C. The Governing Body hereby finds that:
- 1. Excessive Growth of Vegetation;
 - 2. Noxious Weeds;
 - 3. Poisonous Plants to the Touch; and
 - 4. The growth of Invasive Plants are all a public nuisance that degrade natural and maintained landscape areas, displace native plant species, increase erosion, destroy wildlife habitat, and/or adversely affect public health, safety or welfare; and that allowing them to proliferate creates short- and long-term impacts on the area including the diminution of property values and the integrity of the neighborhood; and interferes with the orderly development and use of property in the City.

(History: Ord. NU-3437 §1, 2023; Ord. NU-2939 §2, 2011; NU-1376 §1, 86)

7.20.120 Definitions.

For the purposes of this Chapter, the following definitions shall apply:

- A. **Agent** shall mean any Person listed in the Johnson County, Kansas, Appraiser's office or Treasurer's office for the purposes of paying taxes; a registered agent with the Kansas Secretary of State's office for corporate or partnership ownership; an agent, administrator, executor, or manager directed by the Owner, estate, or court order to represent the interests of real property or to otherwise maintain, care or control activities on the property; or corporate officer.
- B. **City** shall mean the City of Overland Park, Kansas.

- C. **Control or Controlled** shall mean the planned and intentional planting, trimming and cultivation of vegetation, including, but not limited to, the prevention of the unintended and uncultivated production of viable seed or the vegetative spread of a plant.
- D. **Excessive Growth of Vegetation** shall mean any -grasses, dandelions, herbaceous plants or vines or other uncontrolled or uncultivated vegetation that is more than eight (8") inches in height above the ground or in length if matted down as measured along the stem. The abatement of Excessive Growth of Vegetation may include trees, bushes, shrubs, flowers, and ornamental or garden plants, either cultivated or uncultivated, if such vegetation is not made readily distinguishable from any Excessive Growth of Vegetation.
- E. **Invasive Plants** shall mean species, including its seeds, spores, or other biological material capable of propagating that species, that is not native to that ecosystem; and whose presence causes or is likely to cause harm to the environment, economy, and/or human health. These species often grow, reproduce, and spread rapidly. Invasive Plants shall include bamboo. Said plants are only allowed when properly Controlled.
- F. **Native Plants** shall mean vegetation that has evolved and naturally occurs in the region including native grasses, herbaceous plants, vines, shrubs, or trees.
- G. **Noxious Weeds** shall mean plants listed as Category A, Category B or Category C noxious weed in Kansas Administrative Regulations Section 4-8-44 (effective March 26, 2021), entitled "Designation Noxious Weeds" or listed as a noxious weed in 2 CSR 70-45.005 entitled "Noxious Weed List" of the Missouri Register, Vol. 48, No. 16, August 15, 2023.
- H. **Occupant** shall mean any Person who has a severable or nonseverable interest in real property either by oral or written lease or covenant, or by other methods of conveying a limited interest in such property; or any Person who occupies or has possession of such property.
- I. **Owner** shall mean the named property owner as indicated by the records of the Records and Tax Administration or Appraiser's office in Johnson County, Kansas.
- J. **Person** shall mean any individual, individuals, partnership, corporation, unincorporated association, other business organization, committee, board, trustee, receiver, or Agent.
- K. **Planned Sustainable Landscape** shall mean a planned, intentional, and maintained planting of primarily native plants, grasses, vines, shrubs, or trees, including but not limited to rain gardens, meadow vegetation, and ornamental plants. Planned Sustainable Landscapes do not include turf grass lawns left unattended for the purpose of returning to a natural state.
- L. **Poisonous Plants to the Touch** shall mean any plants at any height or state of maturity which are poisonous to the touch, including, but not limited to, poison ivy, poison oak and poison sumac.

(History: Ord. NU-3437 §2, 2023; Ord. NU-2939 §3, 2011; NU-1376 §1, 86)

7.20.130 Violations; Responsibility to Abate.

- A. It shall be unlawful for any Owner, Occupant or Agent of property to allow on said property any:
1. Excessive Growth of Vegetation;
 2. Noxious Weeds;

3. Poisonous Plants to the Touch; or
4. Invasive Plants that are not properly Controlled.

Such prohibition shall include any areas between the property lines of said property and the center line of any adjacent street or alley, including, but not specifically limited to, sidewalks, streets, alleys, easements and rights-of-way. Any violation of this Section is hereby declared a nuisance, and is subject to abatement and prosecution as hereinafter provided.

- B. The Owner, Occupant or Agent shall be responsible for the abatement of any violation of this Section. Further, it is the responsibility of the Owner, Occupant or Agent to clearly mark, stake out, or otherwise distinguish between trees, bushes, shrubs, flowers, and ornamental or garden plants, or any Controlled Invasive Plants, as compared to any Excessive Growth of Vegetation, any Noxious Weeds, any Poisonous Plants to the Touch, or any uncontrolled growth of Invasive Plants in the surrounding area.
- C. Vegetation which constitutes one of the following shall not be deemed a violation under A.1. of this Section:
 1. Planned Sustainable Landscape,
 2. Controlled ornamental or food producing garden;

Provided such vegetation does not encroach on adjacent property.

(History: Ord. NU-2939 §4, 2011; NU-1376 §1, 86)

7.20.140 Public Officer; Notice of Violation; Hearing.

- A. The City Manager shall designate a public officer(s) to administer and enforce this Chapter. If it is determined that a violation of this Chapter exists, the public officer shall file a written report with the City, and shall direct that a notice of violation be sent to the Owner, Occupant or Agent of the property; provided, however, if a violation was previously issued within the same calendar year of the violation, no further notice is required prior to any abatement action by the City.
- B. The notice of violation shall be sent by certified mail, return receipt requested, or by personal service. If the property is unoccupied and the Owner is a nonresident, such notice shall be sent by certified mail, return receipt requested, to the last known address of the Owner. In cases where the Owner is unknown or is a nonresident, and there is no resident agent, then the City Clerk shall publish the notice of the violation in the official City newspaper.
- C. The notice of violation shall state:
 1. A common or legal description of the property where the violation exists;
 2. That the property is in violation of the Weed and Vegetation Enforcement Act;
 3. A description of the violation that would reasonably allow the Owner, Occupant or Agent to determine the nature of the violation to allow for self-abatement;

4. That the violation must be abated by the Owner, Occupant or Agent within ten (10) days from the date of the mailing of the notice of violation; or within ten (10) days of publication if publication was deemed necessary;
 5. That, prior to the expiration of the notice period, the Owner, Occupant or Agent may request in writing a hearing before the hearing officer;
 6. That the failure to comply with the notice of violation shall result in the City abating the violation, with the assessment of costs of abatement (including a reasonable administrative fee and the cost of all notice) made against the property and the Owner, Occupant or Agent;
 7. That payment of the assessment of costs is due and payable within thirty (30) days of the notice of assessment, or the assessment will be added to the property tax as a special assessment, as provided for by K.S.A. 12-1617e, as may be amended. And further, the City may also pursue collection by seeking a personal judgment against the Owner, Occupant or Agent in Johnson County District Court, as provided for by K.S.A. 12-1,115, as may be amended;
 8. That no further notice is required to be given by the City prior to the abatement of any additional violations on the property for one (1) year from the date of the notice of violation, and that any additional costs will be assessed in the same manner.
 9. That separate from and independent of any abatement of the violation by the City, such violations are also subject to prosecution in the Overland Park Municipal Court.
- D. If the recipient of the notice of violation makes a written request for a hearing within the notice period, the City shall schedule a hearing during a regular business day within ten (10) calendar days from the receipt of the request. The hearing shall be conducted by a designated hearing officer who is not a subordinate of the public officer who issued the notice of violation or conducted the investigation. The hearing officer shall receive evidence, review the investigation, and prepare a written order. The order shall be sent to all relevant parties within ten (10) days of the hearing, unless otherwise stated at the hearing, and prior to the City taking any action to abate the violation. The order shall state the relevant facts and the specific code provisions relied upon, and any other stipulations, methods of abatement, or orders as deemed necessary by the hearing officer.
- E. If the public officer determines that a violation of this Chapter exists, the public officer may issue a Notice to Appear in Municipal Court for such violation. Such prosecution shall be separate and independent of any abatement action, and no other procedures are required as a prerequisite to the issuance of a Notice to Appear.

(History: Ord. NU-3437 §4, 2023; Ord. NU-2939 §5, 2011; NU-2042 § 1, 97; NU-2033 § 1, 97; NU-1376 §1, 86)

7.20.150 Abatement by City; Notice of Costs; Assessment and Collection.

- A. If the Owner, Occupant or Agent fails to request a hearing and or fails to self-abate the violation within the notice period, the City may enter onto the property to abate the violation in a reasonable manner. The City shall not be responsible for damage to property due to reasonable methods of gaining entrance onto the property, or for damages to property in the reasonable exercise of its duty to abate the violation. The City may use its own employees or contract for services to abate the violation. Any authorized officer or agent of the City may

relocate or remove any trash, debris, limbs or brush, building materials or other such items if such relocation or removal is reasonably necessary to abate the violation.

B. If the City abates the violation, it shall provide a notice of costs to the Owner, Occupant or Agent by certified mail, return receipt requested, at the last known mailing address. If the property is vacant or unoccupied, the notice of costs shall also be posted on the property in a reasonable manner. The notice of costs shall state:

1. The common or legal description of the property, or both;
2. The nature of the violation, including relevant ordinances;
3. The nature of the work performed to abate the violation;
4. The costs incurred for the abatement of the violations in either a lump sum or in itemized form;
5. That the notice is a demand for payment within thirty (30) days from the date of the notice;
6. That failure to pay the entire amount within thirty (30) days shall allow the City to file a tax lien against the property or to pursue litigation for the recovery of the costs, or both;
7. That such additional remedies to recover costs shall include additional amounts including additional administrative costs, attorneys' fees when applicable, and interest; and
8. That payments shall be made by check or money order made payable to the City, with no post-dating of the check, and sent to the address stated within the notice, with a written indication of the purpose for the payment and the address of the property where the violations occurred. Partial payments will not be accepted and shall be considered as non-payments.

C. If the payment of costs is not made within the thirty (30) day period, the City may file an affidavit of pending action with the Johnson County, Kansas Department of Records and Tax Administration with respect to the aforesaid costs. In addition, the City Clerk shall certify the aforesaid costs at the time of certifying other City taxes to the County Clerk, and the County Clerk shall extend the same on the tax roll of the County against the property, and it shall be collected by the County Treasurer and paid to the City as other City taxes are collected and paid.

Provided further, the City may collect the costs in the manner provided at K.S.A. 12-1,115, as may be amended, by bringing an action in the appropriate court as a personal debt.

The City may pursue both assessment and collection at the same time until the full cost, including applicable interests, court costs, attorneys' fees, and administrative costs have been paid in full (Ref. K.S.A. 12-1617f, as may be amended).

(History: Ord. NU-3437 §5, 2023; Ord. NU-2939 §6, 2011; NU-1376 §1, 86)

7.20.160 Reserved.

Reserved.

(History: Ord. NU-3437 §6, 2023; Ord. NU-2939 §7, 2011; NU-1376 §1, 86)

7.20.170 Right of Entry; Unlawful Interference.

- A. Any authorized officer or agent of the City, pursuant to this Chapter, shall be allowed to enter onto any property within the City limits to investigate violations of this Chapter or for the abatement of violations pursuant to this Chapter.
- B. It shall be unlawful for any Person to interfere with a public officer or agent of the City in performing his or her duties pursuant to this Chapter whether investigating or abating violations.
- C. Any Person who interferes with an officer or agent of the City pursuant to this Chapter shall be punished as provided in Section [1.12.010](#) of this Code.

(History: Ord. NU-2939 §8, 2011; NU-1376 §1, 86)

7.20.180 Penalty.

- A. Any Owner, Occupant or Agent in violation of this Chapter shall be subject to prosecution in the Overland Park Municipal Court. Any Person found guilty of violating the provisions of this Chapter shall be subject to a fine up to \$500.00 and not more than ten (10) days in jail, or both a fine and jail sentence. Any Person found guilty of this Chapter two (2) or more times within any one-year period shall be fined not less than \$250.00 nor more than \$500.00 and shall be subject to a sentence not to exceed ten (10) days in jail, or both a fine and a jail sentence.
- B. Prosecution of any offender under this Chapter does not limit the City's right to pursue assessment or collection of costs as stated in this Chapter, or by other laws.
- C. Each day that any violation of this Chapter shall continue shall constitute a separate offense.

(History: Ord. NU-3437 §7, 2023; Ord. NU-2939 §9, 2011; NU-1376 §1, 86)

7.20.190 Exceptions.

This Chapter shall not be made applicable to:

- A. Land zoned where agricultural uses are a permitted use if such tract is one (1) contiguous tract, not intersected by any public roadway and is greater than twenty (20) acres if undeveloped and contiguous to other such undeveloped tracts where the total acreage of all undeveloped tracts exceeds twenty (20) acres;
- B. Undeveloped tracts of land zoned where agricultural uses are not a permitted use if such tract is one (1) contiguous tract, not intersected by any public roadways and is greater than twenty (20) acres;
- C. For the tracts of land identified in subsections A and B:
 - 1. Such tracts shall not allow any Excessive Growth of Vegetation and/or growth of agricultural crops within thirty (30) feet of the edge of the street or curb adjacent to any other roadway or the property line of any property being used for residential or commercial purposes.
 - 2. For tracts zoned other than for agricultural uses, where the City determines that any Excessive Growth of Vegetation creates or enhances an identifiable health or safety

problem, -the procedures shall be followed as provided in this Chapter for the abatement of such Excessive Growth of Vegetation.

D. Public parks, public golf courses, public natural preservation areas, public open space, public wildlife preservation areas, designated stream corridor areas, inaccessible public creek areas, and stormwater treatment facilities utilizing native vegetation as required by Chapter 16.210 of this Code (as may be amended); provided, however, where the City determines that any Excessive Growth of Vegetation in such areas creates or enhances an identifiable health or safety problem, the City shall take such action as it deems necessary to mitigate such problem, consistent with the public interest in maintaining and protecting such areas.

E. Planned Sustainable Landscape areas that meet the following criteria:

1. The owner is responsible for ensuring that all landscape material in a Planned Sustainable Landscape is maintained in a healthy condition and managed so as not to include unintended vegetation.
2. The Planned Sustainable Landscape cannot contain Invasive Plants which are not Controlled, turf grass, or any Noxious Weeds.
3. The landscape boundaries are clearly defined through edging or containment and no vegetation is encroaching onto a neighboring property.
4. The Planned Sustainable Landscape meets the following setback requirements:
 - a. Three feet from side and/or rear lot lines running the length of the property
 - b. No setback is required on side or rear lot lines where the defined landscape area abuts another similar private or public landscape area, or if a solid fence at least four feet in height is installed along the lot line adjoining the planned landscape

F. Any tract or combination of tracts as determined by the Director of Planning and Development Services, or his or her designee, to meet the intent of the exceptions identified in subsections A-D.

(History: Ord. NU-3437 §8, 2023; Ord. NU-2939 §10, 2011; NU-2667 § 1, 2008; NU-2389 § 1, 2002; NU-1905 § 1, 94; NU-1376 §1, 86)

7.20.200 Severability.

If any section, subsection, paragraph, sentence, clause or phrase in this Chapter or any part thereof is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this Chapter or any part thereof.

(History: Ord. NU-2939 §11, 2011; NU-1376 §1, 86)

7.20.210 Title; Definitions; Applicability of Other Provisions. (Expired)

Expired.

(History: Ord. NU-1974 §1, 96; NU-1922 §1, 95; NU-1850 §1, 94; NU-1781 §1, 93)

7.20.220 Excessive Growth Unlawful; Responsibility to Abate. (Expired)

Expired.

(History: Ord. NU-1974 §2, 96; NU-1922 §2, 95; NU-1850 §2, 94; NU-1781 §2, 93)

7.20.230 Notice. (Expired)

Expired.

(History: Ord. NU-1974 §3, 96; NU-1922 §3, 95; NU-1850 §3, 94; NU-1781 §3, 93)

7.20.240 Notice of Abatement; Hearing; Designated Officer. (Expired)

Expired.

(History: Ord. NU-1974 §4, 96; NU-1922 §4, 95; NU-1850 §4, 94; NU-1781 §4, 93)

7.20.250 Abatement; Assessment of Costs. (Expired)

Expired.

(History: Ord. NU-1974 §5, 96; NU-1922 §5, 95; NU-1850 §5, 94; NU-1781 §5, 93)

7.20.260 Expiration Date. (Expired)

Expired.

(History: Ord. NU-1974 §6, 96; NU-1922 §6, 95; NU-1850 §6, 94; NU-1781 §6, 93)

TITLE 7 - HEALTH AND SANITATION

7.22 VEHICLE USE, PARKING AND STORAGE

Contents:

- 7.22.010 Legislative Findings.**
- 7.22.020 Scope.**
- 7.22.030 Definitions.**
- 7.22.040 Inoperable Vehicles.**
- 7.22.050 Proof of Operability.**
- 7.22.060 Parking on Unpaved Surfaces.**
- 7.22.070 Commercial and Other Vehicles in Residential Zoning Districts.**
- 7.22.080 Recreational Vehicles, Boats and Hauling Trailers.**
- 7.22.085 Time Restriction on Outside Automobile Repairs.**
- 7.22.090 Vehicles as Living Quarters.**
- 7.22.100 Severability.**
- 7.22.110 Penalty.**

7.22.010 Legislative Findings.

The Governing Body finds that the types of vehicles that are parked or stored, the location on a particular site of such parking or storage, and the condition of the vehicles which are parked or stored has a direct effect on the health, safety and general welfare of the Residents of the City. The Governing Body finds that the improper or inappropriate storage or parking of vehicles can be unsafe, unsanitary and unsightly, and that such conditions constitute a blight on surrounding properties. The Governing Body further finds that in order to prevent such blight, stabilize the value of surrounding properties, and minimize threats to the public safety and general welfare of the Residents of the City, it is hereby deemed necessary to regulate the manner in which vehicles are parked or stored, the types of vehicles that are parked or stored, and the location of such parking or storage.

(History: Ord. PMV-2881 §1, 2010; PMV-1900 §1, 95)

7.22.020 Scope.

The provisions of this Chapter shall apply to all lands within the corporate boundaries of the City of Overland Park unless specifically excepted.

(History: Ord. PMV-2881 §2, 2010; PMV-1900 §2, 95)

7.22.030 Definitions.

The following words and phrases shall be defined as follows for the purpose of this Chapter:

- A. **Automobile Repair** shall mean the repair or restoration of any Motor Vehicle body or parts, and shall include, without being limited to, glass installation and replacement, brake and muffler repair and replacement, window tinting, radio and stereo installation, tire and battery replacement, tune ups, repair and servicing of Motor Vehicle engines, including overhauls, transmission work, body work and painting.
- B. **Chapter or this Chapter** shall mean Chapter 7.22 of the Overland Park Municipal Code.
- C. **City** means the City of Overland Park, Kansas.
- D. **Commercial Vehicle** means any vehicle that meets a minimum of one of the following criteria:
 - 1. The vehicle has a Gross Vehicle Weight Rating > 10,000 pounds;
 - 2. The length of the vehicle exceeds 20 feet;
 - 3. The width of the vehicle exceeds 8 feet;
 - 4. The height of the vehicle exceeds 8 feet;
 - 5. The vehicle has permanently mounted equipment, such as aerial buckets or platforms, welding equipment, mechanical or hydraulic devices designed to assist in loading and unloading freight; and
 - 6. The vehicle is a step van, box van, bus, or a semi-tractor.
- E. **Director** means the Director of Planning and Development Services or his or her designee.
- F. **Enclosed Building** shall mean the primary structure or a detached garage fully enclosed by walls and a roof, with all windows or doors completely closed.
- G. **Fifth-wheel Trailer** means a Travel Trailer designed to be affixed to, and towed by, a Pickup Truck equipped with a special hitch in the truck bed.
- H. **Folding Camper Trailer** means a light-weight unit with sides that collapse for towing or storage, and is sometimes referred to as a fold-down camper, pop-up Trailer or tent Trailer.
- I. **Former Military Vehicle** means a vehicle, including a Trailer, regardless of the vehicle's size, weight, or year of manufacture, that was manufactured for use in any country's military forces or is a replica of such a vehicle.
- J. **Front Surface of a Residence** means that wall surface, or combination of surfaces, that is visible from the front lot line; provided, however, that surfaces which are perpendicular or nearly perpendicular to the front lot line are excluded, as are surfaces of minor building projections such as fireplaces or bay windows.
- K. **Hauling Trailer** means every vehicle without motive power designed to carry property and to be drawn by a Motor Vehicle, excluding a boat Trailer with a boat on it.
- L. **Inoperable** means:
 - 1. A condition of being junked, wrecked, wholly or partially dismantled, discarded, abandoned or unable to perform the functions or purposes for which it was originally constructed, or

2. The absence of a current valid registration plate upon such vehicle permitting that vehicle to be operated on the public streets and highways of the State of Kansas, or
 3. The absence of one or more of the parts of the vehicle necessary for the lawful operation of the vehicle on the public streets and highways, unless the vehicle has a non-highway title issued solely because the vehicle was not manufactured for street use, or
 4. The placement of the vehicle or parts thereof upon jacks, blocks, chains or other supports.
- M. **Motorized RV** means a vehicle, also known as a motor home, which combines transportation and living quarters in one unit, ranging from a minivan up to a large bus-size. It does not include the tractor portion of a highway tractor-Trailer.
- N. **Motor Vehicle** means any automobile, truck, tractor, farm machinery or Motorcycle which as originally built contained an engine, regardless of whether it contains an engine at any other time. For the purposes of this Section, the term "vehicle" not prefaced by the terms "motor," "commercial," "specially constructed" or "recreational" shall include any or all of the following, depending on the context and intended usage of that term: boat, Hauling Trailer, Commercial Vehicle, Motor Vehicle, Specially Constructed Vehicle or Recreational Vehicle.
- O. **Officer of the City or City Officer** means an Code Compliance Officer or a Police Officer employed by the City of Overland Park or any other individual designated as a City Officer by the City Manager.
- P. **Passenger Car, Passenger Van, Pickup Truck or Motorcycle** means a vehicle:
1. licensed for use on public streets,
 2. designed primarily for the transportation of people as opposed to equipment, freight or other vehicles, and
 3. sold primarily to individuals for personal use.

This definition shall include automobiles commonly referred to as coupes, sedans, hatchbacks, station wagons, convertibles, sports utility vehicles, minivan, passenger van and pickup trucks.

Vehicles which would otherwise meet this definition but which have had modifications to the interior of the vehicle, such as removing rear seats in a van to allow the carrying of cargo, shall be deemed to be included within this definition. Vehicles which would otherwise meet this definition but which are carrying useful items commonly found in residential areas, such as ladders, saw horses, or building materials, shall be deemed to be included within this definition. Vehicles which would otherwise meet this definition but which have had accessories, such as racks, storage boxes or shells, added to the vehicle shall be deemed to be included within this definition.

Vehicles which would otherwise meet this definition but which have had external modifications to the structure or body, but not including cosmetic changes or common vehicle accessories, shall be deemed to be excluded from this definition. Pickup Trucks that do not have the traditional pickup bed and side walls, and vans that have an expanded cargo area that is taller or wider than a passenger van are specifically excluded from this definition. Vehicle modifications which are specifically excluded from this definition include aerial buckets or platforms (e.g. "cherry pickers"), welding equipment, and mechanical lifts or arms designed to assist in loading and unloading freight. Vehicle types which are specifically excluded from this definition include, but are not limited to, step vans, box vans, flatbed

trucks, buses, semi-tractors and Trailers, Former Military Vehicles, cement mixers, construction equipment, and any vehicle with dual rear axles.

Q. **Paved Driveway or Paved Parking Area** means a hard-surfaced area designed and constructed specifically for use by motorized vehicles as a path for the vehicle to be driven across or as a location at which a vehicle could be parked or stored. Such driveways and parking areas shall include only that surface area that is continuously connected to a public or private street via a paved surface wide enough for use by a standard Passenger Car. The paving material for a "Paved Driveway or Paved Parking Area" shall consist of concrete, asphalt, paving bricks or similar material approved by the City. Gravel may be used as a paving material if it meets the requirements of Overland Park Municipal Code Section [18.410.075](#) as a nonconforming site improvement. The term "Paved Driveway" or "Paved Parking Area" may include a public or private street where on-street parking is permitted.

R. **Property Owner** means any person, partnership or corporation who alone or jointly or severally with others has legal title to land and/or structures, or any person, partnership or corporation who is trustee or guardian of the estate of the title holder.

S. **Recreational Vehicle** shall mean a vehicular-type unit which is:

1. built on a chassis or for use on a chassis, and
2. designed primarily as temporary living quarters for recreational or travel use, and
3. has its own motive power or is mounted on or drawn by another vehicle.

This definition shall be limited to:

1. vehicles originally manufactured and sold as Recreational Vehicles meeting the conditions listed above, limited to a Folding Camper Trailer, a Truck Camper, a Travel Trailer, a Fifth-wheel Trailer or a Motorized RV, as shown on the attached illustrations,
2. minivans, full size vans or buses specifically modified to meet the three conditions listed above.

This definition shall not include mobile homes, the tractor portion of a highway tractor-Trailer, or any Specially Constructed Vehicle. The exclusion of a highway tractor shall apply regardless of whether or not it was originally constructed with a sleeper unit or later modified for temporary living use.

T. **Resident or Tenant** shall mean the person, partnership or corporation occupying or utilizing the primary structure on the site as a residence in a residential structure or as a business Tenant in a nonresidential structure.

U. **Residential Zoning Districts** means that land area, including public and private streets, that is contained within one of the zoning districts defined by the Unified Development Ordinance of the City of Overland Park as a residential district. This definition shall include those sections of public and private streets that abut residentially zoned land on both sides.

V. **Section** means the stated Section of the Overland Park Municipal Code.

W. **Specially Constructed Vehicle** means any vehicle which shall not have been originally constructed under a distinctive name, make, model or type, or which, if originally otherwise constructed shall have been materially altered by the removal of essential parts, or by the addition or substitution of essential parts, new or used, derived from other vehicles or makes of vehicles.

- X. **Trailer** means every vehicle without motive power designed to carry property and to be drawn by a Motor Vehicle.
- Y. **Travel Trailer** means every vehicle without motive power designed to be towed by a Motor Vehicle and designed and constructed to be used primarily for temporary living quarters for recreational purposes.
- Z. **Truck Camper** means a detachable camping unit loaded onto, or affixed to the bed or chassis of an unmodified Pickup Truck or a detachable camping unit by itself.
- AA. **Vehicle Owner** means the person, partnership or corporation registered as the owner of a particular vehicle.
- BB. **Zoning Ordinance or Zoning Regulations** means the requirements and regulations of Title 18, Unified Development Ordinance.

Illustration A is incorporated into the Overland Park Municipal Code.

(History: Ord. PMV-3351 §1, 2021; Ord. PMV-2881 §3, 2010; PMV-2577 §1, 2008; PMV-2109 §1, 98; PMV-1900 §3, 95)

ILLUSTRATION A Recreational Vehicles	
Class A motor home	
Class B motor home	
Class C motor home	
Travel Trailer	
Folding Camper Trailer	

Fifth-wheel Trailer	
Truck Camper	

7.22.040 Inoperable Vehicles.

- A. Except as provided below, it is unlawful for any Property Owner to park or store, or allow the parking or storage of, an Inoperable vehicle on such property unless it is enclosed within a garage or other building.
- B. Except as provided below, it is unlawful for any Resident or Tenant with control of a property to park or store, or allow the parking or storage of, an Inoperable vehicle on such property unless it is enclosed within a garage or other building.
- C. Except as provided below, it is unlawful for any Vehicle Owner to park or store, or allow the parking or storage of, such vehicle in an Inoperable condition unless it is enclosed within a garage or other building.
- D. The provisions of this Section shall not apply where there is only one Inoperable vehicle on the property and where the vehicle is Inoperable for a period of fifteen consecutive days or less.
- E. The provision of this Section shall not apply to any person, firm or corporation, or their agent, who is conducting a business enterprise concerned with the repair, sale or storage of vehicles in compliance with the existing Zoning Ordinance.
- F. The provisions of this Section shall not apply to those properties annexed into the City by either Ordinance No. A-2367 or Ordinance No. A-2719 that have a zoning designation based on the Johnson County Zoning Regulations.

(History: Ord. PMV-2881 §4, 2010; PMV-2695 §1, 2008; PMV-2401 §1, 2002; PMV-1900 §4, 95)

7.22.050 Proof of Operability.

When, after reasonable investigation, the City Officer believes a vehicle meets the definition of an Inoperable vehicle in Section [7.22.030](#), the vehicle shall be deemed to be an Inoperable vehicle subject to the provisions of Section [7.22.040](#).

Where a vehicle is (1) parked or stored in a Residential Zoning District so that it is visible from a public or private street, or from adjacent private property with the permission of the adjacent Property Owner; and (2) the license plate of such vehicle is screened from view by an adjacent structure or vegetation, or by a cover, tarp or similar object, then the vehicle shall be deemed to be an Inoperable vehicle subject to the provisions of Section [7.22.040](#).

In both cases, such a determination may be voided if the Property Owner, Vehicle Owner or Resident demonstrates to the City Officer that the vehicle is operable on a public street and furnishes proof that the vehicle has a license plate and current registration as required for operation of the vehicle on public streets and highways. Such demonstration or proof shall be provided to an authorized Officer of the City within fifteen days from the date when a notice of violation was first given to the Property Owner, Vehicle Owner or Resident. It shall be a violation of this Section to fail to provide such demonstration of operability or proof of registration within the specified time whether or not said vehicle is operable or legally registered.

For the purposes of this Section, a vehicle shall be considered visible, even if covered, if the shape of the covered object is recognizable as a vehicle. Any covered object not recognizable as a vehicle shall be governed by the storage of useful items provisions of the Municipal Code.

(History: Ord. PMV-2881 §5, 2010; PMV-1900 §5, 95)

7.22.060 Parking on Unpaved Surfaces.

- A. No Vehicle Owner, Property Owner, Resident or Tenant shall allow a vehicle to be parked or stored outside of a building on any surface other than a Paved Driveway or a Paved Parking Area.
- B. This Section shall not apply to agricultural equipment parked on property used primarily for agricultural purposes; to Recreational Vehicles, boats or Hauling Trailers parked in compliance with the provisions of this Chapter; or to temporary events where parking on unpaved surfaces has been specifically approved by the City through a special event permit.
- C. This Section shall not apply to those properties that have a zoning designation based on the Johnson County Zoning Regulations.

(History: Ord. PMV-2881 §6, 2010; PMV-1900 §6, 95)

7.22.070 Commercial and Other Vehicles in Residential Zoning Districts.

- A. In Residential Zoning Districts, the following limitations shall apply:
 - 1. No Vehicle Owner, Property Owner, Resident or Tenant shall park or store a Commercial Vehicle or Former Military Vehicle on a public street, private street or on private property in a Residential Zoning District.
 - Exemptions:
 - a. Commercial Vehicles that are part of a lawfully permitted or approved construction project actively underway.
 - b. Commercial Vehicles used in making service calls, deliveries or engaged in legitimate loading or unloading activities.
 - 2. Notwithstanding the above prohibitions, flatbed trucks with or without sidewalls, and Pickup Trucks with a bed and sidewalls different from the traditional pickup bed and sidewalls may be eligible to receive a written administrative approval to allow parking and storage in a residential area if an application is received by the City within five days from the date of a written inspection notice from an authorized City Officer and permitted if it is demonstrated to an Officer of the City that:
 - 3.

- a. The length of the vehicle does not exceed 20 feet;
- b. The width of the vehicle does not exceed 8 feet;
- c. The height of the vehicle does not exceed 8 feet;
- d. The top of the highest sidewall is not more than 3 feet above the bed; and
- e. There is no permanently mounted equipment, such as aerial buckets or platforms, welding equipment, mechanical or hydraulic devices designed to assist in loading and unloading freight;
- f. Said parking and storage would otherwise comply with all applicable laws, rules and regulations.

Parking or storage of flatbed trucks with or without sidewalls, and Pickup Trucks with a bed and sidewalls different from the traditional pickup bed and sidewalls, without a lawful written administrative approval, is prohibited.

- B. It shall be unlawful for any Property Owner, Resident, Tenant or Vehicle Owner, agent, operator, or person in charge of any Former Military Vehicle to permit a Former Military Vehicle to be parked, stored or kept on private property in a Residential Zoning District. Each day that a violation of this Section occurs shall be considered a separate violation. The Director may, upon a request submitted in writing, evaluate the original intended use of a particular Former Military Vehicle, the absence or presence of military design, markings, equipment, attachments, modifications, and any other relevant factors, and make a determination in writing that the vehicle is so substantially similar in appearance and function to an ordinary Passenger Vehicle, and suitable for being parked in a residential area, for the vehicle to be exempt from the provisions of this Section and to be subject to the parking regulations applying to a Passenger Car, Passenger Van, Pickup Truck and Motorcycle rather than a Former Military Vehicle. Any alteration of the vehicle after obtaining such a written determination shall void the determination that the vehicle is exempt from this Section.
- C. This Section shall not apply to the parking of a Passenger Car, Passenger Van, Pickup Truck or Motorcycle as a lawful accessory use to a lawful residential use; agricultural equipment parked on property used primarily for agricultural purposes; to Recreational Vehicles, boats or Hauling Trailers parked in compliance with the provisions of this Chapter; to vehicles parked in conjunction with a legal, non-residential use other than a home occupation; or to land that is subject to a special use permit for a non-residential use.
- D. This Section shall not apply to those properties that have a zoning designation based on the Johnson County Zoning Regulations.
- E. No Specially Constructed Vehicle shall be parked or stored lawfully under this Section unless the owner has previously obtained a written administrative approval from an authorized City Officer based on a determination by said Officer that such vehicle is substantially similar to other vehicles permitted under this Section and complies with the intent and purpose of these regulations.
- F. All vehicles must be parked or stored on the principal legal residence of the registered owner of the vehicle. If the vehicle in question is not required or permitted to be registered, sufficient documentation of ownership must be presented to and approved by the City upon request.

(History: Ord. PMV-3351 §2, 2021; Ord. PMV-2921 §1, 2011; PMV-2881 §7, 2010; PMV-2833 §1, 2009; PMV-2577 §2, 2008; PMV-1962 §1, 95; PMV-1953 §1, 95; PMV-1900 §7, 95)

7.22.080 Recreational Vehicles, Boats and Hauling Trailers.

- A. Any parking or storage of Recreational Vehicles, boats and Hauling Trailers, not screened from view from any public right-of-way or adjacent property by a wall or fence that is not specifically permitted by this Section is prohibited. When approved by the Director, mature landscaping material may be substituted for a wall or fence. Any modification to an existing fence shall be subject to a fence permit and a determination by the Director whether the proposed fence modifications are compatible with the existing fence. Refer to Section 18.390.140 Development and Performance Standards for fences and walls.
- B. Each residence is permitted, subject to the restrictions specified in this Section, to park or store, behind a wall or fence, any combination of the following: a boat, with or without a boat Trailer; a Folding Camper Trailer; a Truck Camper; a Travel Trailer; a Fifth-wheel Trailer; a Hauling Trailer; and/or a Motorized RV. Screening shall be subject to the following provisions:
 - 1. The parking and storage of permitted items shall be behind the Front Surface of a Residence, in the side or rear yards.
 - 2. The parking and storage of permitted items shall occupy no more than 20% of the allowable outside storage area.
 - 3. Only one permitted item is approved to be visually seen above a wall or fence by a person standing on a street or other property at ground level. The amount of projection above the fence shall not exceed 25% of the total height of the fence or wall.
 - 4. The parking and storage of permitted items shall be at least 3 feet from the side or rear property lines.
- C. Such parking or storage of a boat, with or without a boat Trailer, a Folding Camper Trailer, Truck Camper, Travel Trailer, Fifth-wheel Trailer, a Motorized RV, or a Hauling Trailer shall be subject to the following restrictions:
 - 1. Storage or parking areas are not required to be paved; provided, however, that any boat, Recreational Vehicle or Hauling Trailer must be parked or stored, or driven to and from said parking or storage area, on a dust-free and rut-free surface, including, without being limited to, any such areas covered with grass, ground cover, water-permeable grass pavers, cement, asphalt or other similar ground cover. Parking, storage or driving on gravel or exposed dirt is prohibited; provided, however, driving on a gravel driveway that has been previously established as a lawful nonconforming use as permitted.
 - 2. Any boat, Recreational Vehicle or Hauling Trailer parked or stored must be operable, not leaking fluids and maintained in a clean, well-kept state that does not detract from the appearance of the surrounding area.
 - 3. All vehicles must be parked or stored on the principal legal residence of the registered owner of the vehicle. If the item is not required or permitted to be registered, sufficient documentation of ownership must be submitted to and approved by the City upon request.
- D. The following is an exception to the above requirement:

1. The Director may approve the parking or storage of a boat, with or without a boat Trailer and may approve the parking, storage, and, notwithstanding any other provisions to the contrary, the temporary overnight living occupancy of a Folding Camper Trailer, Truck Camper, Travel Trailer, Fifth-wheel Trailer, Hauling Trailer or Motorized RV on a Paved Driveway between the street and a residence, if the following requirements are met:
 - a. The vehicle is owned or leased by a visitor to the residence and the owner of the residence has applied to the Director and received a permit to park said vehicle on the driveway.
 - b. The period of time for the vehicle parking or storage is specified and approved as a part of the permit.
 - c. No equipment on the vehicle, such as a generator, that creates noise in violation of 7.08 Noise shall be operated, nor shall the engine be idled, while the vehicle is parked on the Paved Driveway.
 - d. The vehicle shall not obstruct the sidewalk or street.
 - e. The vehicle meets the condition requirements for vehicles stated previously in this Section.
 - f. The permit may be revoked for any violation of these conditions or any other applicable law, ordinance or regulation.
- E. The Director may approve the parking or storage, or an alternative location or screening for items that do not meet the restrictions set out above. Such approval shall be accompanied by a screening plan designed to meet the above restrictions and minimize the impact of the exception on the surrounding properties. Such approval shall be valid only as long as the screening specified in the plan is in place and maintained in good condition.
- F. This Section shall not apply to those properties that have a zoning designation based on the Johnson County Zoning Regulations.
- G. This Section shall not apply to the parking of a Passenger Car, Passenger Van, Pickup Truck or Motorcycle, not otherwise included with the definition of a Recreational or Commercial Vehicle, as a lawful accessory use to the lawful residential use.
- H. Exceptions - The prohibition of the storage or parking of a boat, with or without a boat Trailer, Folding Camper Trailer, Truck Camper, Travel Trailer, Fifth-wheel Trailer, Motorized RV or Hauling Trailer shall not apply under the following circumstances:
 1. The otherwise prohibited item was in lawful ownership of a Resident of the City prior to January 1, 2022; and
 2. The otherwise prohibited item was lawfully stored or parked at the owner's residence within the City prior to January 1, 2022; and
 3. That item, after January 1, 2022, is parked and stored in as full compliance with the requirements of this Section as feasible, as determined by the Director.
 4. The exceptions set forth in this subsection shall not apply to parking or storage of items in the rear yard that were previously permitted to be parked or stored unscreened from view prior to January 1, 2022.
 5. These exceptions to the prohibition specified in subsections 1-3 above shall terminate upon death or relocation of the current owner and shall not pass with any transfer of title

or by will or other succession. These exceptions shall also terminate upon the sale, transfer or end of the useful life of the nonconforming item.

- I. The provisions of this Section shall not apply to any property that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such property is rezoned.

(History: Ord. PMV-3351 §3, 2021; Ord. PMV-2881 §8, 2010; PMV-2736 §1, 2008; PMV-2577 §3, 2008; ROCR-2245 §10, 2001; PMV-1965 §1, 96; PMV-1900 §8, 95)

7.22.085 Time Restriction on Outside Automobile Repairs.

- A. Except as provided in subsection (B) below, it shall be unlawful for any person to perform or allow the performance of any Automobile Repairs, as defined herein, on any residentially zoned or used property between the hours of 10 P.M. and 7 A.M.
- B. The following activities shall be exempt from this time restriction:
1. Automobile Repairs that are allowed as a matter of right in the zoning district regulations or have been specially permitted under the applicable provisions of the Unified Development Ordinance; provided, however, that accessory uses in residentially used property shall not be exempt.
 2. Emergency repair or replacement of a flat tire or dead battery.
 3. Automobile Repairs conducted entirely within an Enclosed Building, as defined herein and conducted in conformity with all other applicable codes and ordinances.

(History: Ord. PMV-2881 §9, 2010; PMV-2109 §2, 98)

7.22.090 Vehicles as Living Quarters.

No vehicle, motor home, camping Trailer, pickup camper, Recreational Vehicle, or similar item shall be used as living quarters within the boundaries of the City of Overland Park unless such vehicle is parked in an area specifically approved by the Governing Body as a campground or as a location for temporary or emergency housing.

(History: Ord. PMV-2881 §10, 2010; PMV-1900 §9, 95)

7.22.100 Severability.

If any word, phrase, sentence or Section of this Chapter, or the application thereof to any person or circumstances, is held to be invalid, the invalidity shall be deemed not to affect other provisions or applications of the Chapter which can be enforced without the invalid provision or application, and to this end the provisions of this Chapter are severable.

(History: Ord. PMV-2881 §11, 2010; PMV-1900 §10, 95)

7.22.110 Penalty.

The violation of any provision of this Chapter is a public offense and any person, firm, association, partnership or corporation convicted thereof shall be punished as provided in Section [1.12.010](#). Each day that any violation of this Chapter shall continue shall constitute a separate offense. Prosecution of any violation as a public offense pursuant to this Section may be in addition to, or as an alternative to, any other remedy or course of action available to the City.

(History: Ord. PMV-2881 §12, 2010; PMV-1900 §11, 95)

TITLE 7 - HEALTH AND SANITATION

7.25 PROPERTY MAINTENANCE

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- 7.25.101.2 Purpose and Scope.**
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- 7.25.111.2 Omitted.**
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- 7.25.302.3 Sidewalks and driveways.**
- 7.25.302.4 Omitted (See Chapter 7.20 - Weeds).**
- 7.25.302.10 Animal Sanitation.**
- 7.25.302.11 Pools of water.**
- 7.25.302.12 Exterior storage.**
- 7.25.302.13 Rain Barrels.**
- 7.25.303.1 Swimming Pools**
- 7.25.304.2 Protective Treatment.**
- 7.25.304.6 Exterior walls.**
- 7.25.304.14 Insect screens.**
- 7.25.308.1 Accumulation of rubbish or garbage.**
- 7.25.506.2 Maintenance**
- 7.25.602.3 Heat supply.**
- 7.25.602.4 Occupiable work spaces.**

7.25.606.1 General.**7.25.800****7.25.100 Incorporation**

There is incorporated by reference, for the purpose of adopting regulations, provisions, conditions, terms, and specifications governing the conditions and maintenance of all structures and premises within the City, the **2018 International Property Maintenance Code** (the "*International Property Maintenance Code*"), as published by the International Code Council, Inc., excepting and including such parts or portions thereof as are specifically deleted, amended, replaced or supplemented in Overland Park Municipal Code Chapter 7.25. At least one copy of the *International Property Maintenance Code* shall be marked "Official Copy as Incorporated by Ordinance No. PM-3289, to which shall be attached a copy of the ordinance codified herein, and filed with the City Clerk to be open to inspection and available to the public at all reasonable business hours. The Municipal Court and all administrative departments of the City charged with the enforcement of the ordinance shall be supplied at the cost of the City such number of official copies of such ordinance as may be deemed expedient.

(History: Ord. No. PM-3289 §2, 2020)

7.25.101.1

These regulations shall be known as the *International Property Maintenance Code* of the City of Overland Park, Kansas, hereinafter referred to as "this Code."

(History: Ord. No. PM-3289 §3, 2020)

7.25.101.2 Purpose and Scope

101.2.1 Purpose. The Governing Body finds that there exists within the City conditions of structures and *premises* which are dangerous or injurious to the health, safety or general welfare of the occupants of such structures and *premises* or other residents of the City or which have a blighting influence on the properties in the area. Such conditions include the following, without limitation: defects therein increasing the hazards of fire, accident or other calamities; lack of adequate ventilation; air pollution; light or sanitary facilities; dilapidation; disrepair; structure defects; uncleanness; overcrowding; inadequate ingress and egress; dead and dying trees, limbs or other unsightly natural growth and unsightly appearances that constitute a blight to adjoining property, the neighborhood or the City; walls, sidings or exteriors of a quality and appearance not commensurate with the character of the properties in the neighborhood; unsightly stored or parked material, equipment, supplies and machinery and vermin infestation; inadequate drainage; or any violation of health, fire, building or any other laws or regulations relating to the use of land and the use and occupancy of the buildings and improvements.

The Governing Body further finds that any of the foregoing conditions render such structures or *premises* unsafe, unsanitary or dangerous or detrimental to the health, safety or morals, or otherwise inimical to the welfare of the residents of the City.

101.2.2 Scope. The provisions of this code shall apply to all existing residential and nonresidential structures and all existing *premises* and constitute minimum requirements and standards for *premises*, structures, equipment and facilities for light, *ventilation*, space, heating, sanitation, protection from the elements, a reasonable level of safety from fire and other hazards, and for reasonable level of sanitary maintenance; the responsibility of owners, an owner's authorized agent, *operators* and *occupants*; the *occupancy* of existing structures and *premises*, and for administration, enforcement and penalties.

(History: Ord. No. PM-3289 §4, 2020)

7.25.102.3 Application of other codes.

Repairs, additions or alterations to a structure, or changes of occupancy, shall be done in accordance with the procedures and provisions of the Building Code of the City of Overland Park, Kansas, as set forth in OPMC Chapters 16.100 through 16.180. Nothing in this Code shall be construed to cancel, modify or set aside any provisions of Titles 7 or 18 of the Overland Park Municipal Code.

(History: Ord. No. PM-3289 §5, 2020)

7.25.102.5 Workmanship

Repairs, maintenance work, alterations or installations that are caused directly or indirectly by the enforcement of this code shall be executed and installed in a workmanlike manner and installed in accordance with the manufacturer's instructions. Repairs made to exterior walls, roofs, doors and windows shall be made of materials that are compatible with the existing material unless otherwise approved by the Code Official.

(History: Ord. No. PM-3289 §6, 2020)

7.25.103.2 Appointment

Except where otherwise specifically provided in this ordinance, the Director of Planning and Development Services shall be the administrative official charged with interpreting and enforcing the provisions of this code. The Director of Planning and Development Services shall be known as the Code Official, and such term shall include the Director's authorized representatives. Further, whenever the terms or title "administrative authority," "code enforcement officer," "responsible official," "building official," "director," "public officer" or other similar designation is used in this code or any adopted standard, it shall be construed to mean the Director of Planning and Development Services.

(History: Ord. No. PM-3289 §7, 2020)

7.25.103.5

Section 103.5 of the *International Property Maintenance Code* is hereby omitted.

(History: Ord. No. PM-3289 §8, 2020)

7.25.106.4 Violation Penalties

Any **person** who violates a provision of this **Code**, or fails to comply with therewith, or with any of the requirements thereof, shall be subject to penalties as prescribed by law, or other references incorporated, is guilty of a public offense, punishable as provided in OPMC Section [1.12.010](#).

(History: Ord. No. PM-3289 §9, 2020)

7.25.106.5 Abatement of violation

If the owner fails to timely comply with a notice of violation, the Code Official may (but is not required to) take such action as is reasonably necessary to abate the violation. Neither the Code Official nor the City shall be responsible for damage to the *premises* due to any reasonable exercise of abatement. The Code Official may use City's employees or contract for services to abate the violations.

106.5.1 Notice of Costs and Assessment. If a violation is abated, the Code Official shall, in the manner prescribed in Section 107.3, provide the owner or person responsible a notice of costs providing:

1. A description of the real estate sufficient for identification.
2. The nature of the violation and the abatement work performed.
3. The abatement costs incurred (including administrative costs).
4. A demand for payment within 30 days from the date of notice.
5. A statement that the failure to pay within 30 days will allow the City to file a tax lien against the *premises* or to pursue litigation for the recovery of costs.

If unpaid after 30 days of the notice of costs, the abatement costs shall be assessed as a special assessment against the *premises*, and a lien shall be placed on the *premises*. Thereafter, the city clerk, at the time of certifying other City taxes, shall certify the unpaid portion of the costs, and the county clerk shall extend the same on the tax rolls of the County against the *premises*. Assessments under this section shall be superior to all liens except general tax liens. Provided the City may collect such costs in the manner provided at K.S.A. 12-1,115, by bringing an action in the appropriate court as a personal debt, and the City may pursue both assessment and collection until the full cost, including applicable interest, court costs, attorney's fees and administrative costs have been paid in full.

106.5.3 Impact on prosecution. The imposition of abatement shall not preclude any appropriate prosecution or penalties, nor shall the imposition of any prosecution or penalties preclude the Code Official from instituting appropriate action to restrain, correct or abate a violation, or to prevent illegal *occupancy* of a building, structure or *premises*, or to stop an illegal act, conduct, business or utilization of the building, structure or *premises*.

(History: Ord. No. PM-3289 §10, 2020)

7.25.108.8 Damage or loss to buildings or other structures.

Damage or loss to buildings or other structures shall comply with the provisions of Sections 108.8.1 through 108.8.11.

108.8.1 Scope and application. The City is hereby authorized to utilize the procedures established by K.S.A. 40-3901 et seq., whereby no insurance company shall pay a claim of a named insured for loss or damage to any building or other structure located within the City, where the amount recoverable for the loss or damage to the building or other structure under all policies is in excess of 75% of the face value of the policy covering such building or other structure, unless there is compliance with the procedures set out in this Code.

108.8.2 Lien created. There is hereby created a lien in favor of the City on the proceeds of any insurance policy based upon a covered claim payment made for damage or loss to a building or other structure located within the City, where the amount recoverable for all the loss or damage to the building or other structure under all policies is in excess of 75% of the face value of the policy(s) covering such building or other insured structure. The lien arises upon any unpaid tax, special ad valorem levy, or any other charge imposed upon real property by or on behalf of the City which is an encumbrance on real property, whether or not evidenced by written instrument, or such tax, levy, assessment, expense or other charge that has remained undischarged for at least one year prior to the filing of a proof of loss.

108.8.3 Same, encumbrances. Prior to final settlement on any claim covered by Section 108.8.2, the insurer or insurers shall contact the County Treasurer, Johnson County, Kansas, to determine whether any such encumbrances are presently in existence. If the same are found to exist, the insurer or insurers shall execute and transmit in an amount equal to that owing under the encumbrances a draft payable to the County Treasurer, Johnson County, Kansas.

108.8.4 Same; pro rata basis. Such transfer of proceeds shall be on a pro rata basis by all insurance companies insuring the building or other structure.

108.8.5 Procedure:

1. When final settlement on a covered claim has been agreed to or arrived at between the named insured or insureds and the company or companies, and the final settlement exceeds 75% of the face value of the policy covering any building or other insured structure, and when all amounts due the holder of a first real estate mortgage against the building or other structure, pursuant to the terms of the policy and endorsements thereto, shall have been paid, the insurance company or companies shall execute a draft payable to the Chief Financial Officer in an amount equal to the sum of 15% of the covered claim payment, unless the Code Official has issued a certificate to the insurance company or companies that the insured has removed the damaged building or other structure, as well as all associated debris, or repaired, rebuilt, or otherwise made the *premises* safe and secure.
2. Such transfer of funds shall be on a pro rata basis by all companies insuring the building or other structure. Policy proceeds remaining after the transfer to the City shall be disbursed in accordance with the policy terms.
3. Upon the transfer of funds as required by Section 108.8.1, the insurance company shall provide the City with the name and address of the named insured or insureds, the total insurance coverage applicable to said building or other structure, and the amount of the final settlement agreed to or arrived at between the insurance company or companies and the insured or insureds, whereupon the Code Official shall contact the named insured or insureds by certified mail, return receipt requested, notifying

them that said insurance proceeds have been received by the City and apprise them of the procedures to be followed under this Ordinance.

108.8.6 Fund created; deposit of moneys. The Chief Financial Officer is hereby authorized and shall create a fund to be known as the "Insurance Proceeds Fund." All moneys received by the Chief Financial Officer as provided for by this Ordinance shall be placed in said fund and deposited in an interest-bearing account.

108.8.7 Building Inspector; investigation, removal of structure.

1. Upon receipt of moneys provided for by this Ordinance, the Chief Financial Officer shall immediately notify the Code Official of said receipt, and transmit all documentation received from the insurance company or companies to the Code Official.
2. Within forty-five (45) days of the receipt of said moneys, the Code Official shall determine, after prior investigation, whether the City shall instigate proceedings under the provisions of K.S.A. 12-1750 et seq., as amended.
3. Prior to the expiration of the forty-five (45) days established by Section 108.8.7(2), the Code Official shall notify the Chief Financial Officer whether proceedings will be initiated under K.S.A. 12-1750 et seq., as amended.
4. If the Code Official has determined that proceedings under K.S.A. 12-1750 et seq., as amended shall be initiated, the Code Official will do so immediately but no later than forty-five (45) days after receipt of the moneys by the Chief Financial Officer.
5. Upon notification to the Chief Financial Officer by the Code Official that no proceedings shall be initiated under K.S.A. 12-1750 et seq., as amended, the Chief Financial Officer shall return all such moneys received, plus accrued interest, to the insured or insureds as identified in the communication from the insurance company or companies. Such return shall be accomplished within forty-five (45) days of the receipt of the moneys from the insurance company or companies.

108.8.8 Removal of structure excess moneys. If the Code Official has proceeded under the provisions of K.S.A. 12-1750 et seq., as amended, all moneys in excess of that which is ultimately necessary to comply with the provisions for the removal of the building or structure, less salvage value, if any, shall be paid to the insured.

108.8.9 Same; disposition of funds. If the Code Official, with regard to a building or other structure damaged determines that it is necessary to act under K.S.A. 12-1756, any proceeds received by the Chief Financial Officer under the authority of Section 108.8.5(1) relating to that building or other structure shall be used to reimburse the City for any expenses incurred by the City in proceeding under K.S.A. 12-1756. Upon reimbursement from the insurance proceeds, the Code Official shall immediately affect the release of the lien resulting therefrom. Should the expenses incurred by the City exceed the insurance proceeds paid to the Chief Financial Officer under Section 108.8.5(1), the Code Official shall publish a new lien as authorized by K.S.A. 12-1756, in an amount equal to such excess expenses incurred.

108.8.10 Effect upon insurance policies. This Ordinance shall not make the City a party to any insurance contract, nor is the insurer liable to any party for any amount in excess of the proceeds otherwise payable under its insurance policy.

108.8.11 Insurers; liability. Insurers complying with this Ordinance or attempting in good faith to comply with this Ordinance shall be immune from civil and criminal liability and such action shall not be deemed in violation of K.S.A. 40-2404 and any amendments thereto, including withholding payment of any insurance proceeds pursuant to this Ordinance, or releasing or disclosing any information pursuant to this Ordinance.

(History: Ord. No. PM-3289 §11, 2020)

7.25.109.1 Imminent danger.

When, in the opinion of the Code Official , there is *imminent danger* of failure or collapse of a building or structure which endangers life, or when any structure or part of a structure has fallen and life is endangered by the occupation of the structure, or when there is actual or potential danger to the building occupants or those in proximity of any structure because of explosives, explosive fumes or vapors or the presence of toxic fumes, gases or materials, or operation of defective or dangerous equipment, the Code Official is hereby authorized and empowered to order and require the *occupants* to vacate the *premises* forthwith. The Code Official shall cause to be posted at each entrance to such structure a notice reading as follows: "This *structure* is unsafe and its *occupancy* has been prohibited by the Code Official." It shall be unlawful for any person to enter such structure except for the purpose of securing the structure, making the required repairs, removing the hazardous condition or demolishing the same. When the Code Official has determined that a structure is in danger of collapse or has suffered a partial collapse, and thus poses an imminent danger to life for those in proximity to the structure, the Code Official is further authorized to order the immediate removal or demolition of the structure or portion thereof as authorized under K.S.A. 12-1756.

(History: Ord. No. PM-3289 §12, 2020)

7.25.110 Demolition

110.1 Order of demolition. The Code Official shall order the owner of any premises upon which is located any structure, which in the Code Official judgment after review is so deteriorated or dilapidated or has become so out of repair as to be dangerous, unsafe, insanitary or otherwise unfit for human habitation or occupancy, and such that it is unreasonable to repair the structure, to demolish and remove such structure; or if such structure is capable of being made safe by repairs, to repair and make safe and sanitary, or to board up and hold for future repair or to demolish and remove at the owner's option; or where there has been a cessation of normal construction of any structure for a period of more than two years, the Code Official shall order the owner to demolish and remove such structure, or board up until further repair. Boarding the building up for future repair shall not extend beyond one year, unless approved by the Code Official .

110.1.1 Enforcement. If the Code Official determines that a violation of Section 110.1 exists, a Notice to Appear in Municipal Court may be issued for such violation. No other procedures, including the adherence to the provisions of Section 110.3, are required as a prerequisite to the issuance of a Notice to Appear.

110.2 Notices and orders. Notices and orders shall comply with Section 107.

110.3 Demolition or repair by the City. The Governing Body shall have the power to cause the repair or removal of, or to remove any structure located within the City, which may have become unsafe or dangerous. This provision and the following subsections are intended to conform with the provisions of K.S.A. 12-1750 et seq. (as amended from time to time); and to the extent there is any conflict, the Statute shall take precedent.

110.3.1 Code official's report. Whenever the Code Official's investigation discloses a basis that any structure is unsafe or dangerous, the Code Official shall file a written report with the Governing Body describing the situation, its location and the circumstances that support the determination that the structure is unsafe or dangerous.

110.3.2 Notice and publication for hearing. The Governing Body, by resolution, shall fix a time and place at which the owner, the owner's agent, any lienholders of record and any occupant of such structure may appear and show cause why such structure should not be condemned and ordered repaired or demolished. Such resolution shall be published once each week for two (2) consecutive weeks on the same day of each week. At least thirty (30) days shall elapse between the last publication and the date set for the hearing. A copy of the resolution shall be mailed by certified mail within three (3) days after its first publication to each such owner, agent, lienholder and occupant, at the last known address and shall be marked "deliver to addressee only."

110.3.3 Hearing. On the date fixed for hearing or any adjournment thereof, the Governing Body shall hear all evidence submitted by the owner, the owner's agent, lienholders of record and occupants having an interest in such structure as well as evidence submitted by the Code Official and shall make findings by resolution.

Provided, in the event the Code Official determines on or before the date fixed for hearing that the structure has been sufficiently repaired or removed, the Code Official shall inform the Governing Body and recommend the cancellation of the hearing. Upon acceptance of said recommendation, no further action shall be required by the Governing Body.

110.3.4 Findings and resolution.

110.3.4.1 If the Governing Body finds that such structure is unsafe or dangerous, such resolution shall direct the structure to be repaired or removed and the *premises* made safe and secure. Such resolution shall be published once in the official city paper and a copy mailed to the owners, agents, lienholders of record and occupants in the same manner provided for the notice of hearing. The resolution shall fix a reasonable time within which the repair or removal of such structure shall be commenced and a statement that if the owner of such structure fails to commence the repair or removal of such structure within the time stated or fails to diligently prosecute the same until the work is completed, the Governing Body will cause the structure to be repaired or razed and removed.

110.3.4.2 If the Governing Body finds that such structure is not unsafe or dangerous, such resolution shall state such finding and that the proceeding is terminated. Such resolution shall not be required to be published.

110.3.5 Action, assessment and collection of costs by City.

- a. If the owner of any structure has failed to commence the repair or removal of such structure within the time stated in the resolution or has failed to diligently prosecute the same thereafter, the City may proceed to raze and remove such structure, make the *premises* safe and secure, or let the same to contract.
- b. The City shall keep an account of the cost of such work and may sell the salvage from such structure and apply the proceeds or any necessary portion thereof to pay the cost of removing such structure and making the *premises* safe and secure. All moneys in excess of that necessary to pay such costs and the cost of publications of notice and any postage for mailing of notice, after the payment of all costs, shall be paid to the owner of the *premises* upon which the structure was located.
- c. The City shall give notice to the owner of such structure by restricted mail of the total cost incurred by the City in removing such structure and making the *premises* safe and secure and the cost of providing notice. Such notice also shall state that payment of such cost is due and payable within thirty (30) days following receipt of such notice. If the cost is not paid within the thirty-day period and if there is no salvageable material or if moneys received from the sale of salvage or from the proceeds of any insurance policy in which the City has created a lien pursuant to K.S.A. 40-3901 et seq., and amendments thereto, are insufficient to pay the cost of such work, the balance shall be collected in the manner provided by K.S.A. 12-1,115, and amendments thereto, or shall be assessed as a special assessment against the lot or parcel of land on which the structure was located and the City Clerk at the time of certifying other city taxes, shall certify the unpaid portion of the costs and the county clerk shall extend the same on the tax rolls of the county against such lot or parcel of land. The City may pursue collection both by levying a special assessment and in the manner provided by K.S.A. 12-1,115, and amendments thereto, but only until the full cost and any applicable interest has been paid in full.
- d. Whenever any structure is removed from any *premises* under the provisions of this ordinance, the City Clerk shall certify to the county appraiser that such structure, describing the same, has been removed.

110.4 Duties of owner after removal of structure. The owner of any structure, upon removing the same, shall fill any basement or other excavation located upon the *premises* and take any other action necessary to leave such premises in a safe condition.

(History: Ord. No. PM-3289 §13, 2020)

7.25.111.1 Application for appeal.

Any [person](#) directly affected by a decision of the Code Official or a notice or order issued under this Code directly pertaining to the interpretation or application of technical provisions of this Code shall have the right to appeal to the board of appeals, as established in Section 16.100.113.1, provided that written application for appeal is filed within 10 days after the day the decision, notice or order was served. An application for appeal shall be based on a claim that the true intent of this code or the rules legally adopted thereunder have been incorrectly interpreted, or the provisions of this code do not fully apply, or the requirements of this code are adequately satisfied by other means.

(History: Ord. No. PM-3289 §14, 2020)

7.25.111.2 Omitted.

Section 111.2 of the *International Property Maintenance Code* is hereby omitted.

(History: Ord. No. PM-3289 §15, 2020)

7.25.302.1 Sanitation

Exterior property and *premises* shall be maintained in a clean, safe and sanitary condition. The *occupant* shall keep that part of the *exterior property* that such *occupant* occupies or controls in a clean and sanitary condition. Rubbish and garbage shall not be stored or allowed to accumulate on any *premises* including but not limited to trash, trash bags, large limb piles, boxes, carpet padding, building supplies or material.

(History: Ord. No. PM-3289 §16, 2020)

7.25.302.3 Sidewalks and driveways.

Sidewalks, walkways, stairs, driveways, parking spaces and similar areas shall be kept in a proper state of repair, and maintained free from hazardous conditions. For the purposes of this section, a hazardous condition shall include, but not be limited to, a paved surface which is broken, heaved, collapsed or missing pavement to a degree that [vehicles](#) using the surface are at risk of being damaged or pedestrians walking on the surface are at risk of falling or tripping.

(History: Ord. No. PM-3289 §17, 2020)

7.25.302.4 Omitted (See Chapter 7.20 - Weeds).

Section 302.4 of the *International Property Maintenance Code* is hereby omitted. (*See Chapter 7.20 - Weeds.*)

(History: Ord. No. PM-3289 §18, 2020)

7.25.302.10 Animal Sanitation.

Exterior property and premises shall be kept free of an excessive accumulation of animal waste and any exposed animal carcasses after death.

Provided, however, the provisions of this section shall not apply to any property that is zoned RUR, PRUR, RLD or PRLD that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such land is rezoned.

(History: Ord. No. PM-3289 §19, 2020)

7.25.302.11 Pools of water.

Ponds, reservoirs, swimming pools or other receptacles of water shall be maintained free of trash, debris, garbage or other effluvia and shall not serve as a breeding ground for insects or other vectors.

Provided, however, the provisions of this section shall not apply to any property that is zoned RUR, PRUR, RLD or PRLD that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such land is rezoned.

(History: Ord. No. PM-3289 §20, 2020)

7.25.302.12 Exterior storage.

Except as specifically permitted by this Section or any other applicable city code, exterior storage is not allowed.

For property zoned or used for a single-family or two-family residence, exterior storage is permitted under the applicable provisions of the Unified Development Ordinance or the Overland Park Municipal Code. The intent is to limit exterior storage to those items specifically permitted under the applicable zoning district regulations or the applicable accessory use regulations. Exterior storage shall be subject to the following provisions:

1. Except for firewood, the storage of approved items shall be within the backyard.
2. Firewood shall be neatly stacked and free of insects and vermin. Firewood shall be stored in the side yard or backyard.
3. Storage of items shall be substantially screened from view from any adjacent property by a wall or fence. When approved by the Code Official, mature landscape material may be substituted for a wall or fence.
4. Items such as barbeque grills, flag poles, play equipment and lawn or patio furniture are allowed and need not be screened.
5. Any exterior storage related to a business is prohibited.
6. The exterior storage of permitted items shall occupy no more than 20% of the allowable outside storage area.

For property not zoned or used for a single-family or two-family residential, exterior storage is limited to that which is permitted under the applicable provisions of the Unified Development Ordinance or the Overland Park Municipal Code.

Provided, however, the provisions of this section shall not apply to those properties annexed into the City by either Ordinance No A-2367 or Ordinance No. A-2719 that has a zoning designation based on the Johnson County Zoning Regulations.

(History: Ord. No. PM-3289 §21, 2020)

7.25.302.13 Rain Barrels.

The City promotes the benefits of the use of rain barrels while recognizing the need to blend their use into a residential setting. To balance the environmental, drainage and other benefits of rain barrels with the potential for nuisance, aesthetic or other issues that may result from the use of the same, rain barrels are permitted in residential districts subject to the following:

- a. One rain barrel per each downspout is allowed on any residential building façade, when said rain barrel is:
 1. Approximately 65 gallons or less in capacity;
 2. Screened from view at grade or reasonably blends with the building's façade and surrounding landscaping/vegetation;
 3. Located adjacent to the building envelope;
 4. Not elevated more than 24 inches above adjacent grade, placed on a stable surface, and maintained in such a way as to prevent tipping;
 5. Secured with a lid (lids with a designed screen opening are acceptable);
 6. Maintained in a safe and functional condition and kept in good repair; and
 7. Maintained to prevent any offensive odors, any mosquito or other insect eggs and larvae, any other nuisance or any other city code violation.
- b. Larger rain barrels or even multiple rain barrels per downspout are allowed when the rain barrels are:
 1. Located in the rear yard or side yard behind the front building line;
 2. Screened from view at grade from the right-of-way and any adjacent property;
 3. Placed on a stable surface, and maintained in such a way as to prevent tipping;
 4. Secured with a lid (lids with a designed screen opening are acceptable);
 5. Maintained in a safe and functional condition and kept in good repair; and
 6. Maintained to prevent any offensive odors, any mosquito or other insect eggs and larvae, any other nuisance or any other city code violation.
 7. Subject to the 20% of allowable outside storage area calculation set forth in O.P.M.C. Section 7.25.302.12.
- c. The Code Official is authorized to interpret the application of the requirements in subsections a and b above, and is further authorized to approve reasonable alternative requirements that meet the general goal and intent of this Section.

(History: Ord. No. PM-3289 §22, 2020)

7.25.303.1 Swimming Pools

Swimming pools, spa pools, hot tubs and public bathing places shall be maintained in a clean and sanitary condition, in good repair.

The provision of the Johnson County Aquatics Health Code (and amendments thereto) shall apply to the maintenance of public and semi-public swimming pools, spa pools, hot tubs and public bathing places and shall be enforced by the Johnson County Department of Health and Environment ("JCDHE"); and the City consents to and grants JCDHE jurisdiction to enforce the Johnson County Aquatics Health Code within the City's corporate boundaries. If there is a discrepancy between an ordinance adopted by the City of Overland Park and the Johnson County Aquatics Health Code, the City may enforce the most restrictive provision thereof.

(History: Ord. No. PM-3468 §2, 2024)

7.25.304.2 Protective Treatment.

Exterior Surfaces, including but not limited to, doors, door and window frames, conices, porches, trim, balconies, decks and fences, shall be maintained in good condition. Exterior wood surfaces, other than decay resistant woods, shall be protected from the elements and decay by painting or other protective covering. Peeling, flaking and chipped paint shall be eliminated and surfaces repainted in a manner that is consistent (colorwise) with the adjoining painted surface. Siding and masonry joints, as well as those between the building envelope and the perimeter of windows, doors and skylights, shall be maintained weather resistant and water tight. Metal surfaces subject to rust or corrosion shall be coated to inhibit such rust and corrosion, and surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designated for stabilization by oxidation are exempt from this requirement.

(History: Ord. No. PM-3289 §23, 2020)

7.25.304.6 Exterior walls.

Exterior walls shall be free from holes, breaks, and loose or rotting materials; and maintained weatherproof and properly surface coated where required to prevent deterioration. Exterior walls shall be maintained free of mold and mildew. Repairs made to exterior walls shall be made of materials that are compatible with the existing material unless otherwise approved by the code official.

(History: Ord. No. PM-3289 §24, 2020)

7.25.304.14 Insect screens.

During the period from May 15th to October 15th every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored shall be supplied with approved tightly fitting screens of minimum 16 mesh per inch (16 mesh per 25 mm), and every screen door used for insect control shall have a self-closing device in good working condition.

Exception: Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.

Where screens, frames for screens, or storm windows are provided, the entire assembly shall be maintained in a workable condition and in good repair.

(History: Ord. No. PM-3289 §25, 2020)

7.25.308.1 Accumulation of rubbish or garbage.

Exterior property and premises, and the interior of every structure, shall be free from any accumulation of rubbish or garbage and any solid waste as defined in Title 7.36 of the Overland Park Municipal Code.

308.1.1 Summary Abatement. Whenever the Code Official determines that the accumulation of rubbish, garbage or any other solid waste poses an imminent threat or substantial risk of being spread, scattered or blown onto neighboring properties or the adjacent right-of-way thereby creating a substantial interference with the use and enjoyment of said properties, the City may to take immediate action to abate the violation without notice.

308.1.2 Accelerated Abatement. Whenever the Code Official determines that the accumulation of rubbish, garbage or any other solid waste appears to be discarded items or materials that, by virtue of their nature, amount or composition, create a substantial interference with the use and enjoyment of neighboring properties or public property or right-of-way, the City may take steps to abate the violation in accordance with the following steps:

1. The Code Official shall post the premises where the materials are located with a notice warning that accelerated abatement will occur unless the violation is corrected as required. If the tax records indicate that the owner resides at the location and the violation is not removed within 24 hours of posting, the Code Official may authorize immediate abatement.
2. If the tax records indicate that the owner resides at a different location in Johnson County, the Code Official shall post that location with the same notice. If the violation is not removed within 48 hours, the Code Official may authorize immediate abatement.
3. If the tax records indicate that the owner resides outside of Johnson County, the Code Official shall send the same notice to the owner's address by overnight delivery. If the violation is not removed within 48 hours of the time of posting, the Code Official may authorize immediate abatement, provided the Code Official reasonably believes that at least 24 hours has occurred from the anticipated delivery time of the mailed notice.

If summary, accelerated or regular abatement is required, the owner shall be responsible for payment of the cost of the abatement and a notice of cost shall be sent as provided in OPMC Section 7.25.106.5.1.

(History: Ord. No. PM-3289 §26, 2020)

7.25.506.2 Maintenance

Section 506.2 of the *International Property Maintenance Code* is hereby amended to read as follows:

506.2 Maintenance. Every plumbing stack, vent, waste and sewer line shall function properly and be kept free from obstructions, leaks and defects. The provision of the Johnson County Environmental Sanitary Code 2025 Edition (and amendments thereto) shall apply to the maintenance of private sewage disposal systems and shall be enforced by the Johnson County Department of Health and Environment ("JCDHE"); and the City consents to and grants JCDHE jurisdiction to enforce the Johnson County Environmental Sanitary Code within the City's corporate boundaries.

(History: Ord. No. BC-3466 §4, 2024)

7.25.602.3 Heat supply.

Every owner and operator of any building who rents, leases or lets one or more dwelling units or sleeping units on terms, either expressed or implied, to furnish heat to the occupants thereof shall supply heat during the period from October 15th to May 15th to maintain a temperature of not less than 68°F (20°C) in all habitable rooms, bathrooms, and toilet rooms.

Exceptions:

1. When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in Appendix D of the International Plumbing Code.
2. In areas where the average monthly temperature is above 30°F (-1°C) a minimum temperature of 65°F (18°C) shall be maintained.

(History: Ord. No. PM-3289 §27, 2020)

7.25.602.4 Occupiable work spaces.

Indoor occupiable work spaces shall be supplied with heat during the period from October 15th to May 15th to maintain a temperature of not less than 65°F (18°C) during the period the spaces are occupied.

Exceptions:

1. Processing, storage and operation areas that require cooling or special temperature conditions.
2. Areas in which **persons** are primarily engaged in vigorous physical activities.

(History: Ord. No. PM-3289 §28, 2020)

7.25.606.1 General.

Elevators, dumbwaiters and escalators shall be maintained in compliance with ASME A17.1. The most current certificate of inspection shall be on display at all times within the elevator or attached to the escalator or dumbwaiter, be available for public inspection in the office of the building operator or be posted in a publicly conspicuous location approved by the Code Official. The inspection and tests shall be performed at not less than the periodic intervals listed in Table 601.1.

Table 606.1 Inspection and Test Intervals in “Months”									
Reference Section	Equipment Type	Periodic Inspections		Periodic Test					
		Requirement	Interval	Category 1		Category 3		Category 5	
				Requirement	Interval	Requirement	Interval	Requirement	Interval
8.11.2	Electric elevators	8.11.2.1	NA	8.11.2.2	12	N/A	N/A	8.11.2.3	60
8.11.3	Hydraulic elevators	8.11.3.1	NA	8.11.3.2	12	8.11.3.3		8.11.3.4	60
8.11.4	Escalators and moving walks	8.11.4.1	NA	8.11.4.2	12	N/A	N/A	N/A	N/A
8.11.5.1	Sidewalk elevators	8.11.2.1, 8.11.3.1	NA	8.11.2.2, 8.11.3.2	12	8.11.3.3		8.11.2.3, 8.11.3.4	60
8.11.5.3	Hand elevators	8.11.2.1	12	8.11.2.2	12	N/A	N/A	8.11.2.3, 8.11.3.4	60
8.11.5.4	Dumbwaiters	8.11.2.1, 8.11.3.1	12	8.11.2.2, 8.11.3.2	12	8.11.3.3		8.11.2.3, 8.11.3.4	60
8.11.5.5	Material lifts and dumbwaiters with automatic transfer devices	8.11.2.1, 8.11.3.1	12	8.11.2.2, 8.11.3.2	12	8.11.3.3		8.11.2.3, 8.11.3.4	60

(History: Ord. No. PM-3289 §29, 2020)

7.25.800

Chapter 8 REFERENCE STANDARDS of the *International Property Maintenance Code* is hereby amended to omit the reference to **IZC - 2018 International Zoning Code**.

(History: Ord. No. PM-3289 §30, 2020)

TITLE 7 - HEALTH AND SANITATION

7.28 IMMEDIATE HAZARDS

Contents:

7.28.010 Definitions.

7.28.020 Enforcement.

7.28.030 Removal and/or Sale.

7.28.010 Definitions.

The following words and phrases when used in this chapter, shall, for the purpose of this chapter, have the meanings respectively ascribed to them in this section:

A. **Enforcing officer** means any two of the following officials:

1. City Manager
2. City Attorney
3. Assistant City Attorney
4. Chief of Police
5. Lieutenant Colonel of Police
6. Director of Planning and Development Services
7. Code Administrator
8. Environmental Health Officer
9. Director of Public Works
10. City Engineer
11. Fire Chief

B. **Immediate hazard** means any condition, or situation constituting a present dangerous or unsafe condition requiring immediate action to protect the public.

(History: Ord. IHR-2580 §1, 2005; PD-2372 §11, 2002; ROCR-2245 §11, 2001; IHR-1424 §1, 87; IHR-377B §1, 71; IHR-377-A §1, 67; IHR-377 §1, 66)

7.28.020 Enforcement.

The enforcing officer of the City shall have the power to declare any condition, situation or existing set of facts to constitute an immediate hazard requiring immediate action to protect the public whenever, in his opinion, the public health, safety, welfare or morals are presently jeopardized. The enforcing officer may erect barricades around such immediate hazards, take other actions to eliminate such immediate hazard, or cause the property on which said immediate hazard is located to be vacated, taken down, repaired, shored, or otherwise made safe without delay and such action may be taken without prior notice to or hearings of the owners, agents, lienholders, and occupants. The cost of such action shall be assessed against the premises on which the immediate hazard is located.

(History: Ord. IHR-1424 §2, 87; IHR-377 §2, 66)

7.28.030 Removal and/or Sale.

The City shall keep an account of the cost of such work, as set forth in [7.28.020](#), and may sell the salvage from such immediate hazard and apply the proceeds or any necessary portion thereof to pay the cost of removal of such immediate hazard and making the premises safe and secure. If there is no salvageable material or if money received from the salvage is insufficient to pay the cost of such work, such cost or any portion thereof in excess of the amounts received from the sale of the salvage shall be assessed as a special assessment against the parcel of land on which the immediate hazard was located and the City Clerk shall, at the time of certifying other City taxes, certify the unpaid portion of the aforesaid costs and the County Clerk shall extend the same on the tax rolls of the county against said lot or parcel of land.

(History: Ord. IHR-377 §3, 66)

TITLE 7 - HEALTH AND SANITATION

7.32 RAT CONTROL

Contents:

- 7.32.010 Definitions.
- 7.32.020 Ratproofing Business Buildings Required.
- 7.32.030 Compliance with Notice to Ratproof Required.
- 7.32.040 Time Period Allowed for Compliance with Ratproofing Notice.
- 7.32.050 Maintenance of Ratproof Conditions.
- 7.36.060 Inspections.
- 7.32.070 Closing Business for Conditions Conducive to Rat Harborage.
- 7.32.080 Condemnation and Destruction of Noncomplying Buildings.
- 7.32.090 Failure to Restore Ratproof Condition or to Leave Openings.
- 7.32.100 Structures to Conform to Regulations.
- 7.32.110 Conformance with Regulations Where Foodstuffs Are Handled.
- 7.32.120 Storage of Food and Feed.
- 7.32.130 Storage of Refuse.
- 7.32.140 Accumulations of Garbage.
- 7.32.150 Storage of Lumber, Bottles and Related Materials.
- 7.32.160 Violation - Penalty.

7.32.010 Definitions.

For the purposes of this chapter the following definitions shall apply:

- A. **Administrator** means the Administrator, Environmental Health, or his\her designee.
- B. **Business buildings** means any structure, whether public or private that is adapted for occupancy for transaction of business, for rendering of professional service, for amusement, for the display, sale or storage of goods, wares, or merchandise, or for the performance of work or labor, including hotels, apartment buildings, tenement houses, rooming houses, office buildings, public buildings, stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, workshops, factories, and all outhouses, sheds, barns, and other structures on premises used for business purposes;
- C. **Occupant** means any person who, alone or jointly or severally with others, shall be in actual possession of any improved real property, either as owner or as a tenant, either with or without the consent of the owner thereof.

- D. **Owner** means any person who, alone or jointly or severally with others, has legal title to, or sufficient proprietary interest in, or has charge, care or control of any improved real property, as title holder, as employee or agent of the title holder, or as landlord or manager or as trustee or guardian of the estate or person of the title holder.
- E. **Rat eradication** means the elimination or extermination of rats within buildings by any or all of the accepted measures, such as: poisoning, fumigation, or trapping;
- F. **Rat harborage** means any condition which provides shelter or protection for rats, thus favoring their multiplication and continued existence in, under, or outside of any structure;
- G. **Rat proofing** as used in this chapter applies to a form of construction to prevent the ingress of rats into business buildings from the exterior, or from one business building or establishment to another. It consists essentially of treatment with material impervious to rat gnawing, all actual or potential openings, in exterior walls, ground or first floors, basements, roofs and foundations, that may be reached by climbing or by burrowing.

(History: Ord. RAT-1715 §1, 91; RAT-418 §1, 67)

7.32.020 Ratproofing Business Buildings Required.

It is required that all business buildings in the City shall be rat-proof, freed of rats, and maintained in a rat-proof and rat-free condition to the satisfaction of the Administrator.

(History: Ord. RAT-1715 §2, 91; RAT-418 §2, 67)

7.32.030 Compliance with Notice to Ratproof Required.

Upon receipt of a written notice or order from the Administrator, the owner of any business building specified therein shall take immediate measures for rat proofing the building, and unless the work and improvements have been completed by the owner in the time specified in the written notice, or within the time to which a written extension may have been granted by the Administrator, then the owner shall be deemed guilty of an offense under the provisions of these regulations.

(History: Ord. RAT-1715 §3, 91; RAT-418 §3, 67)

7.32.040 Time Period Allowed for Compliance with Ratproofing Notice.

Whenever the Administrator gives a written notice to the occupant of a business building that there is evidence of rat infestation of the building, the occupant shall, upon receipt or posting of that notice, immediately institute rat-eradication measures and shall continuously maintain such measures in a satisfactory manner until the premises is declared by the Administrator to be free of rat infestation.

(History: Ord. RAT-1715 §4, 91; RAT-418 §4, 67)

7.32.050 Maintenance of Ratproof Conditions.

The owners of all rat proofed business buildings are required to maintain the premises in a rat proof condition and to repair all breaks or leaks that may occur in the rat proofing without a specific order of the Administrator.

(History: Ord. RAT-1715 §5, 91; RAT-418 §5, 67)

7.36.060 Inspections.

The Administrator is empowered to make routine, administrative inspections of the interior and exterior of business buildings to determine evidence of rat infestation and the existence of new breaks in their rat proofing and, when any evidence is found indicating the presence of rats or openings through which rats may again enter business buildings, require the owners or occupants to abate the conditions found.

(History: Ord. RAT-1715 §6, 91; RAT-418 §6, 67)

7.32.070 Closing Business for Conditions Conducive to Rat Harborage.

Whenever conditions inside or under occupied businesses, in the opinion of the Administrator, provide extensive harborage for rats, the Administrator is empowered, after due notification in accordance with [7.32.030](#), to close such business buildings until such time as the conditions are abated by rat proofing and harborage removal, including if necessary, the installation of suitable concrete floors in basements or replacement of wooden first or ground floors with concrete or other major repairs necessary to facilitate rat eradication.

(History: Ord. RAT-1715 §7, 91; RAT-418 §7, 67)

7.32.080 Condemnation and Destruction of Noncomplying Buildings.

Whenever conditions inside or under unoccupied business buildings, in the opinion of the Administrator, provide extensive harborage for rats the Administrator is empowered to require compliance with the provisions of [7.32.030](#), and, in the event that the conditions are not corrected in a period of 60 days, or within the time to which a written extension may have been granted by the Administrator, the Administrator is empowered to institute condemnation and destruction proceedings.

(History: Ord. RAT-1715 §8, 91; RAT-418 §8, 67)

7.32.090 Failure to Restore Ratproof Condition or to Leave Openings.

It is unlawful under the provisions of this chapter for the occupant, owner, contractor, public utility company, plumber, or any other person to remove and fail to restore in like condition the ratproofing from any business building for any purpose. Further, it is unlawful for any person or agent to make any new openings that are not closed or sealed against the entrance of rats.

(History: Ord. RAT-418 §9, 67)

7.32.100 Structures to Conform to Regulations.

It is unlawful for any person to construct, repair, or remodel any building, dwelling, stable, or market, or other structure whatsoever, unless such construction, repair, remodeling or installation renders the building or other structure rat proof in accordance with the regulations prescribed in this chapter. The provisions of this section apply only to such construction, repairs, remodeling, or installation that affects the rat proof condition of any building or other structure.

(History: Ord. RAT-1715 §9, 91; RAT-418 §10, 67)

7.32.110 Conformance with Regulations Where Foodstuffs Are Handled.

It is unlawful for any person to occupy any new or existing business buildings wherein foodstuffs are to be stored, kept, handled, sold, held, or offered for sale without complying with [7.32.100](#); and unless the provisions of this section are complied with, no City license or permit to conduct or carry on such business as defined in this chapter will be issued.

(History: Ord. RAT-1715 §10, 91; RAT-418 §11, 67)

7.32.120 Storage of Food and Feed.

- A. All food and feed within the City for feeding chickens, cows, pigs, horses, and other animals shall be stored in rat-free and ratproof containers, compartments, or rooms unless stored in a ratproof building.
- B. The provisions of this section shall not apply to any property that is zoned RUR, PRUR, RLD or PRLD and that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such land is rezoned.

(History: Ord. RAT-2723 §1, 2008; RAT-418 §12, 67)

7.32.130 Storage of Refuse.

- A. Within the corporate limits of the City, all garbage or refuse consisting of waste animal or vegetable matter upon which rats may feed, and all small dead animals, shall be placed and stored until collected in covered metal containers of a type prescribed by the Administrator. It is further unlawful for any person to dump or place on any premises, land, or waterway, any dead animals, or any waste vegetation or animal matter of any kind.
- B. The provisions of this section shall not apply to any property that is zoned RUR, PRUR, RLD or PRLD that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such land is rezoned.

(History: Ord. RAT-2724 §1, 2008; RAT-1715 §11, 91; RAT-418 §13, 67)

7.32.140 Accumulations of Garbage.

- A. It is unlawful for any person to place, leave, dump, or permit to accumulate any solid waste, including, without limitation, any garbage, rubbish, or trash in any building or on any premises, improved or vacant, or on any open lot or alley in the City so that same shall or may afford food or harborage for rats.
- B. The provisions of this section shall not apply to any property that is zoned RUR, PRUR, RLD or PRLD that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such land is rezoned.

(History: Ord. RAT-2725 §1, 2008; RAT-1715 §12, 91; RAT-418 §14, 67)

7.32.150 Storage of Lumber, Bottles and Related Materials.

- A. It is unlawful for any person to permit to accumulate on any premises, improved or vacant, or on any open lot or alley in the City any lumber, boxes, barrels, bottles, cans, containers, or similar materials that may be permitted to remain thereon unless same shall be placed on open racks that are elevated not less than 18 inches above the ground, and evenly piled or stacked, if the Administrator determines that said accumulation is susceptible to rat harborage or rodent activity.
- B. The provisions of this section shall not apply to any property that is zoned RUR, PRUR, RLD or PRLD that was annexed into the City pursuant to Ordinance No. A-2719, unless and until such land is rezoned.

(History: Ord. RAT-2726 §1, 2008; RAT-1715 §13, 91; RAT-418 §15, 67)

7.32.160 Violation - Penalty.

Any person, firm or corporation who violates any provision or provisions of this chapter is guilty of a public offense and upon conviction shall be punished as provided in Section [1.12.010](#).

(History: Amended during codification in accordance with K.S.A. 12-3015: Ord. RAT-418 §16, 67)

TITLE 7 - HEALTH AND SANITATION

7.36 COLLECTION AND STORAGE OF SOLID WASTE AND RECYCLABLES

Contents:

- 7.36.100.100 Definitions.**
- 7.36.100.105 Administrative Regulations.**
- 7.36.100.110 Administrator.**
- 7.36.100.114 Approved Solid Waste Container.**
- 7.36.100.116 Approved Recycling Container.**
- 7.36.100.120 Bulky Waste.**
- 7.36.100.130 City.**
- 7.36.100.140 Collection.**
- 7.36.100.145 Community Interest Group.**
- 7.36.100.150 Construction and Demolition Waste.**
- 7.36.100.155 County Solid Waste Regulations.**
- 7.36.100.160 Disposal.**
- 7.36.100.170 Dwelling Unit.**
- 7.36.100.173 Hauler.**
- 7.36.100.175 Hauler Permit.**
- 7.36.100.177 Hauler Vehicle Permit.**
- 7.36.100.180 Hazardous Waste.**
- 7.36.100.190 Homes Association.**
- 7.36.100.200 Open Burning.**
- 7.36.100.210 Owner.**
- 7.36.100.220 Person.**
- 7.36.100.223 Recyclables.**
- 7.36.100.225 Recycling Container.**
- 7.36.100.228 Residential Customer.**
- 7.36.100.230 Residential District.**
- 7.36.100.240 Solid Waste.**
- 7.36.100.250 Solid Waste Container.**

- 7.36.100.260 Storage.
- 7.36.100.270 Yard Waste.
- 7.36.105 Administration.
- 7.36.110 Hauler Permit Requirements.
- 7.36.112 Hauler Insurance Requirements.
- 7.36.115 Required Hauler Services.
- 7.36.170 Storage of Solid Waste and Recyclables.
- 7.36.180 Solid Waste and Recycling Containers.
- 7.36.190 Prohibited Acts.
- 7.36.200 Additional Exceptions.
- 7.36.210 Severability.
- 7.36.220 Penalty.

7.36.100.100 Definitions.

Where a word or term is not defined in this Chapter but is defined elsewhere in the Code, such definition shall be applicable unless the context indicates that a standard dictionary definition is more appropriate. Where a word or term is defined in this Chapter and also defined elsewhere in this Code, the definition contained in this Chapter shall be generally applicable unless the context clearly indicates otherwise.

(History: Ord. SW-2927 §1, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.105 "Administrative Regulations."

"Administrative Regulations" means the *Regulations for the Collection and Storage of Solid Waste and Recyclables in Overland Park, Kansas*, as adopted and administered by the Administrator pursuant to O.P.M.C. Section 7.36.105 B.

(History: Ord. SW-2927 §2, 2011)

7.36.100.110 "Administrator."

"Administrator" means the Director of Planning and Development Services or his\her designee.

(History: Ord. SW-2783 §1, 2009; SW-1760, 92; SW-1714, 91)

7.36.100.114 "Approved Solid Waste Container."

"Approved Solid Waste Container" means a container that is issued to the residential customer from the Hauler, which is designed and manufactured specifically for the Storage and Collection of Solid Waste.

(History Ord. No. SW-3350 §1, 2021.)

7.36.100.116 "Approved Recycling Container."

"Approved Recycling Container" means a container that is issued to the residential customer from the Hauler, which is designated and manufactured specifically for the Storage and Collection of Recyclables.

(History: Ord. No. SW-3350 §2, 2021.)

7.36.100.120 "Bulky Waste."

"Bulky Waste" means non-putrescible Solid Waste items too large to be placed in Solid Waste Containers including, but not limited to appliances, furniture, large automobile parts, and so forth, and which are not collected as part of a Hauler's routine Collection service.

(History: Ord. SW-3350 §3, 2021; Ord. SW-2927 §3, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.130 "City."

"City" means the City of Overland Park, Kansas.

(History: Ord. SW-1760, 92; SW-1714, 91)

7.36.100.140 "Collection."

"Collection" means the removal and transportation of Solid Waste or Recyclables from their place of Storage to their place of processing or Disposal.

(History: Ord. SW-2927 §4, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.145 "Community Interest Group."

"Community Interest Group" means a group or association of residential property Owners, including but not limited to a Homes Association, having the legal power to provide or contract for Solid Waste and Recycling services for the members of the group or association.

(History: Ord. SW-2927 §5, 2011)

7.36.100.150 "Construction and Demolition Waste."

"Construction and Demolition Waste" means Solid Waste resulting from the construction, remodeling, repair or demolition of residential, industrial, commercial or other structures, roads, sidewalks or utilities.

(History: Ord. SW-2927 §6, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.155 "County Solid Waste Regulations."

"County Solid Waste Regulations" are the regulations adopted by County for the purpose of governing solid waste management in Johnson County, Kansas, and which are entitled and sometime referred to as the *Johnson County Code of Regulations for Solid Waste Management, 2010 Edition* (as may be amended from time to time).

(History: Ord. SW-2927 §7, 2011)

7.36.100.160 "Disposal."

"Disposal" means depositing Solid Waste in or at a facility approved for disposal of said wastes by the appropriate agencies.

(History: Ord. SW-2927 §8, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.170 "Dwelling Unit."

"Dwelling Unit" means any room or group of rooms located within a structure and forming a single habitable unit with facilities which are used, or are intended to be used for residential living, sleeping, cooking, and eating.

(History: Ord. SW-2927 §9, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.173 "Hauler."

"Hauler" means a Person who performs the act of the Collection of Solid Waste or Recyclables from the production, Storage or Collection point. Provided, however, this definition shall expressly exclude the removal and transportation of Solid Waste or Recyclables by an individual not otherwise in business as a "Hauler" for the purposes of this Chapter and where:

- A. The Solid Waste or Recyclables are generated by the individual, or the individual's family or immediate neighbors, and the Solid Waste or Recyclables are disposed of properly at a licensed or permitted Solid Waste or recycling facility; or
- B. The Disposal is made as an incidental or related part of services or work performed by the individual or affiliated Person, such as landscaping, roofing, remodeling, or similar service or work, and where the Solid Waste or Recyclables are properly disposed of at a licensed or permitted Solid Waste or recycling facility.

(History: Ord. SW-2927 §10, 2011)

7.36.100.175 "Hauler Permit."

"Hauler Permit" means a permit issued by the City certifying that a Person is an authorized Hauler for the Collection of Solid Waste and Recyclables within the City in accordance with this Chapter and the Administrative Regulations.

(History: Ord. SW-2927 §11, 2011)

7.36.100.177 "Hauler Vehicle Permit."

"Hauler Vehicle Permit" means a permit issued by the City certifying that a Collection or transportation vehicle is certified to operate within the City for the purpose of the Collection of Solid Waste and Recyclables in accordance with this Chapter and the Administrative Regulations.

(History: Ord. SW-2927 §12, 2011)

7.36.100.180 "Hazardous Waste."

"Hazardous Waste" means those materials which are corrosive/caustic, flammable, explosive/reactive, toxic/poisonous or radioactive. It shall include those materials determined to be hazardous waste as specified by the Kansas Department of Health and Environment regulations.

(History: Ord. SW-2927 §13, 2011; W-1760, 92; SW-1714, 91)

7.36.100.190 "Homes Association."

"Homes Association" means an incorporated association of residential property Owners having the legal power to provide or contract for Solid Waste and Recycling services for the members of the association.

(History: Ord. SW-2927 §14, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.200 "Open Burning."

"Open Burning" means the burning of any materials in which contaminants resulting from combustion are emitted directly into the ambient air without passing through an enclosed chamber that meets all applicable state and federal air pollution regulations, but shall not include "smoking" as that term is defined in O.P.M.C. Section [11.52.150](#).

(History: Ord. SW-2927 §15, 2011; POC-2632 §8, 2008; SW-1760, 92; SW-1714, 91)

7.36.100.210 "Owner."

"Owner" means any Person who, alone or jointly or severally with others, has legal title to, or sufficient proprietary interest in, or has charge, care or control of any Dwelling Unit or of any other improved real property, as title holder, as employee or agent of the title holder, or as landlord or manager or as trustee or guardian of the estate or Person of the title holder.

(History: Ord. SW-2927 §16, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.220 "Person."

"Person" means an individual, partnership, co-partnership, firm, company, public or private corporation, association, joint stock company, trust, estate, political subdivision or any agency, board, environmental department or bureau of the state or federal government or any other legal entity whatsoever which is recognized by law as the subject of rights and duties, or their legal representative, agent or assigns.

(History: Ord. SW-2927 §17, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.223 "Recyclables."

"Recyclables" means any materials that will be used or reused, or prepared for use or reuse, as an ingredient in an industrial process to make a product, or as an effective substitute for a commercial product. Recyclables includes, but is not limited to paper, glass, plastic, and metal, but does not include Yard Waste.

(History: Ord. SW-2927 §18, 2011)

7.36.100.225 "Recycling Container."

"Recycling Container" means a container designed and manufactured specifically for the Storage and Collection of Recyclables.

(History: Ord. SW-2927 §19, 2011)

7.36.100.228 "Residential Customer."

"Residential Customer" means a Person who (directly or indirectly) engages a Hauler for the regular Collection of Residential Solid Waste and Recyclables.

(History: Ord. SW-2927 §20, 2011)

7.36.100.230 "Residential District."

"Residential Districts" means any place or area where the property is zoned for residential occupancy including single-family, and multi-family dwellings.

(History: Ord. SW-1760, 92; SW-1714, 91)

7.36.100.240 "Solid Waste."

"Solid Waste" means any unwanted or discarded waste materials in a solid or semi-liquid or liquid state; but "Solid Waste" shall not include Hazardous Waste or Recyclables.

A. **"Commercial Solid Waste"** means Solid Waste resulting from the operation of any commercial, industrial, institutional, agricultural or other non-residential establishment or use. Solid Waste produced by a grouping of Dwelling Units where Solid Waste Collection service is not offered to each Dwelling Unit on an individual basis is also to be defined as Commercial Solid Waste.

B. **"Residential Solid Waste"** means Solid Waste emanating or resulting from the operation of Dwelling Units where Solid Waste Collection service is offered to each Dwelling Unit on an individual basis.

(History: Ord. SW-2927 §21, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.250 "Solid Waste Container."

"Solid Waste Container" means a container designed and manufactured specifically for the Storage and Collection of Solid Waste.

(History: Ord. SW-2927 §22, 2011; SW-2783 §2, 2009; SW-1760, 92; SW-1714, 91)

7.36.100.260 "Storage."

"Storage" means the keeping, maintaining, or containment of Solid Waste or Recyclables from the time of their production until the time of their Collection.

(History: Ord. SW-2927 §23, 2011; SW-1760, 92; SW-1714, 91)

7.36.100.270 "Yard Waste."

"Yard Waste" means grass clippings, leaves, and tree and brush trimmings, and other organic yard materials; but "Yard Waste" shall not include agricultural waste resulting from the production of farm or agricultural products.

(History: Ord. SW-2927 §24, 2011; SW-1760, 92; SW-1714, 91)

7.36.105 Administration.

A. Administration. The Administrator is the principal City official for the administration of this Chapter for the purpose of governing Solid Waste and Recyclables in the City. The Administrator may delegate any or all of the duties hereunder.

B. Administrative Regulations.

1. The Administrator may adopt and administer the [Administrative Regulations](#) for the purpose of providing further detail and regulations for:
 - a. Hauler and Hauler Vehicle Permit requirements and procedures (*in addition to those set forth in O.P.M.C. Sections [7.36.110](#) and [7.36.112](#)*);
 - b. Required Hauler services (*in addition to those set forth in O.P.M.C. Section [7.36.115](#)*);
 - c. Haulers' communication requirements with customers and the City; and
 - d. Any other applicable regulations concerning the Collection or Storage of Solid Waste and Recyclables.

The [Administrative Regulations](#) shall supplement and must be consistent with the provisions of this Chapter. To the extent there is any conflict, the provisions of this Chapter shall apply.

2. The [Administrative Regulations](#) shall be adopted and amended by the Administrator following a public input process which shall include the following minimum steps:
 - a. Posting on the City website the proposed Administrative Regulations in draft form for a minimum of 14 days prior to the Administrator holding a public informational meeting;
 - b. Providing a written or electronic copy of the proposed Administrative Regulations in draft form to all Haulers with a current Hauler Permit at least 14 days prior to the public informational meeting; and
 - c. Extending a written comment period for a minimum of 14 days after the public informational meeting.

A new public input process is not required for revisions to the proposed draft Administrative Regulations if the same is adopted by the Administrator within 60 days of the public informational meeting.

3. The [Administrative Regulations](#) (as adopted and amended) are hereby incorporated by reference into this Chapter for the purpose of enforcing compliance with the same. No fewer than three (3) copies of the [Administrative Regulations](#) shall be marked Official Copy and include the date of adoption, and shall be filed with the City Clerk to be open to inspection and available to the public at all reasonable business hours. The Municipal

Court and all administrative departments of the City charged with enforcement of this Chapter and the [Administrative Regulations](#) shall be supplied at the cost of the City such number of official copies as may be deemed expedient.

(History: Ord. SW-2927 §25, 2011)

7.36.110 Hauler Permit Requirements.

- A. No Person shall engage in the business of the Collection of Solid Waste or Recyclables within the City without first obtaining a Hauler Permit, and a separate Hauler Vehicle Permit for each Collection or transportation vehicle to be operated within the City.
- B. The Hauler and Hauler Vehicle Permit fee schedule shall be fixed by the City Manager, pursuant to the Planning and Development Fee and Cost Recovery Policy as adopted by the Governing Body, and the City Manager or their designee may establish any and all policies or waivers related to the same, and such fees shall be paid in full upon application.
- C. No Hauler or Hauler Vehicle Permit shall be issued to any Person who has not first obtained any necessary or applicable license or permit from the County in accordance with the County Solid Waste Regulations. In addition, the expiration, revocation or other termination of any such County license or permit shall have the effect of terminating any Hauler or Hauler Vehicle Permit provided for herein.
- D. A subcontractor providing Collection services on behalf of and under a subcontract with a Hauler with a valid Hauler Permit shall not be required to obtain a separate Hauler Permit; provided, however, that the Hauler agrees and consents to be responsible and liable for said subcontractor in the performance of the subcontractor's services; and further provided, said subcontractor's Collection or transportation vehicles must have valid and separate Hauler Vehicle Permits and meet any applicable requirements set forth in this Chapter and the [Administrative Regulations](#).
- E. Hauler and Hauler Vehicle Permits shall not be required for the Collection or Disposal of Bulky Waste, Construction and Demolition Waste, or earth and rock material from grading or excavation activities; provided, however, all such material shall be conveyed in vehicles, trucks, or receptacles so constructed and maintained that none of the material being transported shall spill upon the public rights-of-way.
- F. Additional Hauler and Hauler Vehicle Permit procedures and requirements may be set forth in the [Administrative Regulations](#).

(History: Ord. CM-3433 §2, 2023; Ord. SW-2927 §26, 2011; SW-2783 §3, 2009; SW-1760, 92; SW-1714, 91)

7.36.112 Hauler Insurance Requirements.

No Hauler or Hauler Vehicle Permit shall be issued unless the Hauler, or when applicable, a subcontractor with a Hauler Vehicle Permit, agrees to maintain insurance coverage of the types and minimum liability as set forth below, and shall furnish to the City a Certificate of Liability Insurance verifying such coverage. The certificate holder on the Certificate of Insurance shall be as follows:

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Such policies shall be maintained in full force and effect during the permit period. No permit shall be issued until and unless the Hauler/subcontractor, in addition to all other requirements, shall file the proper Certificate of Liability Insurance with the City.

1. **Commercial General Liability** insurance on an occurrence basis in amounts no less than \$500,000 bodily injury and property damage per occurrence, including personal and advertising injury; \$1,000,000 general aggregate. Coverage shall include independent contractors and subcontractors.
2. **Automobile Liability** insurance in an amount no less than \$500,000 bodily injury and property damage combined single limit, including all owned (if any), hired and non-owned autos.

Industry Ratings – The City will only accept coverage from an insurance carrier who carries a Best's policyholder rating of A-:VIII or better; or is a company mutually agreed upon by the City and the Hauler/subcontractor.

(History: Ord. SW-2927 §27, 2011)

7.36.115 Required Hauler Services.

In addition to the requirements in the County Solid Waste Regulations, Haulers operating within the City must meet the following minimum levels of service to their customers:

A. Residential Service.

1. Solid Waste.

- a. All Residential Solid Waste properly placed for Collection by the Residential Customer shall be collected at least weekly. Provided, however, Yard Waste and Bulky Waste shall be collected as specified hereafter.
- b. Haulers may provide each Residential Customer with a Solid Waste Container designed and manufactured for curbside Collection. Sample Solid Waste Containers must be submitted to the Administrator for approval prior to distribution. All Solid Waste Containers provided by the Hauler that exceed 24 gallons in capacity shall be equipped with a lid.

2. Recyclables.

- a. All Recyclables properly placed for Collection by the Residential Customer shall be collected at least weekly. This Collection shall, at a minimum, collect all materials specified as Recyclables in the County Solid Waste Regulations and in the Administrative Regulations.
- b. The charge for the Collection of Recyclables shall be included in the Hauler's basic service charge and shall allow for an unlimited amount of curbside recycling.
- c. Haulers must provide each Residential Customer with a Recycling Container designed and manufactured for curbside Collection. Sample Recycling Containers must be submitted to the Administrator for approval prior to

distribution. All Recycling Containers provided by the Hauler that exceed 24 gallons in capacity shall be equipped with a lid.

3. Yard Waste.

- a. All Yard Waste properly placed for Collection by the Residential Customer shall be collected at least weekly for a minimum of 40 weeks per year.
- b. The charge for Yard Waste Collection shall be included in the Hauler's basic service charge. The Hauler shall establish the base collection amount for bags/bundles of Yard Waste included under the basic service charge; and the Hauler may enact a volume base rate structure for Yard Waste Collection above this base collection amount in accordance with the County Solid Waste Regulations.

4. Bulky Waste.

- a. Annual Collection - Haulers shall provide a Bulky Waste Collection to each Residential Customer a minimum of one time per year with the date of such Collection to be scheduled by the Hauler and the Residential Customer. The charge of such Bulky Waste Collection shall be included in the Hauler's basic service charge and not as an optional service.
- b. On Demand Collection - Haulers shall also provide special "on demand" Collection services for Bulky Waste to each Residential Customer. The charge for said services is to be negotiated between the Hauler and the Customer, and the Bulky Waste shall be collected within two working days of the Customer's request.

5. Exemptions.

- a. As an exception to the requirements in subsection A.3., a Hauler shall not be required to provide Yard Waste Collection to Residential Customers associated with a Community Interest Group when: (1) the Community Interest Group has contracted with another Hauler to provide regular Yard Waste Collection for the Community Interest Group; or (2) no Yard Waste Collection is necessary because the Community Interest Group provides all lawn and landscape services for the Community Interest Group.
- b. As an exception to the requirements in subsections A.1. and A.2., a Hauler only providing regular Yard Waste Collection for a Community Interest Group, as contemplated by subsection A.5.a., shall be exempt from any requirement to also provide for the Collection of Solid Waste or Recyclables for the Community Interest Group; provided, however, said Hauler must still obtain any necessary permits required by O.P.M.C. Section [7.36.110](#).

B. Commercial Service.

1. All Commercial Solid Waste properly placed for Collection shall be collected as often as necessary to prevent health and nuisance conditions, but at least once every six months.
2. Haulers must close Commercial Solid Waste Container lids following the Collection.
3. Haulers must maintain Commercial Solid Waste Containers which may contain putrescible waste in a manner as to be leak proof and to be bird and rodent resistant.

Additional minimum service requirements may be set forth in the [Administrative Regulations](#).

(History: Ord. SW-3350 §4, 2021; Ord. SW-2927 §28, 2011; SW-2783 §4, 2009)

7.36.170 Storage of Solid Waste and Recyclables.

- A. The Owner or occupant of every Dwelling Unit and of every institutional, commercial, business, industrial or other non-residential establishment producing Solid Waste or Recyclables within the City shall provide sufficient and adequate containers for the Storage of such Solid Waste or Recyclables in adequate number to serve each such Dwelling Unit or establishment.
- B. All Solid Waste and Recyclables shall be stored in a manner that:
 - 1. Meets the requirements of 7.36.180 below;
 - 2. Does not attract birds; or rats, flies, mosquitoes or other disease vectors;
 - 3. Does not provide shelter or a breeding place for disease vectors;
 - 4. Does not create a fire, health or safety hazard;
 - 5. Is not unsightly;
 - 6. Does not cause an offensive odor off-site;
 - 7. Does not infiltrate or pollute any natural streamway or enclosed stormwater system; and
 - 8. Does not violate any other provision of this Chapter, the Code, the [Administrative Regulations](#) or the County Solid Waste Regulations.
- C. All Solid Waste and Recyclables shall be removed from properties as often as necessary to prevent health and nuisance conditions. Residential Solid Waste and Recyclables other than composting Yard Waste and Bulky Waste must be removed at least once a week.

(History: Ord. SW-3350 §5, 2021; Ord. SW-2927 §29, 2011; SW-2783 §5, 2009; SW-1760, 92; SW-1714, 91)

7.36.180 Solid Waste and Recycling Containers.

- A. The Owner or occupant of every Dwelling Unit and of every institutional, commercial, industrial, business or other non-residential establishment, from which Solid Waste or Recycling Collection is made under this Chapter, shall place all Solid Waste or Recyclables in proper Solid Waste or Recycling Containers that have been designed and manufactured specifically for the Storage and Collection of Solid Waste or Recyclables, except as otherwise provided herein, and shall maintain such Solid Waste or Recycling Containers and the area surrounding them in a clean, neat, and sanitary condition at all times
- B. Residential Solid Waste and Recycling Containers shall be leak proof and rain proof. Said containers, when stored outside, shall be closed at all times except when depositing Solid Waste or Recyclables therein or removing the contents thereof. Containers not intended to be disposed of shall have tapered sides for ease of emptying. Containers shall be of a light weight and sturdy construction and shall not exceed 96 gallons in capacity. The Hauler may determine the combined weight of any Solid Waste Container and Solid Waste that is permissible for all Residential Customers served by that Hauler.
- C. No Owner or occupant of any Dwelling Unit with individual Solid Waste and recycling service shall place any Solid Waste (including bundles of Yard Waste), Recyclables or Solid Waste or

Recycling Containers in the public right-of-way more than 24 hours in advance of the scheduled Collection.

- D. Other than when placed for Collection during the allowable Collection time period, all Solid Waste Containers and Recycling Containers for residential Dwelling Units (whether or not containing Solid Waste or Recyclables) shall be: (i) stored inside of a garage; or (ii) screened from view any public right-of-way or adjoining property and located behind the existing building line. Provided, however, an Approved Solid Waste Container and/or an Approved Recycling Container may alternatively be stored adjacent to the front, side or rear of the residence (within 2' thereof) without any required screening.
- E. Commercial Solid Waste and Recyclables shall be stored in containers that are rain proof and leak proof. Said containers shall be closed at all times except when depositing Solid Waste or Recyclables therein or removing the contents thereof; and shall meet all requirements as set forth in this Chapter, the Code, the [Administrative Regulations](#) or the County Solid Waste Regulations. Construction and Demolition Wastes and other Bulky Waste may be stored in a non-covered container, provided the wastes are: non-putrescible, and not subject to being blown out of the container by wind. Storage sites for Commercial Solid Waste and Recyclables shall be well-drained, and maintained in a clean and sanitary condition.
- F. Non-conforming or unserviceable containers will be considered to have been placed for Collection and Disposal.
- G. All Solid Waste and Recyclables collected pursuant to this Chapter shall, upon being loaded into a Hauler's Collection or transportation vehicle, become the property of the Hauler.

(History: Ord. SW-3350 §6, 2021; Ord. SW-2927 §30, 2011; SW-2783 §6, 2009; SW-1760, 92; SW-1714, 91)

7.36.190 Prohibited Acts.

No Person shall:

- A. Deposit Solid Waste or Recyclables in any Solid Waste or Recycling Container other than that owned by them or under their control without the consent of the Owner or party responsible for such container.
- B. Tamper with, damage, and scavenge or remove a Solid Waste or Recycling Container or any contents thereof, or any Recyclables in proximity to a Recycling Container.
- C. Intentionally place in any Recycling Container anything other than the appropriate Recyclables.
- D. Interfere in any manner with Solid Waste or recycling Collection equipment or with Haulers in the lawful performance of their duties.
- E. Dispose of Solid Waste or Recyclables at a facility which is not licensed and approved by the appropriate regulatory authority.
- F. Store or place any Solid Waste or Solid Waste or Recycling Containers in or on any curb, gutter, drainage area, sidewalk or paved portion of the street at any time for any purpose.
- G. Burn, or cause or permit the Open Burning of vegetation, leaves, wastes, or other combustible materials, except as specifically permitted by Section F-301.0 of the City's adopted edition of the International Fire Code.

H. Improperly dispose of any Solid Waste or Recyclables by open dumping or in any manner prohibited by or not in compliance this Chapter, the Code, the [Administrative Regulations](#) or the County Solid Waste Regulations.

(History: Ord. SW-2927 §31, 2011; SW-2783 §7, 2009; SW-2465 §1, 2004; ROCR-2245 §12, 2001; SW-1760, 92; SW-1726 §1,92; SW-1714, 91)

7.36.200 Additional Exceptions.

- A. The burning of wood, paper or other materials commonly used in a residential fireplace shall be permitted in an enclosed fireplace located entirely within a Dwelling Unit meeting all applicable building and fire code regulations.
- B. The burning of debris resulting from a declared disaster or emergency is allowed by City personnel or their designees on City-owned public property when authorized by the Governing Body.
- C. The setting of fires for purposes related to the training of government or industrial personnel in fire fighting procedures when such activity is approved by the Fire Department.

(History: Ord. SW-2927 §32, 2011; SW-1760, 92; SW-1714, 91)

7.36.210 Severability.

If any section, subsection, subdivision, paragraph, sentence, clause, or phrase in this Chapter or any part thereof, is for any reason held to be unconstitutional or invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portion of this Chapter or any part thereof.

(History: Ord. SW-2927 §33, 2011; SW-1760, 92; SW-1714, 91)

7.36.220 Penalty.

- A. Any Person convicted of violating any of the provisions of this Chapter or the [Administrative Regulations](#) shall be deemed guilty of a public offense and subject to the general penalty provisions of O.P.M.C. Section [1.12.010](#).
- B. Any Hauler Permit issued by the City may be suspended, modified or revoked by the Administrator if the Person holding that permit, or their agent or employee, is convicted of, or enters into a diversion agreement concerning, any of the provisions of this Chapter or concerning any of the provisions of the County Solid Waste Regulations. Any affected Person is entitled to a hearing on that matter before the Administrator prior to said suspension, modification or revocation. The procedure for such hearing shall generally follow that set forth in O.P.M.C. Section 8.10.050.

(History: Ord. SW-3431 §1, 2023; Ord. SW-2927 §34, 2011; SW-2783 §8, 2009; SW-1760, 92; SW-1714, 91)

TITLE 7 - HEALTH AND SANITATION

7.54 EXCAVATION, GRADING & DRAINAGE

Contents:

- 7.54.010 Purpose.
- 7.54.020 Scope.
- 7.54.025 Administration.
- 7.54.040 Hazards.
- 7.54.120 Cuts - General.
- 7.54.130 Cut Slope.
- 7.54.140 Fills - General.
- 7.54.150 Preparation of Ground.
- 7.54.160 Fill Material.
- 7.54.170 Compaction.
- 7.54.180 Fill Slope.
- 7.54.190 Setbacks - General.
- 7.54.200 Top of Cut Slope.
- 7.54.210 Toe of Fill Slope.
- 7.54.220 Modification of Slope Location.
- 7.54.230 Drainage - General.
- 7.54.240 Subsurface Drainage.
- 7.54.250 Surface Drainage.

7.54.010 Purpose.

This ordinance is enacted for the purpose of protecting the general health, safety, and welfare of the residents of the City from the hazards and danger of flooding and inadequate or improper drainage.

(History: Ord. EGD-2423 §1, 2003; EGD-1848 §1, 94; BC-1755 §2, 92; BC-1666 §1, 91)

7.54.020 Scope.

The provisions of this ordinance shall apply to excavating, grading, regrading, filling, landfilling, berming, embanking, or diking land within the City.

(History: Ord. ROCR-2245 §13, 2001; EGD-1848 §2, 94; BC-1755 §3, 92; BC-1666 §1, 91)

7.54.025 Administration.

This Section of the Code shall be administered by the Director of Planning and Development Services or the Director's designee, hereinafter known as the "Director."

(History: Ord. EGD-2423 §2, 2003)

7.54.040 Hazards.

Whenever the Director determines that any existing excavation, embankment, or fill on private property has become a nuisance, hazard to life and limb, endangers property, or adversely affects the safety, use, or stability of a public way or drainage channel, the owner of the property upon which the excavation or fill is located, or other person or agent in control of said property, upon receipt of notice in writing from the Director, shall within the period specified therein repair or eliminate such excavation or embankment so as to eliminate the hazard and be in conformance with the requirements of this code. The Director may require plans and the issuance of a permit to verify compliance with the ordinance.

(History: Ord. EGD-2423 §3, 2003; EGD-1848 §4, 94; BC-1755 §5, 92; BC-1666 §1, 91)

7.54.120 Cuts - General.

Unless otherwise recommended in an approved soils engineering report, cuts shall conform to the provisions of this section.

In the absence of an approved soils engineering report, these provisions may be waived for minor cuts not intended to support structures.

(History: Ord. EGD-2423 §4, 2003; EGD-1848 §10, 94; BC-1755 §14, 92; BC-1666 §1, 91)

7.54.130 Cut Slope.

The slope of cut surfaces shall be no steeper than is safe for the intended use and shall be no steeper than 3 horizontal to 1 vertical unless the owner furnishes a soils engineering report stating that the site has been investigated and giving an opinion that a cut at a steeper slope will be stable and not create a hazard to public or private property.

(History: Ord. EGD-1848 §11, 94; BC-1755 §15, 92; BC-1666 §1, 91)

7.54.140 Fills - General.

Unless otherwise recommended in an approved soils engineering report, fills shall conform to the provisions of this section.

In the absence of an approved soils engineering report, these provisions may be waived for minor fills not intended to support structures.

Fill on platted lots or within 500 feet of a public street or platted subdivision shall be graded to a uniform finish grade within 30 days after placement.

(History: Ord. EGD-2423 §5, 2003; EGD-1848 §12, 94; BC-1755 §17, 92; BC-1666 §1, 91)

7.54.150 Preparation of Ground.

The ground surface shall be prepared to receive fill by removing vegetation, noncomplying fill, topsoil, and other unsuitable materials scarifying to provide a bond with the new fill.

(History: Ord. EGD-1848 §13, 94; BC-1755 §19, 92; BC-1666 §1, 91)

7.54.160 Fill Material.

Detrimental amounts of organic material shall not be permitted in fills. Except as permitted by the Director, no rock or similar material which will not naturally decompose, with a maximum dimension greater than 12 inches shall be buried or placed in fills.

Exception. The Director may permit placement of larger rock when the registered design professional properly devises a method of placement, continuously inspects its placement, and approves the fill stability. The following conditions shall also apply:

- A. Prior to issuance of the land disturbance permit, potential rock disposal areas shall be delineated on the grading plan.
- B. Rock sizes greater than 12 inches in maximum dimension shall be 10 feet or more below grade, measured vertically.
- C. Rocks shall be placed so as to assure filling of all voids with fines.

(History: Ord. EGD-2423 §6, 2003; EGD-1848 §14, 94; BC-1755 §20, 92; BC-1666 §1, 91)

7.54.170 Compaction.

All fills shall be compacted to a minimum of 90 percent of maximum density as determined by the latest edition of ASTM D1557, D1556, D2167, or D2937.

(History: Ord. EGD-1848 §15, 94; BC-1755 §21, 92; BC-1666 §1, 91)

7.54.180 Fill Slope.

Fill slopes shall be no steeper than 3 horizontal to 1 vertical.

(History: Ord. EGD-1848 §16, 94; BC-1755 §22, 92; BC-1666 §1, 91)

7.54.190 Setbacks - General.

Cut and fill slopes shall be set back from site boundaries in accordance with this section. Setback dimensions shall be horizontal distances measured perpendicular to the site boundary.

(History: Ord. EGD-1848 §17, 94; BC-1755 §23, 92; BC-1666 §1, 91)

7.54.200 Top of Cut Slope.

The top of cut slopes shall be made not nearer to a site boundary line than one-fifth of the vertical height of cut with a minimum of 2 feet and a maximum of 10 feet.

(History: Ord. EGD-2423 §7, 2003; EGD-1848 §18, 94; BC-1755 §24, 92; BC-1666 §1, 91)

7.54.210 Toe of Fill Slope.

When fill height exceeds 24 inches in overall height, the toe of slope shall be made not nearer to the site boundary line than 1 foot. In any circumstance, fill shall not be placed in a manner that creates a nuisance, or in a manner that creates a surface flooding hazard for a habitable structure. Where a fill slope is to be located near the site boundary and the adjacent off-site property is developed, special precautions shall be incorporated in the plans and work to protect the adjoining property from damage as a result of such grading. These precautions may include but are not limited to:

- A. Additional setbacks.
- B. Provision for retaining or slough walls.
- C. Mechanical or chemical treatment of the fill slope surface to minimize erosion.
- D. Provisions for the control of surface waters.

(History: Ord. EGD-2948 §2, 2012; EGD-1848 §19, 94; BC-1755 §25, 92; BC-1666 §1, 91)

7.54.220 Modification of Slope Location.

The Director may approve alternate setbacks. The Director may require an investigation and recommendation by a registered design professional to demonstrate that the intent of this section has been satisfied.

(History: Ord. EGD-2423 §8, 2003; EGD-1848 §20, 94; BC-1755 §26, 92; BC-1666 §1, 91)

7.54.230 Drainage - General.

Unless otherwise indicated on the approved grading plan, drainage facilities shall conform to the provisions of this section.

(History: Ord. EGD-1848 §21, 94; BC-1755 §27, 92; BC-1666 §1, 91)

7.54.240 Subsurface Drainage.

Cut and fill slopes shall be provided with subsurface drainage as necessary for stability.

(History: Ord. EGD-1848 §22, 94; BC-1755 §28, 92; BC-1666 §1, 91)

7.54.250 Surface Drainage.

All drainage facilities shall be designed to carry waters to the nearest drainageway approved by the Director as a safe place to deposit such waters. Storm sewer plans, drainage plans for commercial developments, subdivision grading plans showing intended drainage requirements for all lots, and drainage of lots adjacent to engineered swales or floodplains shall be approved by the Director. Prior to issuance of a Certificate of Occupancy for new buildings or additions, all drainage and grading shall be in compliance with this Chapter, with the subdivision grading plan, and the site grading plan approved as part of the permit. Erosion of ground in the area of discharge shall be prevented by installation of erosive control devices.

Obstructions shall not be created or installed within drainageways and engineered swales which will create ponding on adjacent property, divert water onto the adjoining property, or impede drainage. Fences may be erected in such areas provided they do not unnecessarily restrict the flow of water.

Water from intermittent sources such as discharges from sump pumps, foundation drains, swimming pools, swimming pool backwashes, or other similar sources excluding lawn sprinklers shall not be discharged to the surface closer than five feet to the public right-of-way or in a manner that creates a nuisance, or in a manner that creates a surface flooding hazard for a habitable structure. Water from intermittent sources including lawn sprinklers shall not prohibit mowing of grass or growth of vegetation on adjacent property, create a hazardous condition, or cause damage to adjacent structures or substantial interference with the use or maintenance of adjacent property provided the adjacent property is graded in accordance with this Section. Where such conditions exist and the City has given written notice of the violation, the owner of the property shall take appropriate measures to eliminate the problems caused on the adjacent property.

The area surrounding the building foundation shall have a drainage gradient as provided for in O.P.M.C. Chapters [16.100](#) or [16.110](#) with a draining gradient thereafter of not less than 2.5 percent toward approved drainage facilities unless waived by the Director.

(History: Ord. EGD-2948 §3, 2012; EGD-2666 §1, 2008; EGD-2423 §9, 2003; ROCR-2245 §17, 2001; EGD-1848 §23, 94; BC-1810 §1, 93; BC-1755 §29, 92; BC-1666 §1, 91)

TITLE 7 - HEALTH AND SANITATION

7.58 STORMWATER POLLUTION TO STORM SEWERS AND SURFACE WATERS

Contents:

7.58.010 Title.

7.58.020 Purpose and Findings.

7.58.030 Definitions.

7.58.040 General Prohibition.

7.58.050 Specific Prohibitions and Duties.

7.58.060 Inspection and Detection Program.

7.58.070 Release Reporting and Cleanup.

7.58.080 Enforcement; Designation of Officer; Abatement; Right of Entry; Penalty.

7.58.090 Severability.

7.58.010 Title.

The title of Overland Park Municipal Code Sections 7.58.010 through [7.58.090](#), inclusive, shall be known as the Stormwater Pollution to Storm Sewers and Surface Waters Act (SWPSSSW Act).

(History: Ord. SWP-2562 §1, 2006)

7.58.020 Purpose and Findings.

- A. The purpose of this Act shall be to prevent the discharge of pollutants from land and activities within the City into the municipal separate storm sewer system (MS4) and/or into surface waters.
- B. The Governing Body of the City hereby finds that pollutants are discharged into surface waters, both through inappropriate non-stormwater discharges into the MS4 or the surface waters directly, and through the wash off and transport of pollutants found on the land and built surfaces by stormwater during rainfall events.
- C. Further, the Governing Body of the City hereby finds that such discharge of pollutants may lead to increased risks of disease and harm to individuals who come into contact with the water; may degrade the quality of such water for human uses, such as drinking, irrigation, recreation, and industry; and may damage the natural ecosystems of rivers, streams, lakes and wetlands, leading to a decline in the diversity and abundance of plants and animals.
- D. Further, the Governing Body of the City hereby finds that such discharges are inconsistent with the provisions and goals of the Clean Water Act, the National Pollutant Discharge

Elimination System (NPDES), and other federal and state requirements for water quality and environmental preservation.

- E. Further, the Governing Body of the City hereby finds that a reasonable establishment of restrictions and regulations on activities within the City is necessary to eliminate or minimize such discharges of pollutants, to protect the health and safety of citizens, to preserve economic and ecological value of existing water resources within the City and within downstream communities, and to comply with the provisions of the City's responsibilities under the Clean Water Act and the NPDES program.

(History: Ord. SWP-2562 §1, 2006)

7.58.030 Definitions.

For the purposes of this Act, the following definitions shall apply:

- A. **Best management practices (BMPs)** means physical facilities, schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of surface waters or the City's MS4.
- B. **Car** means any vehicle meeting the definition for passenger car, passenger van, pickup truck, motorcycle, recreational vehicle, or motor home given in Chapter 7.22 of the Code.
- C. **City** means the City of Overland Park, Kansas.
- D. **Code** means the City of Overland Park Municipal Code.
- E. **Director** means the Director of Planning and Development Services Department or the Director's authorized representative.
- F. **Discharge** means the addition, release or introduction, directly or indirectly, of any pollutant, water, or other substance into the MS4 or surface waters.
- G. **Domestic sewage** means human excrement, gray water (from home clothes washing, bathing, showers, dishwashing, and food preparation), other wastewater from household drains, and waterborne waste normally discharged from the sanitary conveniences of dwellings (including apartment houses and hotels), office buildings, retail and commercial establishments, factories, and institutions, that is free from industrial waste.
- H. **Extremely hazardous substance** means any substance listed in the appendices to 40 CFR Part 355, Emergency Planning and Notification.
- I. **Fertilizer** means a substance or compound that contains an essential plant nutrient element in a form available to plants and is used primarily for its essential plant nutrient element content in promoting or stimulating growth of a plant or improving the quality of a crop, or a mixture of two or more fertilizers.
- J. **Hazardous household waste (HHW)** means any material generated in a household (including single and multiple residences) by a consumer which, except for the exclusion provided in 40 CFR Section 261.4(b)(1), would be classified as a hazardous waste under 40 CFR Part 261.
- K. **Hazardous substance** means any substance listed in Table 302.4 of 40 CFR Part 302.
- L. **Hazardous waste** means any substance identified or listed as a hazardous waste by the EPA pursuant to 40 CFR Part 261.

- M. **Industrial waste** means any waterborne liquid or solid substance that results from any process of industry, manufacturing, mining, production, trade, or business.
- N. **Municipal separate storm sewer system (MS4)** means the system of conveyances, (including roads with drainage systems, municipal streets, catch basins, curbs, gutters, ditches, man-made channels, or storm drains) owned and operated by the City and designed or used for collecting or conveying stormwater, and which is not used for collecting or conveying sewage.
- O. **NPDES permit** means for the purpose of this chapter, a permit issued by United States Environmental Protection Agency (EPA) or the state of Kansas that authorizes the discharge of pollutants to waters of the United States, whether the permit is applicable on an individual, group, or general area-wide basis.
- P. **Person** means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns, including all federal, state, and local governmental entities.
- Q. **Pesticide** means a substance or mixture of substances intended to prevent, destroy, repel, or migrate any pest, or substances intended for use as a plant regulator, defoliant, or desiccant, including all herbicides, fungicides, and insecticides.
- R. **Pollutant** means any substance or material which contaminates or adversely alters the physical, chemical or biological properties of water, including changes in temperatures, taste, odor, turbidity, or color; where such substance may include but is not limited to, dredged soil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical waste, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, soil, yard waste, hazardous household wastes, used motor oil, anti-freeze, litter, and industrial, municipal, and agricultural waste discharged into water.
- S. **Property Owner** shall mean the named property owner as indicated by the records of the Register of Deeds of Johnson County, Kansas.
- T. **Release** means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, introducing, or disposing into the MS4 and/or surface waters.
- U. **Sanitary sewer** means the system of pipes, conduits, and other conveyances which carry industrial waste and domestic sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, to a sewage treatment plant and to which stormwater, surface water, and groundwater are not intentionally admitted.
- V. **Septic tank waste** means any domestic sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.
- W. **Sewage** means the domestic sewage and/or industrial waste that is discharged into the sanitary sewer system and passes through the sanitary sewer system to a sewage treatment plant for treatment.
- X. **Solid Waste** means any garbage, rubbish, refuse, sludge from a waste treatment plant, water supply treatment plant, or air pollution control facility, and other discarded material, including solid, liquid, semi-solid, or contained gaseous material, resulting from industrial,

municipal, commercial, mining, agricultural operations and community and institutional activities.

Y. **State** means the state of Kansas.

Z. **Stormwater** means stormwater runoff, snow melt runoff, and surface runoff and drainage.

AA. **Surface waters** means any body of water designated as "surface waters" by the state of Kansas, including streams, rivers, creeks, brooks, sloughs, draws, arroyos, canals, springs, seeps, cavern streams, alluvial aquifers associated with these surface waters, lakes, man-made reservoirs, oxbow lakes, ponds, and wetlands, as well as any other body of water designated by the federal government as a "water of the United States."

BB. **Water quality standard** means the designation of a body or segment of surface water in the state for desirable uses and the narrative and numerical criteria deemed by the state to be necessary to protect those uses.

(History: Ord. SWP-2562 §1, 2006)

7.58.040 General Prohibition.

A. No person shall release or cause to be released into the municipal separate storm sewer system (MS4), or into any surface water within the City, any discharge that is not composed entirely of stormwater that is free of pollutants, except as allowed in subsection B.

B. The following non-stormwater discharges are deemed acceptable and not a violation of this section:

1. Discharges authorized by, and in full compliance with, an NPDES permit;
2. Discharges or flows resulting from fire fighting activities;
3. Water line flushing;
4. Lawn watering, landscape irrigation, or other irrigation water;
5. Diverted stream flow;
6. Uncontaminated pumped groundwater or rising groundwater;
7. Uncontaminated groundwater infiltration;
8. Uncontaminated discharge or flow from a foundation drain, crawl space pump, footing drain, or sump pump;
9. A discharge or flow from a potable water source;
10. Air conditioning condensate;
11. Individual residential car washing;
12. A discharge or flow from a riparian habitat, wetland or natural spring;
13. Street wash waters (excluding street sweepings which have been removed from the street);
14. Dechlorinated swimming pool discharges excluding filter backwash;
15. Heat pump discharge waters (residential only).

C. Notwithstanding the provisions of subsection B of this section, any discharge shall be prohibited by this section if the discharge in question has been determined by the Director to be a source of a pollutants to the MS4 or to surface waters, written notice of such

determination has been provided to the property owner or person responsible for such discharges, and the discharge has occurred more than ten days beyond such notice.

(History: Ord. SWP-2562 §1, 2006)

7.58.050 Specific Prohibitions and Duties.

The specific prohibitions and requirements in this section are not inclusive of all the discharges prohibited by the general prohibition in Section **7.58.040**, but are provided to address specific discharges that are frequently found or are known to occur:

- A. No person shall release or allow to be released any of the following substances into the MS4:
1. Any new or used motor oil, lubricants, fuel, hydraulic fluids, antifreeze or any other petroleum product or waste;
 2. Any industrial waste;
 3. Any hazardous waste, including household hazardous waste;
 4. Any domestic sewage or septic tank waste, grease trap waste, or grit trap waste;
 5. Any garbage, rubbish, solid waste or other wastes;
 6. Any new or used paints, including latex-based paints, oil-based paints, stains, varnish, and primers, as well as cleaning solvents and other associated products;
 7. Any yard wastes which have been moved or gathered by a person;
 8. Any wastewater that contains soap, detergent, degreaser, solvent, or surfactant based cleaner from a commercial motor vehicle wash facility; from any vehicle washing, cleaning, or maintenance at any new or used motor vehicle dealership, rental agency, body shop, repair shop, or maintenance facility; or from any washing, cleaning, or maintenance of any business or commercial or public service vehicle, including a truck, bus or heavy equipment;
 9. Any wastewater from a commercial mobile power washer or from the washing or other cleaning of a building exterior that contains soap, detergent, degreaser, solvent, or any surfactant based cleaner;
 10. Any wastewater from commercial floor, rug, or carpet cleaning;
 11. Any wastewater from the wash down or other cleaning of pavement that contains any soap, detergent solvent, degreaser, emulsifier, dispersant, or other cleaning substance; or any wastewater from the wash-down or other cleaning of any pavement where any spill, leak, or other release of oil, motor fuel, or other petroleum or hazardous substance has occurred, unless all such materials have been previously removed;
 12. Any effluent from a cooling tower, condenser, compressor, emissions scrubber, emission filter, or the blow down from a boiler;
 13. Any ready-mixed concrete, mortar, ceramic, or asphalt base material or discharge resulting from the cleaning of vehicles or equipment containing or used in transporting or applying such material;
 14. Any runoff, wash down water or waste from any animal pen, kennel, fowl or livestock containment area or any pet or animal wastes generally;
 15. Any filter backwash from a swimming pool or fountain, except that nothing in this ordinance shall be construed as to require the alteration of the filter discharge plumbing

- of an existing swimming pool, fountain or spa if such plumbing was compliant with applicable state, federal, and local regulations at the time of construction;
16. Any swimming pool, fountain or spa water containing a readily detectable level of chlorine, muriatic acid or other chemicals used in the treatment or disinfection of the water or during the cleaning of the facility;
 17. Any discharge from water line disinfection by super chlorination if it contains a harmful level of chlorine at the point of entry into the MS4 or surface waters;
 18. Any contaminated runoff from a vehicle wrecking yard;
 19. Any substance or material that will damage, block, or clog the MS4;
 20. Any release from a petroleum storage tank (PST), or any leachate or runoff from soil contaminated by leaking PST; or any discharge of pumped, confined, or treated wastewater from the remediation of any such PST release, unless the discharge has received an NPDES permit from the state;
 21. Any other discharge that causes or contributes to causing the City to violate a state water quality standard, the City's NPDES stormwater permit, or any state-issued discharge permit for discharges from its MS4.
- B. No person shall introduce or cause to be introduced into the MS4 any sediment, silt, earth, soil, or other material associated with clearing, grading, excavation or other construction activities in excess of what could be retained on site or captured by employing sediment and erosion control measures, except as allowed for in conformance with Section 16.200 of the Code.
- C. No person shall connect a line conveying sanitary sewage, domestic or industrial, to the MS4. No property owner shall allow such a connection to continue in use on their property.
- D. No person shall use pesticides or fertilizers except in accordance with manufacturer recommendations. Pesticides and fertilizers shall be stored in a manner to prevent release to the MS4.
- E. No person shall tamper with, destroy, vandalize, or render inoperable any BMPs which have been installed for the purpose of eliminating or minimizing pollutant discharges, nor shall any person fail to install or fail to properly maintain any BMPs which have been required by the City or by other local, state, or federal jurisdictions.

(History: Ord. SWP-2562 §1, 2006)

7.58.060 Inspection and Detection Program.

The Director is authorized to develop and implement a plan to actively detect and eliminate prohibited discharges and connections to the MS4 or surface waters within the City. Such plan may include, but is not limited to, periodic and random inspections of facilities and businesses, particularly those most associated with potentially prohibited discharges; visual surveys of exterior practices; inspection, sampling and analyses of discharges from outfalls of the MS4, particularly during dry weather periods; manhole and pipe inspections to trace discharges through the system to point of origin; education on pollution prevention; and receipt of complaints and information from the public regarding known or suspected discharges.

(History: Ord. SWP-2562 §1, 2006)

7.58.070 Release Reporting and Cleanup.

- A. Any person responsible for the release of any prohibited material that may flow, leach, enter, or otherwise be introduced into the MS4 or surface waters shall take all necessary steps to ensure the containment and cleanup of such release.
- B. In the event of such a release of hazardous materials said person shall immediately notify emergency response agencies of the occurrence via emergency dispatch services.
- C. In the event of a release of non-hazardous materials, said person shall notify the Director in person or by phone or facsimile no later than the next business day. Notifications in person or by phone shall be confirmed by written notice addressed and mailed to the Director within three business days of the phone notice.

(History: Ord. SWP-2562 §1, 2006)

7.58.080 Enforcement; Designation of Officer; Abatement; Right of Entry; Penalty.

The Director or his or her appointed representative shall be designated as the public officer charged with the administration and enforcement of this Act. The public officer shall authorize the investigation of violations of the Act. If it is determined that a violation of this Act exists, then the officer shall declare such condition a nuisance and is authorized to pursue abatement and enforcement procedures as specified in Chapter 7.04 of the Code.

(History: Ord. SWP-2562 §1, 2006)

7.58.090 Severability.

If any section, subsection, paragraph, sentence, clause or phrase in this Ordinance or any part thereof is held to be unconstitutional, invalid or ineffective by any court of competent jurisdiction, such decision shall not affect the validity or effectiveness of the remaining portions of this ordinance.

(History: Ord. SWP-2562 §1, 2006)

TITLE 8 - HUMAN RIGHTS

8.10 CIVIL RIGHTS

Contents:

- 8.10.010 Declaration of Policy**
- 8.10.020 Definitions**
- 8.10.030 Unlawful Discriminatory Practices**
- 8.10.040 Interpretation**
- 8.10.050 Enforcement**
- 8.10.060 Severability**

8.10.010 Declaration of Policy

A. Rights Recognized - The right of an individual to be free from discrimination because of that individual's race, color, religion, national origin, sex, Sexual Orientation, Gender Identity, age, disability, genetic information, marital status, familial status, or military status is hereby recognized. This right shall include, but not be limited to, any of the following:

1. The right to pursue and hold employment and the benefits associated therewith without unlawful discrimination.
2. The right to the full enjoyment of any of the services, advantages or privileges of any Place of Public Accommodation without unlawful discrimination.
3. The right to engage in property transactions, including obtaining housing for Rent or purchase, without unlawful discrimination.
4. The right to exercise any right granted under this Chapter without retaliation.

B. Protection - To protect these rights, it is hereby declared to be the purpose of this Chapter to prohibit discrimination and retaliation based upon Sexual Orientation and Gender Identity and to provide a local process for the acceptance, investigation and resolution of complaints of discrimination and retaliation relating to Sexual Orientation and Gender Identity arising hereunder. If discrimination and retaliation relating to Sexual Orientation and/or Gender Identity is prohibited by federal or state law(s), and such law(s) provide procedures for addressing complaints of such discrimination and retaliation, nothing shall prevent the City from referring an Aggrieved Individual to the appropriate federal or state procedure and/or federal or state agency.

(History: Ord. HRC-3266 § 1, 2019)

8.10.020 Definitions

The definitions contained within the Kansas Act Against Discrimination, K.S.A. 44-1001 *et seq.*, and amendments thereto, and Overland Park Municipal Code Section 1.04.010, and amendments thereto, shall apply to this Chapter unless a term is specifically defined herein. For purposes of this Chapter, certain terms shall be interpreted or defined as follows unless the context clearly indicates otherwise:

Aggrieved Individual means any individual who has a good faith belief that such individual has been injured by an Unlawful Discriminatory Practice as set forth herein.

Days means calendar days. If a deadline falls on a day City Hall is not open (e.g. a weekend, a holiday recognized by the City, emergency closure) the deadline will be extended to the next day City Hall is open.

Employee means any individual who is employed by an Employer and receives a salary or wages from such Employer, but does not include any individual employed by such individual's parents, spouse or child or in the domestic service of any individual. The term Employee does not include an independent contractor.

Employer means: (1) any individual or entity (e.g. corporation, partnership, limited liability company, association, labor organization, mutual company, joint-stock company, trust, unincorporated organization) doing business within the City of Overland Park who has one or more Employees for each working day in each of 20 or more calendar weeks in the current or preceding calendar year, (2) the City, and (3) any City contractor. For purposes of this Chapter, the term does not include: (1) The United States or any department or agency thereof, a corporation wholly owned by the government of the United States, or an Indian tribe; or (2) a Nonprofit Fraternal or Social Association/Corporation.

Gender Identity means an individual's actual or perceived (by the individual or another) gender-related identity, expression, appearance, or mannerisms, or other gender-related characteristics regardless of the individual's designated sex at birth.

Hearing Officer means a Municipal Court Judge of the City.

Investigator means one or more individual(s) designated by the City Manager.

Nonprofit Fraternal or Social Association/Corporation means an association or corporation that meets all of the following requirements: (1) it is organized in good faith for social or fraternal purposes; (2) membership entails the payment of bona fide initiation fees or regular dues; (3) there exists a regularly established means of self-government by the members thereof clearly set forth in a constitution or by-laws adopted by the membership; (4) membership is limited and there is a regularly established means of and criteria for admitting members and for expulsion of members by the existing membership or by their duly elected or appointed delegates; and (5) it is not operated, directly or indirectly for purposes of profit for any individual or groups of individuals other than the membership as a whole. To the extent not otherwise included, the term also includes any bona fide membership club that is exempt from taxation under Title 26, Section 501(c) of the United States Code. The term does not include a labor organization.

Place of Public Accommodation shall include every establishment within the city that is open to the general public and offers any product, service or facility. The term Place of Public Accommodation shall include, but not be limited to, all taverns, hotels, motels, apartment hotels, apartment houses with one or more tenant units, restaurants or any place where food or beverages are sold, retail and wholesale establishments, theaters, motion picture houses, museums, bowling alleys, golf courses and all public conveyances, as well as the stations or terminals thereof. The term Place of Public Accommodation shall not include any establishment operated by a Nonprofit Fraternal or Social Association/Corporation, or bona fide civic, political or religious organization, which restricts its products, facilities and services to the members of such association/corporation or organization, their guests, or individuals who promote the principles for which the association/corporation or organization is established or maintained.

Religious Organization means a church, mosque, temple, synagogue, nondenominational ministry, interdenominational and ecumenical organization, mission organization, faith-based charity, faith-based social agency, faith-based educational institution, or other entity principally devoted to religious practice, teaching or education.

Rent means to lease, to sublease, to let or otherwise to grant the right to occupy premises not owned by the occupant in exchange for payment or other consideration.

Rental Housing means any real property, consisting of one or more dwelling units, which is required to obtain a license or permit or is otherwise addressed in Chapter 5.75 of this Code.

Respondent means the individual or entity against whom a complaint alleging discrimination or retaliation has been filed with the City.

Sexual Orientation means an individual's actual or perceived (by the individual or another) emotional, romantic, or sexual attraction to other people, such as heterosexual, homosexual, bisexual, pansexual or asexual.

Unlawful Discriminatory Practices means those practices prohibited by Section 8.10.030 of this Chapter.

(History: Ord. HRC-3266 § 2, 2019)

8.10.030 Unlawful Discriminatory Practices

In order to protect specific individuals within the city from discrimination on the basis of their Sexual Orientation or Gender Identity, it shall be a duty of each individual or entity doing business within the city to not commit the following Unlawful Discriminatory Practices:

- A. Employment - It shall be an Unlawful Discriminatory Practice for an Employer to refuse to hire or employ, or to discharge from employment or to otherwise discriminate against an otherwise qualified Employee in compensation or in terms, conditions or privileges of employment, because of the Employee's Sexual Orientation or Gender Identity. This Chapter shall not apply to a Religious Organization with respect to the employment of individuals performing work connected with the carrying on of the organization's religious

teaching, ministry, religious duties or practices, advancement of religion, or other religious activities.

B. Housing - It shall be an Unlawful Discriminatory Practice for an individual or entity to discriminate against any individual in the terms, conditions, or privileges of the sale or Rent of real property within the city including Rental Housing, or in the provision of services or facilities in connection therewith, because of an individual's Sexual Orientation or Gender Identity, or to discriminate against any individual in such individual's use or occupancy of Rental Housing within the city because of the Sexual Orientation or Gender Identity of individuals with whom such individual associates. This provision shall not apply to the Rent of real property containing dwelling units occupied or intended to be occupied by no more than four persons or families living independently of each other, if the owner actually maintains and occupies one of such dwelling units as the owner's residence. Additionally, nothing in this Chapter shall prohibit:

1. A Religious Organization or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a Religious Organization, from limiting the sale, rental or occupancy of real property or Rental Housing which it owns or operates for other than a commercial purpose to individuals of the same religion or individuals who promote the religious principles for which it is established or maintained, or from giving preference to such individuals.
2. A Nonprofit Fraternal or Social Association/Corporation, which as an incident to its primary purpose or purposes provides real property or Rental Housing which it owns or operates for other than a commercial purpose, from limiting the rental or occupancy of such real property or Rental Housing to individuals who are members or individuals who promote the principles for which it is established or maintained, or from giving preference to such individuals.

C. Public Accommodation - It shall be an Unlawful Discriminatory Practice for the owner, operator, lessee, manager, agent or Employee of any Place of Public Accommodation to refuse, deny or make a distinction, directly or indirectly, in offering its goods, services, facilities, privileges, advantages or accommodations to any individual because of their Sexual Orientation or Gender Identity. Nothing in this Chapter shall be interpreted to apply to a Religious Organization's performance of a religious function, including but not limited to the:

1. provision of goods, services, facilities, privileges, advantages or accommodations related to the solemnization or celebration of a marriage, or
2. performance of its religious teachings, ministry, religious duties or practices, advancement of religion, or other religious activities.

(History: Ord. HRC-3266 § 3, 2019)

8.10.040 Interpretation

Nothing in this Chapter shall be construed to:

- A. Prohibit an Employer from requiring an Employee, during the Employee's hours at work, to adhere to reasonable dress or grooming standards not prohibited by other provisions of federal, state, or local law.
- B. Require an Employer to hire unqualified individuals or to retain Employees when there is a legitimate non-discriminatory or non-retaliatory reason to hire another candidate or terminate employment, or prevent any adverse action against an Employee that would have been taken regardless of the Employee's Sexual Orientation or Gender Identity.
- C. Prohibit an Employer from requiring all of its Employees, as a condition of employment, to utilize the Employer's applicable established internal human resource procedure(s) to address any allegation of discrimination or retaliation in the workplace. The fact that an Employer requires an Employee to utilize the Employer's applicable established internal human resource procedure(s) to address any allegation of discrimination or retaliation in the workplace shall not, in itself, be deemed a violation of this Chapter. However, an Employee may simultaneously file a complaint with the City as provided in this Chapter, and completion of the Employer's procedures is not a prerequisite to filing a complaint with the City.
- D. Require any person or entity subject to this Chapter to make changes requiring a building permit to any existing facility, except as otherwise required by law.
- E. Prohibit an Employer or Place of Public Accommodation from posting signs for restrooms and dressing rooms based on gender.
- F. Prohibit a Nonprofit Fraternal or Social Association/Corporation or Religious Organization from limiting membership as is calculated by the association/corporation or organization to promote the principles for which it is established or maintained.
- G. Be construed or applied in a manner that violates any law or unlawfully infringes upon any rights under the First Amendment of the United States Constitution, Section 7 of the Kansas Constitution Bill of Rights, the Adoption Protection Act (K.S.A. 60-5322, and amendments thereto), or the Kansas Preservation of Religious Freedom Act (K.S.A. 60-5301 *et seq.*, and amendments thereto).
- H. Make it lawful to discriminate or retaliate against individuals on the basis of race, color, religion, national origin, sex, age, disability, genetic information, marital status, familial status, or military status. Such discrimination and retaliation is not addressed in this Chapter because federal and state laws consistently address unlawful discriminatory and retaliatory practices related to those characteristics and provide appropriate procedures for addressing complaints for such discrimination and retaliation.

(History: Ord. HRC-3266 § 4, 2019)

8.10.050 Enforcement

- A. An Aggrieved Individual may file a written complaint with the City Clerk that the individual has been, or is being, subject to an alleged Unlawful Discriminatory Practice(s) as prohibited by this Chapter. The complaint may be filed personally or through an attorney (or if a minor, through the minor's parent, legal guardian or attorney) and shall be

completed on a form provided by the City. The complaint form shall state the names and contact information of the Aggrieved Individual, the individual(s) and/or entity/entities alleged to have committed the Unlawful Discriminatory Practice(s), a description of the alleged unlawful conduct, and all other information as may be required by the form provided by the City. The complaint form shall only be considered complete if all information required by the City's form has been provided to the extent such information is reasonably available to the Aggrieved Individual.

- B. The complaint form must be filed within sixty (60) Days of the alleged Unlawful Discriminatory Practice, unless the act complained of constitutes a continuing pattern or practice of discrimination, in which event it must be filed within sixty (60) Days of the last act of discrimination.
- C. The complaint may be referred to an approved mediator for non-binding mediation at the request of the parties. The mediator shall either be a person agreed upon by the Aggrieved Individual and the Respondent or, if no such agreement can be reached within a reasonable time following the filing of the complaint, a person selected by the City Manager will serve as the mediator. Any fees charged by the mediator shall be split equally between the parties. If mediation is not successfully completed within sixty (60) Days of the referral, or a party chooses not to pursue mediation, the complaint shall be referred to the Investigator.
- D. Upon receipt of a complete complaint, the Investigator shall notify the Respondent(s) of the complaint, providing sufficient details related to the complaint so the Respondent(s) may respond. The Investigator shall give the Respondent(s) thirty (30) Days to file a written answer to the complaint, and to provide any documentation or evidence related to the complaint. The Investigator may, at the request of Respondent(s), extend the answer period an additional thirty (30) Days. If the Respondent accused of violating the provisions of this Chapter is the City, the City will engage an independent Investigator who shall not otherwise be an Employee, agent, or contractor of the City.
- E. Following the conclusion of the answer period, the Investigator may initiate an investigation period, requesting that the Aggrieved Individual and/or Respondent(s) provide additional information, documentation, statements or testimony as needed to facilitate the investigation of the complaint. This investigation period shall be concluded within a reasonable period of time following the submission of additional information, documentation, or testimony.
- F. Upon conclusion of the investigation period, the Investigator shall forward all evidence and other information received during the investigation to the Law Department. The Law Department will make a determination whether probable cause exists that: (i) the Respondent(s) committed an Unlawful Discriminatory Practice, and (ii) imposition of a penalty pursuant to this Chapter:
 - 1. Would not constitute an unlawful burden of a person's right to exercise of religion pursuant to Section 7 of the Kansas Constitution Bill of Rights or the Kansas Preservation of Religious Freedom Act (K.S.A. 60-5301 *et seq.*, and amendments thereto), or an unlawful burden of a person's freedom of speech, expression, or

- association (as protected by the First Amendment of the United States Constitution or the Kansas Constitution); or
2. If imposition of a penalty would constitute a burden, application of such burden to the person would be in furtherance of a compelling governmental interest and such application would be the least restrictive means of furthering that compelling governmental interest.
- G. If the Law Department finds that probable cause does not exist, then the Law Department shall notify the Aggrieved Individual and the Respondent(s) within a reasonable period of time, and this notification shall be considered a final order and no further action shall be taken by the City.
- H. If the Law Department finds probable cause does exist, the Law Department shall notify the Aggrieved Individual and Respondent(s) and request conciliation and settlement. If a party refuses to participate in conciliation and settlement, or if a settlement agreement is not executed within sixty (60) Days of the date of the finding of probable cause (unless such time is extended by the Law Department for good cause and with the agreement of all parties), the matter shall be referred to the Hearing Officer for review, who shall sit as an administrative judge for purposes of this Chapter.
- I. Upon referral to the Hearing Officer, the Hearing Officer shall schedule a hearing on the complaint. The parties shall be given ten (10) Days' written notice via certified mail of the date, time, and place of the hearing. At such hearing, the parties and the Law Department shall be entitled to call witnesses and to present such other evidence as appropriate. The hearing shall be conducted in accordance with such procedures as may be established by the Hearing Officer, but the rules of evidence used in courts of law need not be strictly enforced.
- J. Any determination of the Hearing Officer that the Respondent(s) committed an Unlawful Discriminatory Practice shall be issued in writing within sixty (60) Days of the hearing, shall be based upon the preponderance of the evidence, and shall set forth the essential elements and facts of the determination. If the Hearing Officer finds that a civil violation of this Chapter has occurred, the Hearing Officer may impose a civil penalty upon the Respondent(s) in the amount of up to \$1,000.00 for each violation. Each party is to bear their own attorneys' fees, if any.
- K. The filing of a complaint for the alleged violation of this Chapter or a response thereto shall in no way preclude any party from seeking other relief under state or federal law, including a private right of action arising from any breach of a duty owed to the class of persons protected by this Chapter.

(History: Ord. HRC-3266 § 5, 2019)

8.10.060 Severability

Should any section, subsection, sentence, clause or phrase of this Chapter, or the application thereof to any person or circumstance, be declared to be unconstitutional or invalid or unenforceable, such determination shall not affect the validity of the remaining portions of this Chapter.

(History: Ord. HRC-3266 § 6, 2019)

TITLE 12 - TRAFFIC

12.21 PRIVATE TOWING REGULATIONS

Contents:

12.21.010 Purpose and Intent.

12.21.020 Definitions.

12.21.030 Unlawful Acts.

12.21.040 Maximum Tow and Storage Fees.

12.21.050 Nonapplicability to Governmental Vehicles and Tows.

12.21.060 Penalty.

12.21.010 Purpose and Intent.

It is hereby declared that the purpose and intent of this chapter is to protect the public and the rights of persons whose motor vehicles may be towed and stored by private towing services at the request of third parties.

(History: PTR-1658 §1, 91)

12.21.020 Definitions.

As used in this chapter, the words and phrases defined in this section shall have the following meanings, unless the context otherwise requires:

- A. **Towing** means the moving or removing or the preparation therefor of a motor vehicle for which a service charge is made, either directly or indirectly of a motor vehicle from private property without the knowledge and actual consent of the owner or the person in legal possession of the vehicle.
- B. **Tow truck** means any truck or other vehicle adapted or used for the purpose of towing, winching, carrying or otherwise removing another vehicle from a given location for commercial purposes.
- C. **Storage** means the custody and control of a vehicle by a tow truck operator as a result of a third-party ordered tow.
- D. **Tow operator** means any person engaged in the business of offering or providing a towing service for commercial purposes.
- E. **Private property** means all property privately owned regardless of whether the property is open to public access.

(History: PTR-1658 §1, 91)

12.21.030 Unlawful Acts.

It shall be unlawful and a violation of this chapter for any person to fail to comply with the following regulations when involved in the towing or request of towing of motor vehicles from private property; provided that the provisions of this chapter are not applicable when the private motor vehicle has been left upon the private owner's premises for more than 24 hours:

A. Notification. The property owner or person requesting the towing of or the removal of a vehicle from private or public property shall, within one hour of completion of such towing or removal, notify the Overland Park, Kansas, Police Department of the following information concerning the tow or removal:

1. Vehicle make;
2. Vehicle model;
3. Vehicle year;
4. Vehicle VIN;
5. License plate number;
6. Ultimate destination where the vehicle is towed to and stored; and
7. Person ordering the tow.

B. Notice and Sign Requirements. Except for property appurtenant to and obviously a part of a single-family residence, and except for instances when notice is personally given to the owner or other legally authorized person in control of the vehicle that the area in which that vehicle is parked is reserved or otherwise unavailable for unauthorized vehicles and thus are subject to being removed at the owner's or operator's expense, any property owner or person in legal possession of the property, prior to towing or removing any vehicle from private or public property without the consent of the owner or other legally authorized person in control of that vehicle, must post a notice meeting the following requirements:

1. The notice must be prominently placed at each driveway access or curb cut allowing vehicular access to the property, within five feet from the public right-of-way line. If there are no curbs or access barriers, the signs must be posted not less than one sign for each 25 feet of lot frontage.
2. The notice must clearly indicate, in not less than two inch high, light reflective letters on a contrasting background, that unauthorized vehicles will be towed away at the owner's expense. The words "tow away zone" must be included on the sign in not less than four inch high letters.
3. The notice must also contain the following language:

"If you believe your vehicle may have been towed from this property, please contact the Overland Park Police Department."
4. The sign structure containing the required notices must be permanently installed, with the bottom of the sign not less than four feet above ground level and must be continuously maintained on the property for not less than 24 hours prior to the towing or removal of vehicles.
5. A business with 20 or fewer parking spaces satisfies the notice requirements of this section by prominently displaying a sign stating "Reserved parking for customers only. Unauthorized vehicles will be towed away at the owner's expense." in light reflective

letters on a contrasting background. In addition, the sign must include the information required in subparagraph (3) herein.

C. Owner Access. Any owner of a vehicle towed pursuant to this chapter shall have access to personal property in such vehicle for up to 48 hours after such vehicle has been towed, and such personal property shall be released to said owner unless it is being held or seized as evidence.

(History: Ord. TC-1260,FFFF §78, 2022; Ord. PTR-2222 §1, 2000; PTR-1908 §1, 94; PTR-1658,A §1, 91; PTR-1658 §1, 91) (State Law: K.S.A. 8-1103)

12.21.040 Maximum Tow and Storage Fees.

All wrecker or towing services shall charge for towing and storage services such fees and charges as are adopted by the City by resolution. The City shall not be responsible for unpaid towing and storage fees and charges except as provided by resolution of the City or as agreed to in writing by the Chief of Police.

(History: Ord. TC-1260,FFFF §79, 2022; Ord. PTR-1908 §3, 94; PTR-1658 §1, 91) (State Law: K.S.A. 8-1103)

12.21.050 Nonapplicability to Governmental Vehicles and Tows.

The provisions of this chapter shall not apply to law enforcement, firefighting, rescue squad, ambulance or other emergency vehicles, not to include tow trucks, which are marked as such or to property owned by any governmental entity or to any vehicle towed pursuant to Section [12.20.001](#) et seq.

(History: Ord. PTR-1658 §1, 91)

12.21.060 Penalty.

Any person that violates the provisions of this chapter shall be fined not less than \$500 nor more than \$1,000. In addition to such fine the Court may sentence any person convicted hereunder to no more than 30 days in jail.

(History: Ord. PTR-1908 §2, 94; PTR-1658 §1, 91)